A woman wanted to make some money, so she decided to sell cocaine. She asked her neighbor, who was reputed to have access to illegal drugs, to supply her with cocaine so she could resell it. The neighbor agreed and sold the woman a bag of white powder. The woman then repackaged the white powder into smaller containers and sold one to an undercover police officer who promptly arrested the woman. The woman immediately confessed and said that her neighbor was her supplier. Upon examination, the white powder was found not to be cocaine or any type of illegal substance.

If the neighbor knew the white powder was not cocaine but the woman believed it was, which of the following is correct?

A. Both the neighbor and the woman are guilty of attempting to sell cocaine.
B. The neighbor is guilty of attempting to sell cocaine, but the woman is not.
C. The neighbor is not guilty of attempting to sell cocaine, but the woman is.
D. Neither the neighbor nor the woman is guilty of attempting to sell cocaine.

**Explanation:**

**Defenses to attempt**

| | |
|---|---|
| **Impossibility** | Legal – intended act would not be criminal if completed |
| | Factual (no defense) – unknown condition prevents completion of intended crime |
| **Abandonment** | Majority/common law (no defense) – attempt complete once overt act committed |
| | Minority/MPC – voluntary & complete withdrawal from crime |

**MPC** = Model Penal Code.

A defendant is guilty of an attempted crime if he/she had the **specific intent** to **commit a crime**, performed an **act** in furtherance of that crime, but did not complete it. This is true even when an **unknown condition** makes it **factually impossible** to complete the intended crime. Therefore, factual impossibility is **never a defense** to attempt.

Here, the neighbor did not have the specific intent to sell cocaine because he knew that the white powder was not cocaine. Therefore, he is not guilty of this attempted crime **(Choices A & B)**. In contrast, the woman believed that the white powder was cocaine when she repackaged it and sold some to an undercover police officer. And though it was factually impossible for her to actually sell cocaine, this is no defense to attempt. As a result, only the woman is guilty of attempting to sell cocaine **(Choice D)**.

**Educational objective:**

Attempt requires proof that the defendant (1) had the specific intent to commit a crime, (2) performed an act in furtherance of that crime, but (3) did not complete it. And the defendant can be convicted of attempt even if it was factually impossible to complete the intended crime.

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A man was engaged to marry a woman. One evening, the man became enraged at the comments of the woman's eight-year-old daughter, who was complaining, in her usual fashion, that she did not want her mother to marry the man. The man, who had had too much to drink, began beating the daughter. The daughter suffered some bruises and a broken arm. The woman took her daughter to the hospital, and the police were notified by the hospital staff.

The man was indicted for felony child abuse. He pleaded with the woman to forgive him and to run away with him. She agreed. They moved out of state and took the daughter with them. Without the testimony of the child, the prosecution was forced to dismiss the case. Some time later, the woman returned for a visit with her family and was arrested and indicted as an accessory after the fact to child abuse.

At the woman's trial, how should the court proceed?

A. Dismiss the charge, because the evidence shows that any aid the woman rendered occurred after the crime was completed.

B. Dismiss the charge, because the man had not been convicted.

C. Submit the case to the jury, on an instruction to convict only if the woman knew the man had been indicted.

D. Submit the case to the jury, on an instruction to convict only if the woman's purpose in moving was to help the man avoid conviction.

**Explanation:**

**Parties to a crime**

| **Modern view** | **Common law** | **Definition** | **Liability** |
|---|---|---|---|
| **Principal** | **Principal (first degree)** | Performs criminal act with requisite intent or uses innocent agent to commit criminal act | Target & foreseeable crimes |
| **Accomplice** | **Principal (second degree)** | Present at crime & aids/encourages principal with intent that principal commit crime | |
| | **Accessory before the fact*** | *Not* present at crime but aids/encourages principal with intent that principal commit crime | |
| **Accessory after the fact** | | Knows principal has committed felony & helps principal avoid arrest or conviction | Independent crime |

*Common law liability requires conviction of principal.

A person is an **accessory after the fact** if he/she:

knew that the principal had committed a felony
**aided or assisted** the principal **after the felony was complete** *and*
did so for the **purpose of helping** the principal **avoid apprehension or conviction**.
Although the accessory after the fact is not liable for the principal's crime, the accessory is liable for a separate crime—often "harboring a fugitive" or "obstructing justice".

Here, the man was indicted for felony child abuse after beating the woman's daughter. Although the woman was aware of this crime, she moved out of state with the man and her daughter. This move helped the man avoid conviction since the daughter's unavailability to testify forced the state to dismiss his case. But the jury should only convict the woman as an accessory after the fact if her *purpose* in moving was to help the man avoid conviction.

**(Choice A)** The evidence that the woman aided the man after the crime was completed supports her liability as an accessory after the fact—not a dismissal of the charge.

**(Choice B)** A person can be convicted as an accessory after the fact even if the principal has not been prosecuted for, or convicted of, the completed felony.

**(Choice C)** An accessory after the fact must know that the principal has *committed* a felony but need not know that the principal has been *indicted* for that crime.

**Educational objective:**

An accessory after the fact (1) knows that the principal has committed a felony, (2) aids or assists the principal after the felony is complete, and (3) does so to help the principal avoid apprehension or conviction.

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A man was convicted of possession of a controlled substance with the intent to distribute and sentenced to 20 years confinement in a state prison. Five years into the man's confinement, prison officials began to suspect that the man was distributing drugs inside the prison. One day, the man was removed from his cell and taken to the prison dentist for what the guards told him was a "routine checkup." After the man exited the cell, guards entered and told the man's cellmate that they were going to search the cell. The cellmate did not object. The guards searched the cell without a warrant and found several grams of heroin hidden in a locked box under the man's bed.

The man was charged with distribution of a controlled substance within a secure facility and, under the state's three-strikes rule, faces life in prison. The man has moved to suppress the heroin.

Should the man's motion to suppress be granted?

A. No, because the cellmate impliedly consented to the search of the cell.

B. No, because the man had no reasonable expectation of privacy in his cell or items therein.

C. Yes, because the heroin was not in plain view when the guards searched the cell.

D. Yes, because the locked box was a constitutionally protected area that required a warrant.

**Explanation:**

**Common items & areas**

**with no reasonable expectation of privacy**

Bank records
Things exposed to public view (eg, open fields, abandoned property)
Physical characteristics (eg, handwriting, vocal sound)
Conversations with undercover officers & informants
Pen registers (ie, records of dialed telephone numbers)
Smells emanating from cars & other items
Prison inmate's cell
Automobile's vehicle identification number (VIN)

The **Fourth Amendment** is violated when the government conducts an **unreasonable search or seizure**—ie, when police act without a warrant and no exception applies. A Fourth Amendment **search** occurs if one of the following tests is met:

**Physical trespass test** – the government physically intrudes upon a constitutionally protected area to obtain information

**Reasonable expectation of privacy test** – the government invades a person's **subjective expectation** of privacy that society would find **objectively reasonable**

In *Hudson v. Palmer*, the Supreme Court held that **inmates** have **no privacy interest in their cells** and **no possessory interest in their items therein** (eg, the locked box) that would entitle them to Fourth Amendment protections **(Choice D)**. Therefore, the guards' search of the man's cell did not violate the Fourth Amendment, and the court should deny his motion to suppress.

**(Choice A)** Third parties (eg, a suspect's roommate) may consent to a warrantless search of property over which the third party had joint control and access. Here, the man's cellmate did not object to the search of the cell—ie, he impliedly consented. But since inmates have no reasonable expectation of privacy in their cells, the cellmate's consent was unnecessary.

**(Choice C)** Under the plain-view exception to the warrant requirement, officers may seize an item if (1) the item is in plain view, (2) it is immediately apparent that the item is contraband, and (3) the officer is lawfully in the area. But since prisoners have no reasonable expectation of privacy in their cells, reliance on the plain-view exception is unnecessary.

**Educational objective:**

Inmates have no privacy interest in their prison cells or possessory interest in the items therein that would entitle them to Fourth Amendment protections. Therefore, officials may search an inmate's cell without implicating the Fourth Amendment.

**References**

Hudson v. Palmer, 468 U.S. 517, 522–24 (1984) (holding that inmates hold no reasonable expectation of privacy in prison cells).

Wayne R. LaFave, 1 Search and Seizure 167; 2.4(d) (6th ed. 2020) (discussing privacy interests in detention facilities).

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The police suspected a woman of dealing in stolen credit cards. An undercover police officer knocked on the woman's door and told her that he was willing to pay for usable credit cards. When the woman asked if he was a police officer, the officer replied, "No," giving her a false name and saying, "You can call your girlfriend—she'll vouch for me." The woman then admitted him into her house. After she left the room to call her girlfriend, the officer lifted some papers off a desk and underneath discovered three credit cards bearing different names. He seized the cards, and when the woman returned, he arrested her.

The woman has moved to suppress the evidence seized on the ground that her Fourth Amendment rights were violated.

Should the court grant the motion to suppress?

A. No, because it was immediately apparent that the cards were stolen.

B. No, because the woman assumed the risk that the officer would seize items in plain sight.

C. Yes, because the woman's rights were violated when the officer lifted the papers.

D. Yes, because the woman's rights were violated when the officer obtained entry by deceit.

**Explanation:**

A Fourth Amendment search is reasonable when it is conducted pursuant to a warrant or an exception to the warrant requirement. **Consent** is an exception that makes a **warrantless search reasonable** if (1) the consent is given voluntarily and (2) the search is limited to the scope of consent. And when an officer is conducting a reasonable search, the **plain view doctrine** allows the officer to **seize an item without a warrant** if:

the item is in the officer's **plain view**
it is **immediately recognizable as contraband** *and*
the officer is **lawfully in the area** (eg, owner consented to the entry).
However, this exception does **not allow an officer to move items** to uncover contraband. If the officer does so without a warrant and no other exception justifies his/her actions, the uncovered evidence should be suppressed.

Here, the officer could conduct a warrantless search—and seize items in plain view—when the woman admitted him into her house (consent). And though he then discovered three credit cards with different names (immediately recognizable contraband), he had to lift papers off a desk to do so. Therefore, the credit cards were not in plain view and were seized in violation of the woman's Fourth Amendment rights. As a result, the court should grant her motion to suppress the cards.

**(Choice A)** It was immediately apparent that the credit cards were stolen since they had different names. But since the officer had to lift papers from the desk to see the cards (ie, they were not in plain view), his conduct violated the Fourth Amendment. Therefore, the court should grant the woman's motion to suppress the cards.

**(Choice B)** All persons assume the risk that police will seize illegal items in plain sight. But since the credit cards were underneath papers—not in plain sight—the woman did not assume the risk that they would be seized.

**(Choice D)** Police cannot coerce a homeowner's consent to their entry—eg, by falsely stating that they have a warrant. But they can obtain entry by deceit—eg, by lying about their identity or purpose—so the officer's entry did not violate the woman's rights. But since her rights were later violated when the officer lifted the papers from her desk, her motion to suppress should be granted.

**Educational objective:**

Under the plain view doctrine, police can seize an item without a warrant during a reasonable search when (1) the item is in plain view, (2) it is immediately recognizable as contraband, and (3) police are lawfully in the area (eg, with consent). But an item is not in plain view if police must move other items to uncover it.

**References**

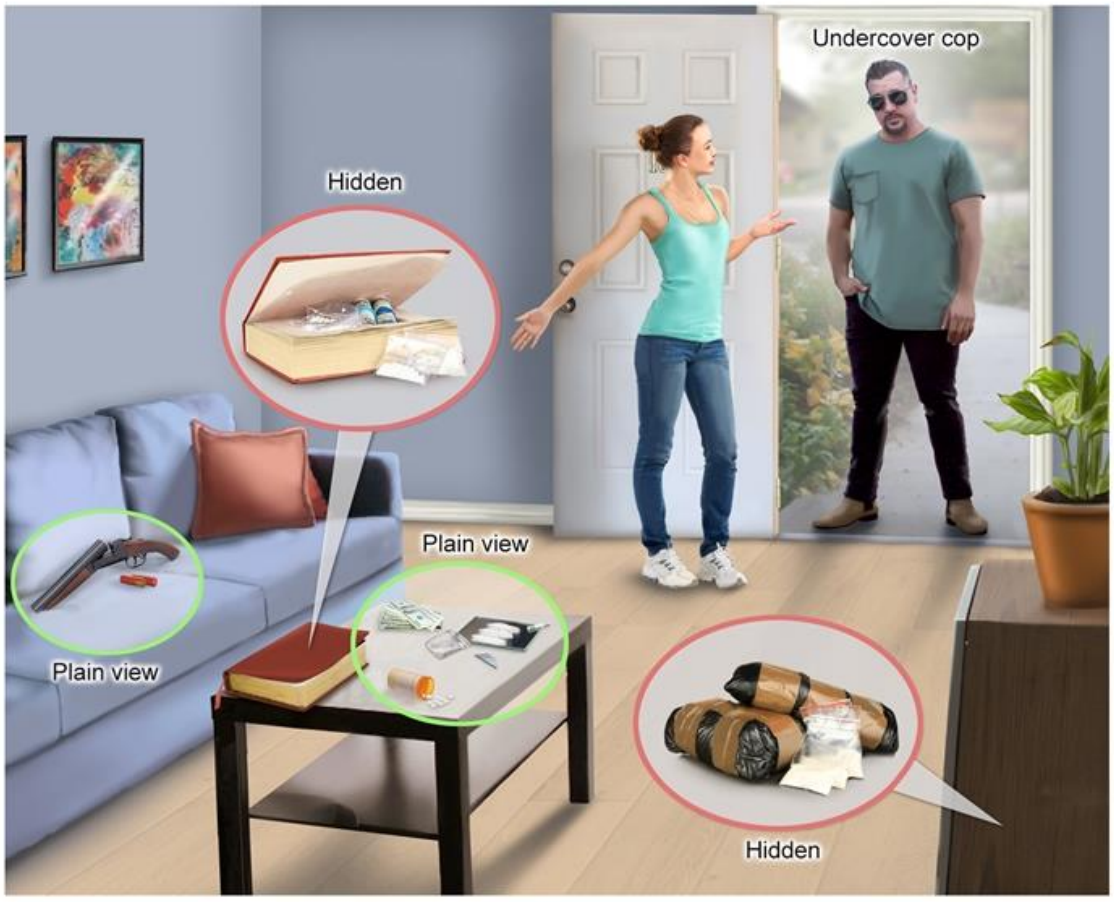
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Arizona v. Hicks, 480 U.S. 321, 324–25 (1987) (explaining that police may not move items to obtain plain view).

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**Plain-view doctrine**
(permits warrantless seizure of contraband in plain view)




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A woman who is a computer expert decided to dedicate herself to exposing persons who trafficked in child pornography. She posted a number of sexually oriented photographs on her website. The file for each photograph contained an embedded Trojan horse program (a program that would allow the woman to enter the computer of anyone who downloaded the photograph). A man downloaded one of those photographs onto his personal computer. Using the embedded program, the woman entered the man's computer and found a file containing a pornographic photograph of a child. She copied the file and turned it over to a federal law enforcement agency. A federal agent told her that a successful prosecution would require more than one photograph and offered her a monetary reward for additional photographs leading to the man's conviction. The woman entered the man's computer again, and this time she found hundreds of child pornography photographs, which she turned over to the federal agency.

The man was charged with multiple counts of violating federal child pornography statutes. He has moved to suppress the photographs that the woman discovered on his computer. The motion is based on both the Fourth Amendment and a federal statute forbidding interception of electronic communication without permission. The parties have stipulated that the woman's conduct in downloading photographs from the man's computer violated the interception statute.

How should the court rule on the defendant's motion to suppress?

A. Deny the motion as to all photographs.

B. Grant the motion as to all photographs, because the woman acted without probable cause.

C. Grant the motion as to all photographs, because the woman violated the federal interception statute.

D. Grant the motion only as to the second set of photographs.

**Explanation:**

The **exclusionary rule** requires the suppression of evidence obtained in violation of the law or a defendant's constitutional rights (eg, from a warrantless search). Since this rule seeks to deter government misconduct, it only applies to the **actions of government agents** (eg, government employees, persons working on the government's behalf). Therefore, evidence is **admissible** if it was **obtained by a private individual** acting on his/her own behalf, **without the government's knowledge or participation** (eg, concerned citizens, vigilantes).

Here, the woman used an embedded Trojan horse program to conduct two searches of the man's computer. During the first search, the woman discovered a child pornography photograph. Since that search was motivated by her personal desire to expose persons who trafficked in child pornography, she was acting as a *private individual* without the government's knowledge or participation. Therefore, the exclusionary rule does not apply, and the court should deny the man's motion to suppress the first photograph.

Once the woman gave that photograph to the federal law enforcement agency, a federal agent offered her a monetary reward for additional photographs leading to the man's conviction. The woman then conducted a second search of the man's computer on the agency's behalf. Therefore, she was acting as a *government agent* during that search. And since the search violated the Fourth Amendment (no warrant) and the federal interception statute, the court should grant the man's motion to suppress the second set of photographs **(Choice A)**.

**(Choice B)** Government agents generally need a warrant based on probable cause to conduct a Fourth Amendment search, but private individuals do not. Therefore, the fact that the woman acted without probable cause would only support the suppression of photographs obtained during her second (government) search—not her first (private) search.

**(Choice C)** Although the parties stipulated that the woman's conduct violated the federal interception statute, that stipulation only supports the exclusion of the second set of photographs (government search).

**Educational objective:**

The exclusionary rule requires suppression of evidence that was illegally or unconstitutionally obtained by government agents—not private individuals acting without the government's knowledge or participation.

**References**

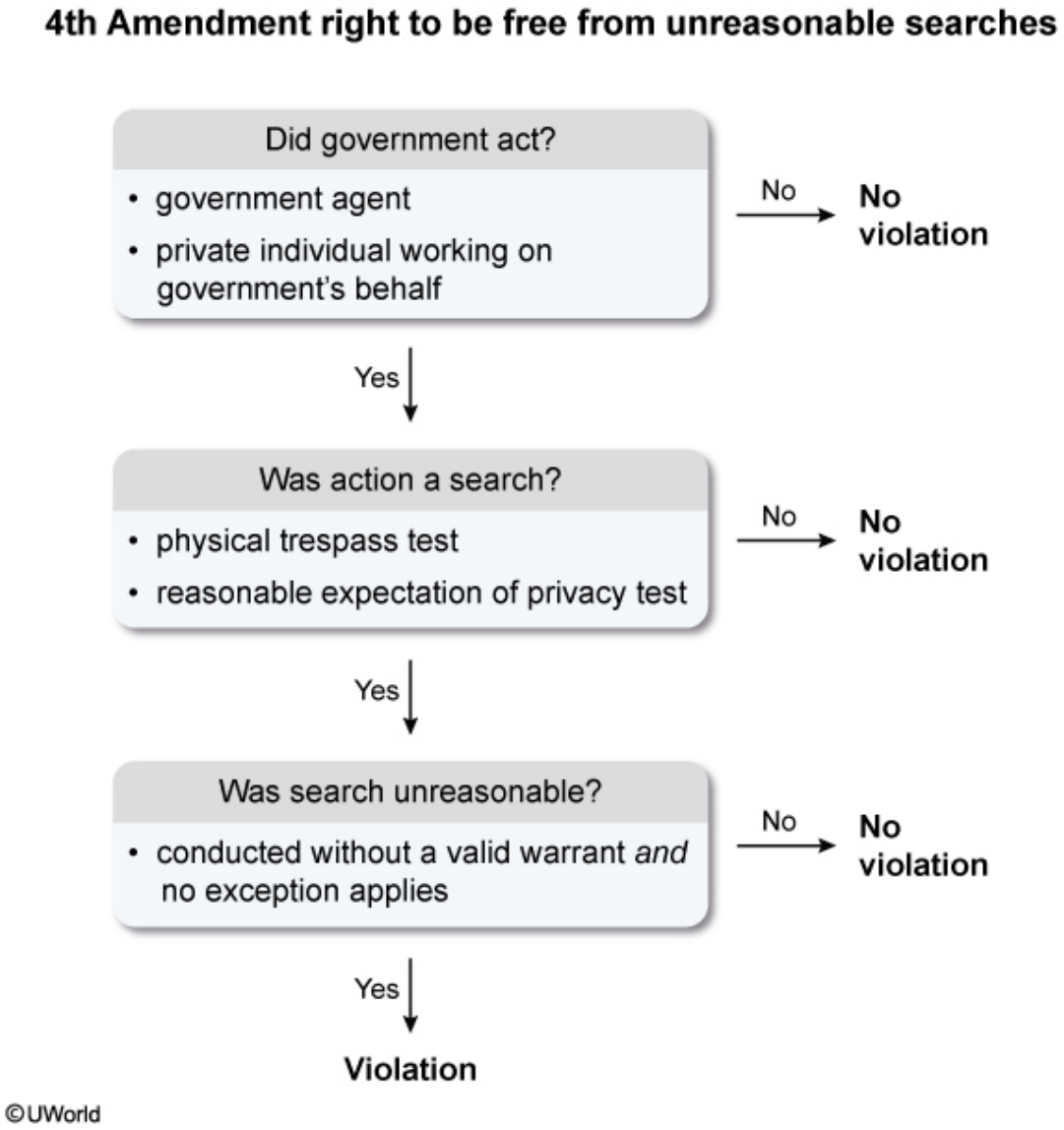
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Jacobsen, 466 U.S. 109, 113 (1984) (finding that the Fourth Amendment applies to searches conducted by the government and individuals working on its behalf, but not private individuals).

Nardone v. United States, 308 U.S. 338, 340–41 (1939) (explaining that evidence obtained in violation of a federal statute is subject to the exclusionary rule).

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A man was prosecuted for selling cocaine to an undercover police agent. At his trial, the man testified that he only sold the drugs to the agent because the agent had told him that he (the agent) would be killed by fellow gang members unless he supplied them with cocaine. The prosecution did not cross-examine the man. As rebuttal evidence, however, the prosecutor introduced records, over the man's objection, showing that the man had two prior convictions for narcotics-related offenses. The court instructed the jury concerning the defense of entrapment and added, also over the man's objection but in accord with state law, that it should acquit on the ground of entrapment only if it found that the defendant had established the elements of the defense by a preponderance of the evidence. The man was convicted.

On appeal, the man argued that his conviction should be reversed for two reasons: the trial court violated the man's right to due process of law by imposing on the defense the burden of persuasion and erroneously admitted his prior convictions as substantive evidence concerning entrapment.

How should the appellate court rule on the man's conviction?

A. Affirm the conviction.

B. Reverse the conviction, because the trial court erroneously admitted the man's prior convictions as substantive evidence.

C. Reverse the conviction, because the trial court violated the man's right to due process by imposing on the defense a burden of persuasion concerning entrapment.

D. Reverse the conviction on both grounds.

**Explanation:**

**Evidence of crimes or bad acts**

(Federal Rule of Evidence 404)

Admissible for noncharacter purposes—eg:

**M**otive/opportunity
**I**ntent
**M**istake/accident (absence of)
**I**dentity
**C**ommon scheme/plan
Mnemonic: **MIMIC**

Under the harmless error test, an appellate court should affirm a conviction if the prosecution proves beyond a reasonable doubt that a trial error (eg, constitutional violation, evidentiary error) did not contribute to the defendant's conviction. Here, the man is challenging his conviction on two grounds: (1) the jury instruction on entrapment violated his right to due process and (2) the trial court improperly admitted his prior convictions into evidence.

To comply with **due process**, a jury instruction must explain that the **prosecution has the burden** to prove every element of a **criminal offense** beyond a reasonable doubt. However, due process only applies to criminal offenses—**not affirmative defenses**, which justify or excuse a defendant's criminal conduct but do not negate an element of the crime. Therefore, the defendant can bear the burden to prove an affirmative defense under any evidentiary standard.

Here, the man was prosecuted for selling cocaine and asserted entrapment as a defense. This defense *excuses* criminal behavior if (1) the behavior was induced by a government agent and (2) the defendant would not have otherwise committed the crime. And since entrapment does *not negate* an element of the crime, it is an affirmative defense. Therefore, the trial court's jury instruction—that the man had the burden to prove this defense by a preponderance of the evidence—did not violate due process and is not a ground for reversal **(Choices C & D)**.

The man's second challenge relies on Federal Rule of Evidence 404, which generally bars the prosecution from introducing evidence of the defendant's **bad character** (eg, past crimes, prior bad acts). But this evidence can be introduced if:

it is being used for a **noncharacter purpose**—eg, to prove **m**otive/opportunity, **i**ntent/knowledge, absence of **m**istake/accident, **i**dentity, or **c**ommon plan/scheme (MIMIC)
*and*

its **probative value outweighs** the danger of **unfair prejudice**—eg, records showing multiple convictions of unrelated or heinous offenses should be excluded because their usefulness does not outweigh the bias they would cause.

Here, the man's two narcotics-related convictions were admitted as substantive evidence—to rebut the man's entrapment defense. The convictions showed that the man may have committed the crime without the agent's inducement because he did so in the past (evidence of motive or intent—not bad character). And since the prejudice posed by those convictions was outweighed by the probative value of assessing the man's entrapment defense, this evidence was properly admitted. Therefore, his conviction should be affirmed **(Choices B & D)**.

**Educational objective:**

A criminal defendant can be required to prove an affirmative defense under any evidentiary standard. Additionally, evidence of a defendant's bad character is generally inadmissible but can be used for a noncharacter purpose (MIMIC) if its probative value outweighs the danger of unfair prejudice.

**References**

U.S. Const. amend. XIV § 1 (due process clause applied to the states).

U.S. Const. amend. V (due process clause applied to the federal government).

Patterson v. New York, 432 U.S. 197, 210 (holding that a defendant can bear the burden of proof for affirmative defenses).

Fed. R. Evid. 404(b)(2) (admissibility of prior criminal convictions as character evidence).

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The police had, over time, accumulated reliable information that a man operated a large cocaine-distribution network, that he and his accomplices often resorted to violence, and that they kept a small arsenal of weapons in his home.

One day, the police received reliable information that a large brown suitcase with leather straps containing a supply of cocaine had been delivered to the man's home and that it would be moved to a distribution point the next morning. The police obtained a valid search warrant to search for and seize the brown suitcase and the cocaine, and they went to the man's house.

The police knocked on the man's door and called out, "Police. Open up. We have a search warrant." After a few seconds with no response, the police forced the door open and entered. Hearing noises in the basement, the police ran down there and found the man with a large brown suitcase with leather straps. They seized the suitcase and put handcuffs on the man. A search of his person revealed a switchblade knife and a .45-caliber pistol. The man cursed the police and said, "You never would have caught me with the stuff if it hadn't been for that lousy snitch!"

The police then fanned out through the house, looking in every room and closet. They found no one else, but one officer found an Uzi automatic weapon in a box on a closet shelf in the man's bedroom.

In addition to charges relating to the cocaine in the suitcase, the man is charged with unlawful possession of weapons. The man moves pretrial to suppress the use as evidence of the weapons seized by the police and of the statement he made.

As to the switchblade knife and the .45-caliber pistol, how is the court likely to rule?

A. Deny the motion, because the police had reasonable grounds to believe that there were weapons in the house.

B. Deny the motion, because the search and seizure were incident to a lawful arrest.

C. Grant the motion, because the police did not inform the man that he was under arrest and did not read him his Miranda rights.

D. Grant the motion, because the search and seizure were the result of illegal police conduct in executing the search warrant.

**Explanation:**

The Fourth Amendment generally requires that officers obtain a warrant before conducting a search. However, a warrant is not required to conduct a **search incident to a lawful arrest** because an immediate search is necessary for officer safety and to prevent the arrestee from destroying nearby evidence. This exception allows police to conduct a **warrantless search** of:

the **person** who has been **lawfully arrested** *and*
the **areas** within that person's **immediate reach**.

Here, the police obtained a warrant to search for and seize the brown suitcase and cocaine believed to be in the man's home. The police then entered his home, found him with the suitcase, and lawfully placed him in handcuffs. They conducted a warrantless search of the man's person incident to that arrest and found a switchblade knife and .45-caliber pistol. As a result, the man's motion to suppress that evidence should be denied.

**(Choice A)** Since the police had reasonable grounds (probable cause) to believe that there were weapons in the house, they could have obtained a warrant to search the home—but not persons in the home—for those weapons. But probable cause alone does not authorize a warrantless search.

**(Choice C)** Police need not inform suspects that they are under arrest, and Miranda warnings are only required if police intend to *interrogate* suspects while they are in custody. Since the man was not interrogated, Miranda warnings were not required. And even if they were, the court would suppress the man's self-incriminating statement—not the knife and pistol.

**(Choice D)** When executing a warrant, police must announce their presence and give the occupant a reasonable opportunity to answer before forcibly entering the home (knock and announce rule). However, an unannounced or expedited entry is permitted when there is a credible threat of violence or destruction of evidence (eg, the man's violent reputation and weapons arsenal).

**Educational objective:**

Police do not need a warrant to conduct a search incident to a lawful arrest. However, that search is limited to (1) the person arrested and (2) the areas within his/her immediate reach.

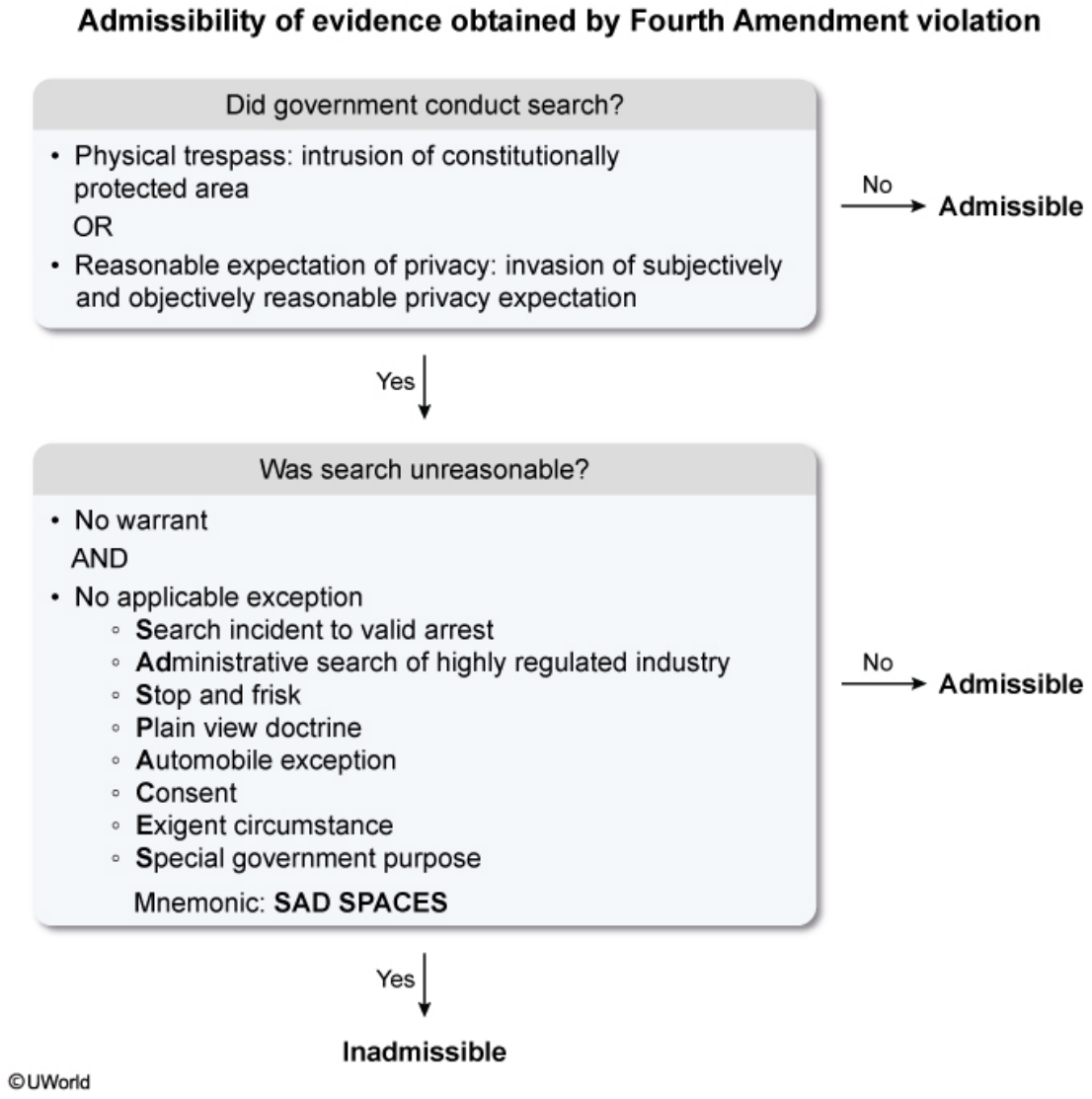
**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Chimel v. California, 395 U.S. 752, 763 (1969) (recognizing that search incident to lawful arrest extends to areas within the suspect's immediate control).

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In a trial of a defendant for armed bank robbery, the prosecutor presented overwhelming evidence of guilt. Three tellers identified the defendant as the robber, a latent fingerprint found on the bank counter linked the defendant to the scene, and bank money had been found in the defendant's car. The police had arrested the defendant immediately after the robbery, as the defendant was driving away from the bank.

When the prosecution rested its case, the judge directed the jury to return a verdict of guilty. The defense attorney did not object at the time. The jury withdrew, discussed the case, and agreed to a guilty verdict. The jury returned to the courtroom and announced the guilty verdict. The defense attorney then voiced an objection to the judge's having directed the verdict. The court overruled the objection and sentenced the defendant to 20 years in prison.

On appeal, what should the appellate court do?

A. Affirm the conviction, because the defense attorney failed to timely object to the judge's action.
B. Affirm the conviction, because the prosecution presented both circumstantial and direct evidence conclusively establishing the defendant's guilt.
C. Reverse the conviction, because the defense attorney's failure to timely object to the judge's action constituted ineffective assistance of counsel.
D. Reverse the conviction, because the judge's action in directing the verdict denied the defendant his constitutional right to a trial by jury.

**Explanation:**

**Structural errors**

Biased judge
Deprivation of right to counsel
Attorney enters guilty plea over defendant's objection
Discriminatory selection of jurors
Exclusion of defendant from courtroom during trial
Denial of public trial and/or jury trial
Improper jury instruction on burden of proof

An appellate court should automatically reverse a defendant's conviction if the trial court committed a **structural error**. A structural error is an error that affects the entire framework of a criminal trial and renders it fundamentally unfair (eg, denial of the **Sixth Amendment right to jury trial**). Every criminal defendant who is charged with a **serious offense**—a crime that carries a possible **prison sentence greater than six months** (eg, armed bank robbery)—has the right to have a jury determine his/her guilt. Therefore, this right was violated when the judge directed the jury to return a guilty verdict,* and an **automatic reversal** of the defendant's conviction is warranted.

In contrast, no structural error would have occurred had the trial judge directed the jury to return a verdict of acquittal upon finding that there was insufficient evidence for a reasonable jury to find the defendant guilty.

**(Choice A)** A timely objection—an objection made when a judge can still correct the error (usually at the time the error occurred)—is generally required to preserve an error for appeal. Otherwise, that error is waived. However, a timely objection is not needed to challenge a structural error on appeal.

**(Choice B)** The prosecution presented circumstantial (latent fingerprint) and direct (tellers' identification) evidence that conclusively established the defendant's guilt. This evidence would ordinarily show that the alleged error was harmless (ie, did not affect the trial's outcome) and that the conviction should be affirmed. But since a structural error is *never* harmless, the conviction must be reversed—despite the overwhelming evidence of guilt.

**(Choice C)** An ineffective-assistance-of-counsel claim requires proof that the defense attorney's performance was deficient (below an objective standard of reasonableness) and prejudicial (affected the result of the proceeding). Here, the defense attorney's failure to timely object was not deficient or prejudicial since this error can still be raised on appeal. Therefore, the defendant's conviction will not be reversed on this basis.

**Educational objective:**

A defendant charged with a serious criminal offense has a Sixth Amendment right to a jury trial, so a judge cannot direct the jury to return a guilty verdict. Doing so constitutes a structural error that requires automatic reversal of the defendant's conviction on appeal.

**References**

U.S. Const. amend. VI (right to jury trial).

Sparf v. United States, 156 U.S. 51, 105–06 (1895) (holding that a judge cannot direct the jury to find a criminal defendant guilty).

Rose v. Clark, 478 U.S. 570, 578 (1986) (explaining that a directed verdict against a criminal defendant constitutes structural error).

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A state legislature passed a statute providing that juries in criminal trials were to consist of 6 jurors, rather than 12, and that jury verdicts did not have to be unanimous but could be based on 5 votes out of 6 jurors.

A defendant was tried for murder. Over his objection, he was tried by a jury composed of 6 jurors. The jurors found him guilty by a vote of 5 to 1, and over the defendant's objection, the court entered a judgment of conviction, which was affirmed on appeal by the state's highest court.

The defendant seeks to overturn his conviction in a habeas corpus proceeding in federal court, claiming that the trial court violated his constitutional rights by allowing both a non-unanimous jury verdict and a jury composed of fewer than 12 members.

How is the federal court likely to rule in this action?

A. It will set aside the conviction, because the 6-person jury verdict was not unanimous.
B. It will set aside the conviction, because the jury was composed of fewer than 12 members.
C. It will set aside the conviction, both because the jury was composed of fewer than 12 members and because the 6-person jury verdict was not unanimous.
D. It will uphold the conviction.

**Explanation:**

**Sixth Amendment right to jury trial**

| | |
|---|---|
| **Applies to serious crimes** | General rule – possible sentence of > 6 months' imprisonment (or actual sentence of > 6 months if no statutory maximum provided)<br>Exception – sentence ≤ 6 months if additional penalties are so severe that legislature likely intended for crime to be serious |
| **Waiver** | Free, knowing & intelligent request for bench trial |
| **Composition** | Jury pool – fair cross section of community<br>Impaneled jury – impartial & unbiased |
| **Size** | State court – at least 6 jury members<br>Federal court – 12 jury members unless parties stipulate otherwise |
| **Unanimity** | Unanimous verdict required to convict |

A petition for a **writ of habeas corpus** is generally used as a post-conviction remedy to collaterally attack an **unlawful imprisonment**. If the petitioner is incarcerated for a state conviction, the petition can only be filed in federal court if the petitioner has exhausted all state appellate remedies. The federal court will only grant the petition and set aside the conviction if the petitioner's incarceration violates the U.S. Constitution.

The Sixth Amendment **right to a jury trial** attaches to any criminal proceeding where the defendant could be sentenced to more than six months in prison. This right, applied to the states through the Fourteenth Amendment, requires that a jury (1) have **at least six members** and (2) reach a **unanimous verdict** to convict a defendant. If these requirements are not met, any conviction and subsequent incarceration are unconstitutional.

Here, the defendant properly filed a petition for a writ of habeas corpus in federal court since the state's highest court had affirmed his conviction (exhaustion of state appellate remedies). Although the defendant was properly tried by a six-member jury **(Choices B & C)**, the conviction was unconstitutional since it was based on a vote of 5 to 1—not a unanimous guilty verdict. Therefore, the federal court will likely set aside the conviction **(Choice D)**.

**Educational objective:**

The Sixth Amendment right to a jury trial entitles criminal defendants who could be sentenced to more than six months in prison to a jury composed of at least six members. The defendant can then be convicted only by a unanimous jury verdict.

**References**

U.S. Const. amend. VI (right to jury trial).

Baldwin v. New York, 399 U.S. 66, 69 (1970) (explaining that the Sixth Amendment right to a jury trial applies when a criminal defendant's prison sentence could exceed six months).

Williams v. Florida, 399 U.S. 78, 86 (1970) (affirming that criminal juries can be composed of six members).

Ramos v. Louisiana, 140 S. Ct. 1390, 1397 (2020) (holding that the Sixth Amendment right to a unanimous jury verdict applies to federal and state courts).

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A man entered the police station and announced that he wanted to confess to a murder. The police advised the man of the Miranda warnings, and the man signed a written waiver. The man then described the murder in detail and pinpointed the location where a murder victim had been found a few weeks before.

Later, a court-appointed psychiatrist determined that the man was suffering from a serious mental illness that induced his confession. The psychiatrist also stated that the mental illness did not interfere with the man's ability to understand his rights.

Is the man's confession admissible at trial?

A. No, because the man's confession was a product of his mental illness and was therefore involuntary.

B. No, because under these circumstances, there was no valid waiver of Miranda warnings.

C. Yes, because the man was not in custody.

D. Yes, because there was no coercive police conduct in obtaining the man's statement.

**Explanation:**

**Constitutional protections for involuntary confessions**

| | |
|---|---|
| **5th Amendment** | Miranda warnings required when suspect is both: |
| (self-incrimination) | in custody *and* |
| | subjected to police interrogation |
| **6th Amendment** | Suspect has right to assistance of counsel: |
| (attorney) | once judicial proceedings commence *and* |
| | during all critical stages of prosecution thereafter |
| **14th Amendment** | Confession must be voluntary: |
| (due process) | product of free & deliberate choice rather than police coercion |

The **due process** clause of the Fourteenth Amendment precludes the use of **involuntary confessions** at trial. A confession is involuntary if the totality of the circumstances shows that it was a **product of police coercion**—ie, when police use physical force, threats, or psychological pressure to force a suspect to confess. But a confession is admissible if it was induced by a suspect's mental illness—not by police coercion.

Here, the man entered the police station and stated that he committed a murder. After being informed of his Miranda rights, he signed a written waiver and explained the details of the murder. And though the man's mental illness induced his confession, at no point did the police coerce him into confessing. Therefore, the man's confession was voluntary and is admissible at trial **(Choice A)**.

**(Choice B)** A defendant's waiver of his/her Miranda rights is valid if it was given knowingly, intelligently, and voluntarily (ie, free from police coercion). Here, the man's waiver is likely valid because he understood his Miranda rights despite his mental illness, and his waiver was not coerced.

**(Choice C)** A person is in custody when he/she is formally arrested *or* his/her freedom of movement is restrained to such a degree that a reasonable person would not feel free to leave. Here, the man *was* in custody since a reasonable person would not feel free to leave a police station after announcing that he/she had committed murder.

**Educational objective:**

A defendant's confession is involuntary if the totality of the circumstances shows that the confession was the product of coercive police conduct. Therefore, a confession induced by the defendant's mental condition—not police coercion—is still admissible.

**References**

U.S. Const. amend. XIV (due process clause).

Colorado v. Connelly, 479 U.S. 157, 167 (1986) (holding that mental illness alone is insufficient to show that a confession was involuntary).

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A store owner whose jewelry store had recently been robbed was shown by a police detective a photograph of the defendant, who previously had committed other similar crimes. The store owner examined the photograph and then asked the detective whether the police believed that the man pictured was the robber. After the detective said, "We're pretty sure," the store owner stated that the man in the photograph was the one who had robbed her.

The defendant was indicted for the robbery. His counsel moved to suppress any trial testimony by the store owner identifying the defendant as the robber.

Should the court grant the motion and suppress the store owner's trial testimony identifying the defendant as the robber?

A. No, because suppression of in-court testimony is not a proper remedy, even though the out-of-court identification was improper.

B. No, because the out-of-court identification was not improper.

C. Yes, because the improper out-of-court identification has necessarily tainted any in-court identification.

D. Yes, unless the prosecution demonstrates that the in-court identification is reliable.

**Explanation:**

**Due process** requires the suppression of unreliable testimony identifying the defendant as the perpetrator of the charged crime (ie, identification testimony) since it may inhibit the defendant's right to a fair trial. In-court identification testimony may be unreliable if it stems from **unnecessarily suggestive out-of-court identification procedures** arranged by police. Therefore, such **in-court identification testimony** is only admissible if the prosecution demonstrates that it is **sufficiently reliable** and poses no substantial likelihood of misidentification.

Here, the police detective showed the store owner a photograph of the defendant and explained that the police were "pretty sure" that the defendant was the robber. After this unnecessarily suggestive out-of-court identification procedure, the store owner identified the defendant as the robber **(Choice B)**. As a result, the court should suppress the store owner's in-court testimony identifying the defendant as the robber *unless* the prosecution proves that her testimony is reliable despite the improper identification procedure.

**(Choice A)** Suppression of in-court identification testimony *is* a proper remedy if (1) that testimony stems from an unnecessarily suggestive out-of-court identification procedure and (2) the prosecution cannot prove that the in-court testimony is reliable.

**(Choice C)** An improper out-of-court identification does not *always* taint an in-court identification—eg, a witness's in-court testimony may be reliable despite a suggestive identification procedure if he/she could accurately describe the perpetrator before that procedure. Therefore, in-court identification testimony will only be suppressed if it is rendered *unreliable* by an improper out-of-court identification.

**Educational objective:**

Due process requires the suppression of in-court identification testimony that was rendered unreliable (ie, substantially likely to result in misidentification) by an unnecessarily suggestive out-of-court identification procedure.

**References**

U.S. Const. amends. V & XIV (due process).

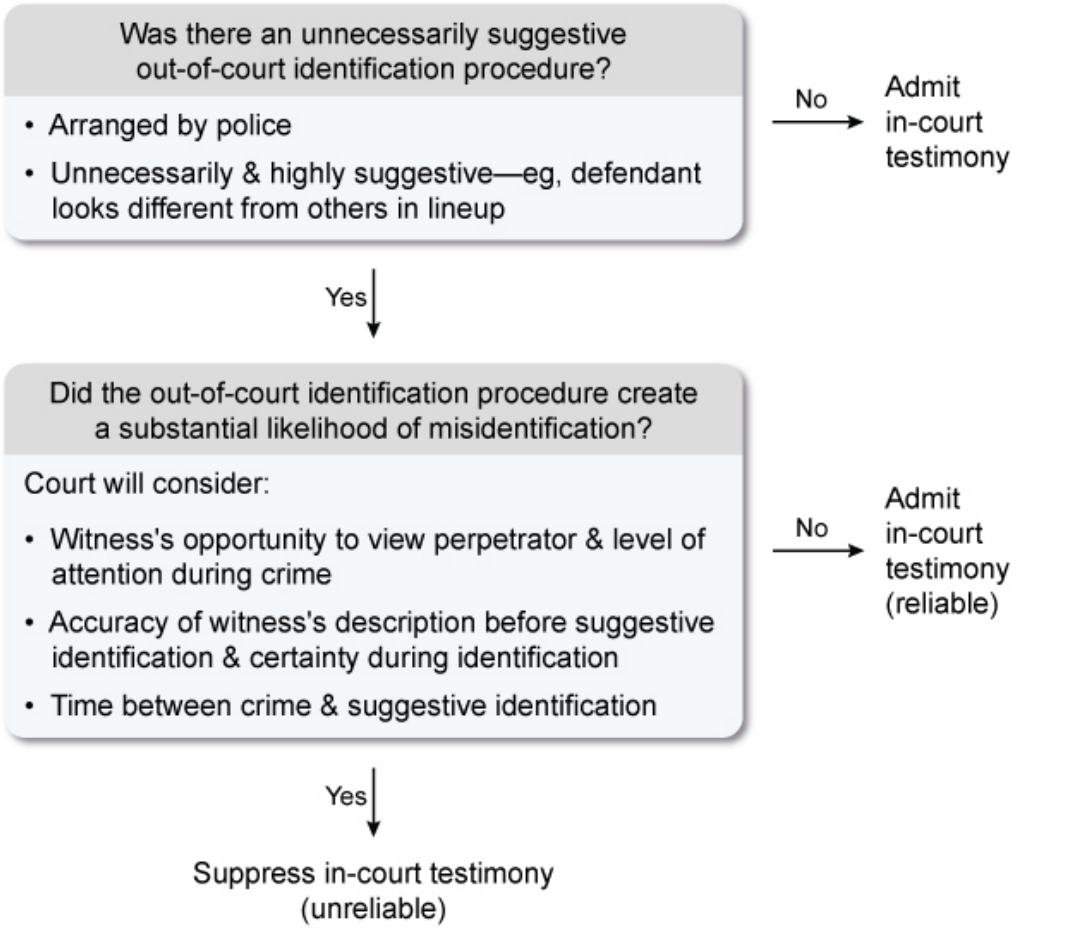
Neil v. Biggers, 409 U.S. 188, 197 (1972) (holding that unnecessarily suggestive identification procedures violate due process if they create a substantial likelihood of misidentification).

Perry v. New Hampshire, 565 U.S. 228, 240–244 (2012) (stating that the reliability of identification testimony stemming from improper identification procedures must be assessed before admitting that testimony at trial).

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## Admissibility of in-court identification testimony




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Police officers had probable cause to believe that drug dealing was routinely taking place in a particular room at a local motel. The motel manager authorized the officers to enter the room and provided them with a passkey. Without obtaining a warrant, the officers knocked on the room's door, announced their presence, and told the occupants that they would like to speak with them. The officers then heard yelling and repeated flushing of the toilet. They then used the passkey and entered the room, where they saw the occupants dumping drugs into the toilet.

The occupants of the room were charged with drug dealing and have moved to suppress the drugs.

Should the court grant the motion to suppress?

A. No, because exigent circumstances justified the officers' entry.

B. No, because the motel manager consented to the officers' entry.

C. Yes, because exigent circumstances cannot excuse the lack of a warrant.

D. Yes, because the officers cannot benefit from exigent circumstances that they created.

**Explanation:**

**Exigent situations/circumstances**

(exception to warrant requirement)

**Evanescent evidence** Imminent threat that evidence of crime will be lost or destroyed

**Emergency situation** Immediate threat of physical harm to police and/or public

**Hot pursuit** Immediate pursuit of fleeing felony suspect

A court should grant a motion to suppress evidence obtained during an unreasonable Fourth Amendment search. A search is generally unreasonable if it is conducted without a warrant. But a **warrantless search** is reasonable when **exigent circumstances** create a compelling need for immediate police action **(Choice C)**. Exigent circumstances exist when police **reasonably believe** that a warrantless entry and/or search is needed to:

**prevent imminent destruction of relevant evidence** (ie, evanescent evidence)
protect police and/or the public from immediate physical harm (ie, emergency situation) *or*
pursue a fleeing suspect after a felony occurs (ie, hot pursuit).
Here, police officers had probable cause to believe that a motel room was being used for drug dealing. After they knocked, announced their presence, and asked to speak with the occupants, the officers heard yelling and repeated flushing of the toilet. This created a reasonable belief that the occupants were flushing the drugs (imminent destruction of evidence), so exigent circumstances justified the officers' warrantless entry. Therefore, the court should deny the occupants' motion to suppress the drugs found in the room.

**(Choice B)** Motel managers lack the authority to consent to a warrantless police entry of a guest's room. This is because they do not have the right to use or occupy the room during the guest's stay (no actual authority) and courts have held that police cannot reasonably believe that managers do (no apparent authority).

**(Choice D)** Police cannot benefit from exigent circumstances that they created by engaging (or threatening to engage) in conduct that violates the Fourth Amendment—eg, by immediately kicking down a door to obtain entry. But since the officers acted lawfully when they knocked on the door and announced their presence, they did not create the exigent circumstance. Therefore, this is not a basis for granting the occupants' motion to suppress.

**Educational objective:**

An exigent circumstance permits police to conduct a warrantless search when they reasonably believe that it is necessary to (1) prevent imminent destruction of relevant evidence, (2) protect police and/or the public from immediate physical harm, or (3) pursue a fleeing suspect after a felony occurs.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Kentucky v. King, 563 U.S. 452, 460–62 (2011) (explaining the exigent circumstances exception to the warrant requirement).

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A grand jury indicted a woman on a charge of arson, and a valid warrant was issued for her arrest. A police officer arrested the woman and informed her of what the warrant stated. However, hoping that the woman might say something incriminating, the officer did not give her Miranda warnings. He placed her in the back seat of his patrol car and was driving her to the police station when she said, "Look, I didn't mean to burn the building; it was an accident. I was just burning some papers in a wastebasket."

At the station, after being given Miranda warnings, the woman stated she wished to remain silent and made no other statements.

At trial, the woman moved to suppress the use of her statement to the police officer as evidence on two grounds: first, that the statement was acquired without giving Miranda warnings, and second, that the police officer had deliberately elicited her incriminating statement after she was indicted.

How should the court respond to the woman's motion to suppress?

A. Deny the motion.

B. Grant the motion only on the basis of the first ground stated.

C. Grant the motion only on the basis of the second ground stated.

D. Grant the motion on either ground.

**Explanation:**

A court should suppress any statement taken in violation of a defendant's **Fifth Amendment privilege against self-incrimination**. This privilege is violated when police fail to give a suspect **Miranda warnings** before a custodial interrogation (suspect in custody and subjected to interrogation). **Interrogation** occurs when police use **words or actions** that they know or should know are **reasonably likely to elicit an incriminating response**.

Here, the officer arrested the woman and placed her in his squad car (custody). As the officer was driving, the woman confessed that she accidently started the fire. And though the officer had hoped that the woman would say something incriminating, he made no affirmative efforts to elicit her confession (no interrogation). Therefore, Miranda warnings were not required, and the court should reject the first ground of the woman's motion to suppress **(Choices B & D)**.

A court should also suppress statements taken in violation of a defendant's **Sixth Amendment right to counsel**, which automatically attaches once **judicial proceedings have commenced**—eg, when the defendant is indicted. This right is violated when a defendant is denied access to an attorney during any **critical stage of prosecution**—including police interrogations.

Here, the woman's Sixth Amendment right to counsel attached when she was indicted for arson. But since she was not subjected to an interrogation when she confessed, her statement was not elicited during a critical stage of prosecution. As a result, she was not entitled to the assistance of counsel, and the court should also reject the second ground of her motion **(Choices C & D)**.

**Educational objective:**

Interrogation occurs when police use words or actions that they know or should know are reasonably likely to elicit an incriminating response. Suspects must be Mirandized before a custodial interrogation and have the right to counsel if the interrogation occurs after judicial proceedings have commenced.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 478 (1966) (listing Miranda rights).

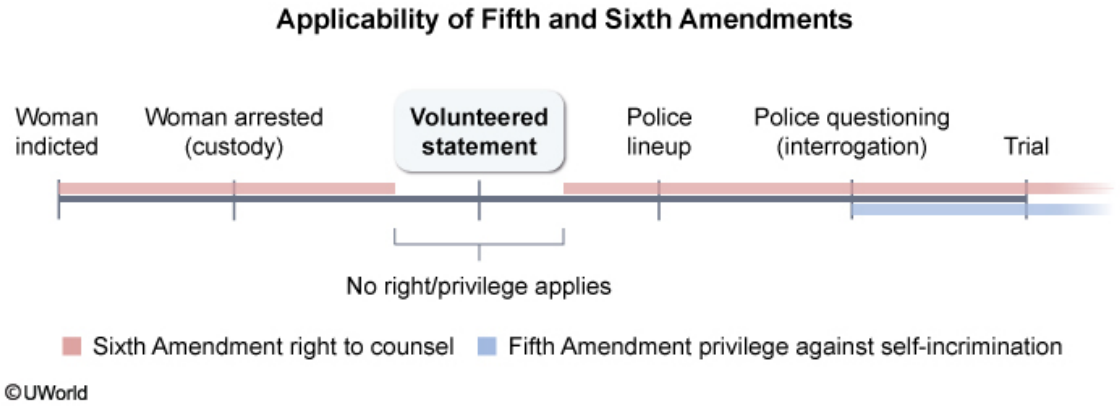
Rhode Island v. Innis, 446 U.S. 291, 308 (1980) (defining interrogation).

U.S. Const. amend. VI (right to counsel).

Kuhlmann v. Wilson, 477 U.S. 436, 459 (1986) (explaining deliberate elicitation).

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A necktie salesman was charged with the murder of a woman who had been strangled and whose body was found in the woods near his home. The salesman suffers from a neurological problem that makes it impossible for him to remember an occurrence for longer than 48 hours.

After the salesman was charged, the police visited him and asked if they might search his home. The salesman consented. During their search, the police found a diary written by the salesman. An entry dated the same day as the woman's disappearance read, "Indescribable excitement. Why did no one ever tell me that killing gave such pleasure to the master?"

The salesman was charged with murder. His attorney has moved to exclude the diary from evidence on the ground that its admission would violate the salesman's privilege against self-incrimination. His counsel has also argued that the salesman could not give informed consent to the search because more than 48 hours had passed since the making of the entry and hence he could not remember the existence of the incriminating entry at the time he gave his consent. There is no evidence that the police officers who secured the salesman's consent to the search were aware of his memory impairment.

Should the court admit the diary into evidence?

A. No, because the salesman was not competent to consent to a search.

B. No, because use of the diary as evidence would violate the salesman's privilege against self-incrimination.

C. Yes, because the salesman's consent was not obtained by intentional police misconduct and the salesman was not compelled to make the diary entry.

D. Yes, pursuant to the good-faith exception to the exclusionary rule.

**Explanation:**

The salesman argues that the warrantless search of his home violated the **Fourth Amendment** because he could not give informed consent to the search. However, **consent** need only be given **freely and voluntarily** (ie, **without police coercion**)—informed consent is not required. Therefore, police do not need to inform a suspect of his/her right to refuse consent or the incriminating evidence they hope to obtain.

Here, due to his neurological condition, the salesman could not remember the incriminating diary entry when he consented to the police search. But since his consent was not obtained by intentional police misconduct or other coercive measures, it was given *voluntarily*. Therefore, the police had valid consent to search the salesman's home, and the diary discovered during the search should not be excluded on Fourth Amendment grounds.

The salesman also argues that admitting the diary would violate his **Fifth Amendment** **privilege against self-incrimination**. This privilege protects persons from being **compelled to produce or create self-incriminating evidence**—ie, evidence that could be used (or lead to other evidence that might be used) against him/her in a criminal prosecution. But this protection does not apply to documents obtained during a constitutional search since the government did not compel the person to produce or create them.

Here, the diary entry is incriminating because it implicates the salesman in the woman's murder. But admitting this evidence would not violate his privilege against self-incrimination since (1) it was discovered during a lawful search of his home (no compelled production) and (2) the salesman was not compelled to create the diary entry **(Choice B)**. Therefore, the court should deny the salesman's motion and admit the diary into evidence.

**(Choice A)** Incompetency (eg, neurological or mental illness) alone does not invalidate a person's consent. Instead, it is one factor used to determine if consent was voluntary. But the salesman's competency is not an issue here since there is no evidence that the police knew about his neurological condition (or took advantage of it to coerce his consent).

**(Choice D)** The good-faith exception to the exclusionary rule allows the admission of *illegally* seized evidence if police reasonably believed that they were acting lawfully (eg, relying on a warrant later deemed invalid). But this exception does not apply here since the officers *legally* searched the salesman's home and seized the diary.

**Educational objective:**

Police may conduct a warrantless search if the person consented to the search voluntarily—ie, without police coercion—even if the consent was not informed. Additionally, the privilege against self-incrimination only applies to the compelled production or creation of evidence—not evidence discovered during a constitutional search.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

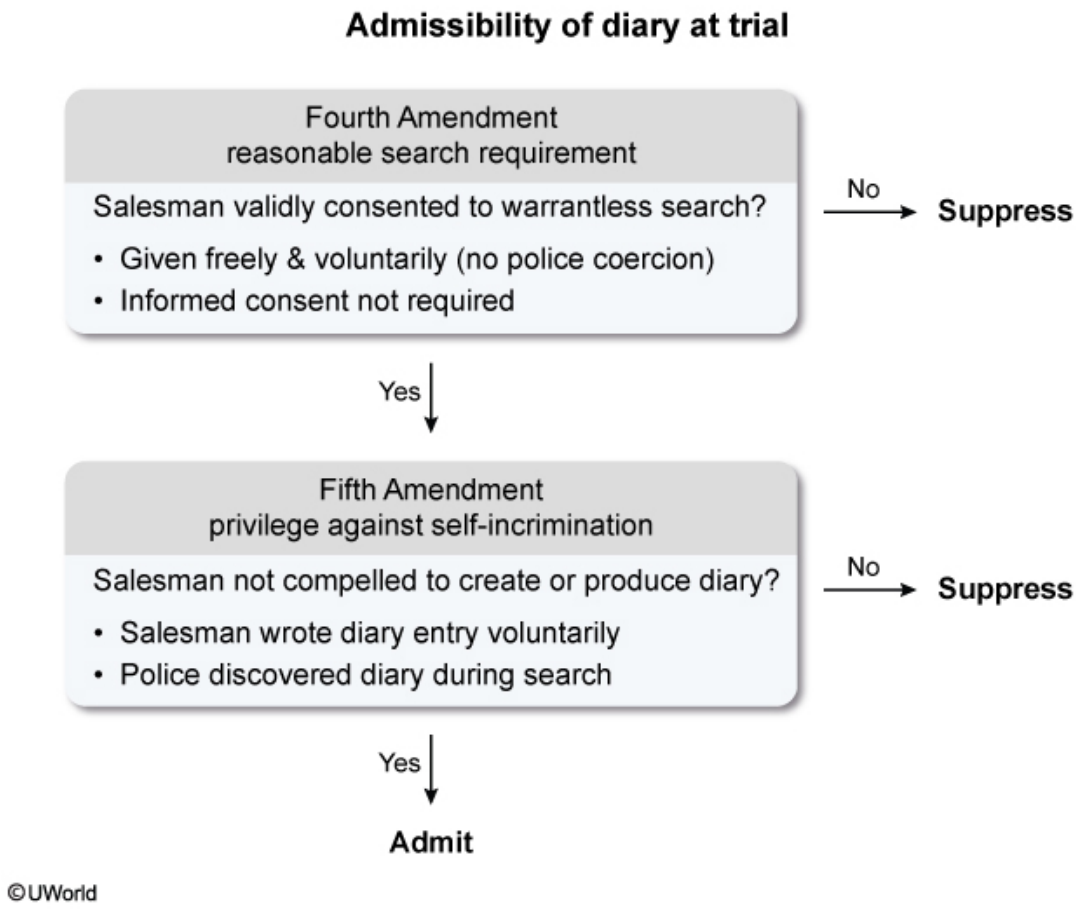
Schneckloth v. Bustamonte, 412 U.S. 218, 225–28 (1973) (explaining that consent must be voluntary and not the result of police coercion).

U.S. Const. amend. V (privilege against self-incrimination).

United States v. Hubbell, 530 U.S. 27, 35–36 (2000) (explaining that contents of documents that a defendant was not compelled to create are not privileged).

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A man was on trial for the murder of his former business partner. During closing arguments, the prosecutor made a remark about the man's failure to testify during the proceedings. The man's attorney promptly objected to the prosecutor's remark and moved for a mistrial. The trial judge overruled the objection, denied the motion for mistrial, and ordered the prosecutor to carry on with her closing argument. After considering the overwhelming evidence of the man's guilt, the jury returned a guilty verdict. The man's attorney has challenged the man's conviction on appeal, arguing that the trial court erred in overruling the objection to the prosecutor's remark and denying the man's motion for mistrial.

How is the court of appeals likely to rule?

A. Affirm the conviction, because of the harmless-error rule.

B. Affirm the conviction, because of the plain-error rule.

C. Reverse the conviction, because there was reversible error.

D. Reverse the conviction, because there was structural error.

**Explanation:**

**Fifth Amendment**

Self-incrimination – secures right to refuse to testify against oneself

Grand jury – requires grand jury indictment for felony offense charged in federal court

Double jeopardy – bars multiple prosecutions for same offense

Due process – protects against unfair deprivation of life, liberty, or property

Takings – prohibits taking private property for public use without just compensation

The **Fifth Amendment** privilege against self-incrimination prohibits the prosecution from commenting on a criminal defendant's **failure to testify at trial**. However, a trial court's erroneous admission of such a comment does not result in the automatic reversal of a conviction on appeal. Instead, under the **harmless-error rule**, the appellate court should determine whether admission of the improper comment:

was **sufficiently prejudicial** as to **require reversal** *or*

constituted only harmless error.

An improper prosecutorial comment is sufficiently prejudicial to require reversal if the comment **contributed** to the **guilty verdict**. Conversely, if the appellate court is convinced beyond a reasonable doubt that the comment did ***not*** **contribute** to the verdict, then the erroneous admission constitutes **harmless error**.*

Here, the trial court erroneously admitted a remark by the prosecutor regarding the man's failure to testify. But since there was overwhelming evidence of the man's guilt, the appellate court is likely to determine that the remark was not sufficiently prejudicial to require reversal **(Choice C)**. Therefore, the appellate court is likely to affirm the man's conviction because of the harmless-error rule.

*The trial judge may attempt to cure potential error by immediately instructing the jury that the prosecutor's comment was improper and that the defendant has a constitutional right not to testify.

**(Choice B)** Under the plain-error doctrine, a defendant who failed to preserve a claim of error is still entitled to appellate relief if (1) the district court committed error under the law in effect at the time of the appeal, (2) the error was obvious under that law, and (3) the error affected the defendant's substantial rights. Here, the claim was preserved when the man's attorney objected and moved for mistrial, so this doctrine does not apply.

**(Choice D)** An appellate court should automatically reverse a defendant's conviction if the trial court committed structural error—ie, error that affected the entire framework of the criminal trial and rendered it fundamentally unfair. However, reference to the defendant's failure to testify does not constitute structural error.

**Educational objective:**

The privilege against self-incrimination prohibits the prosecution from commenting on a defendant's failure to testify at trial. However, an improper prosecutorial comment warrants a reversal on appeal only if it contributed to the guilty conviction.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Chapman v. California, 386 U.S. 18, 24–26 (1967) (applying the harmless error rule to an improper prosecutorial comment).

Barbara E. Bergman et al., 3 Wharton's Criminal Evidence § 3:22 (15th ed. 2020) (discussing improper comments or inferences regarding a defendant's failure to testify).

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Police received an anonymous tip that a gardener was growing marijuana in her backyard, which was surrounded by a 15-foot high, solid wooden fence. A police officer was unable to view the yard from the street, so he used a police helicopter to fly over the gardener's house. The officer identified a large patch of marijuana plants growing right next to the house and used this observation to obtain a search warrant.

The gardener is prosecuted for possession of marijuana and moves to suppress use of the marijuana in evidence.

How should the court rule on the gardener's motion?

A. Deny the motion, because a warrant is not required for a search of a residential yard.
B. Deny the motion, because the gardener had no reasonable expectation of privacy from aerial observation.
C. Grant the motion, because the gardener had a reasonable expectation of privacy in the curtilage around her house and the police did not have a warrant.
D. Grant the motion, because the only purpose of the officer's flight was to observe the yard.

**Explanation:**

A court should suppress evidence obtained in violation of a criminal defendant's constitutional rights, including the **Fourth Amendment** right to be free from **unreasonable searches and seizures**. This right is violated when the government conducts a search without obtaining a warrant or establishing an exception to the warrant requirement. Under the Fourth Amendment, a **search** occurs when one of the following tests is met:

**Physical trespass test** – police physically intruded upon a **constitutionally protected area**—a person's body, house (dwelling or curtilage), papers, or effects—to obtain information *or*

**Reasonable expectation of privacy test** – police invaded (1) a person's **subjective** expectation of privacy (2) that society would find **objectively reasonable**.

Persons do not have an objectively reasonable expectation of privacy in items and areas exposed to public view. As a result, police can view those items and areas just like any member of the public (eg, police can walk on the sidewalk or fly in navigable public airspace).

Here, the officer flew over the gardener's backyard and observed marijuana plants. However, his flight was not a Fourth Amendment search because:

though the backyard was part of the gardener's curtilage (constitutionally protected area), the officer's flight did not physically intrude upon this area (eg, had he stepped onto her yard) *and*

though the gardener built a 15-foot-high fence around her backyard, her subjective expectation of privacy was objectively *unreasonable* since the yard was exposed to aerial view by the public.

Therefore, the officer did not need a warrant to fly over the gardener's backyard, and the court should deny her motion to suppress use of the marijuana in evidence **(Choice C)**.

**(Choice A)** A warrant was not required to fly over the gardener's residential yard because an aerial observation is not a Fourth Amendment search.

**(Choice D)** An *officer's* subjective purpose is irrelevant in determining whether a Fourth Amendment search occurred. Instead, courts will consider whether the *defendant's* subjective expectation of privacy was objectively reasonable.

**Educational objective:**

Police flyovers are not Fourth Amendment searches since (1) aerial observations are not physical intrusions and (2) a person has no reasonable expectation of privacy in items and areas exposed to public view.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

California v. Ciraolo, 476 U.S. 207, 213–14 (1986) (recognizing that a person has no reasonable expectation of privacy from aerial observation).

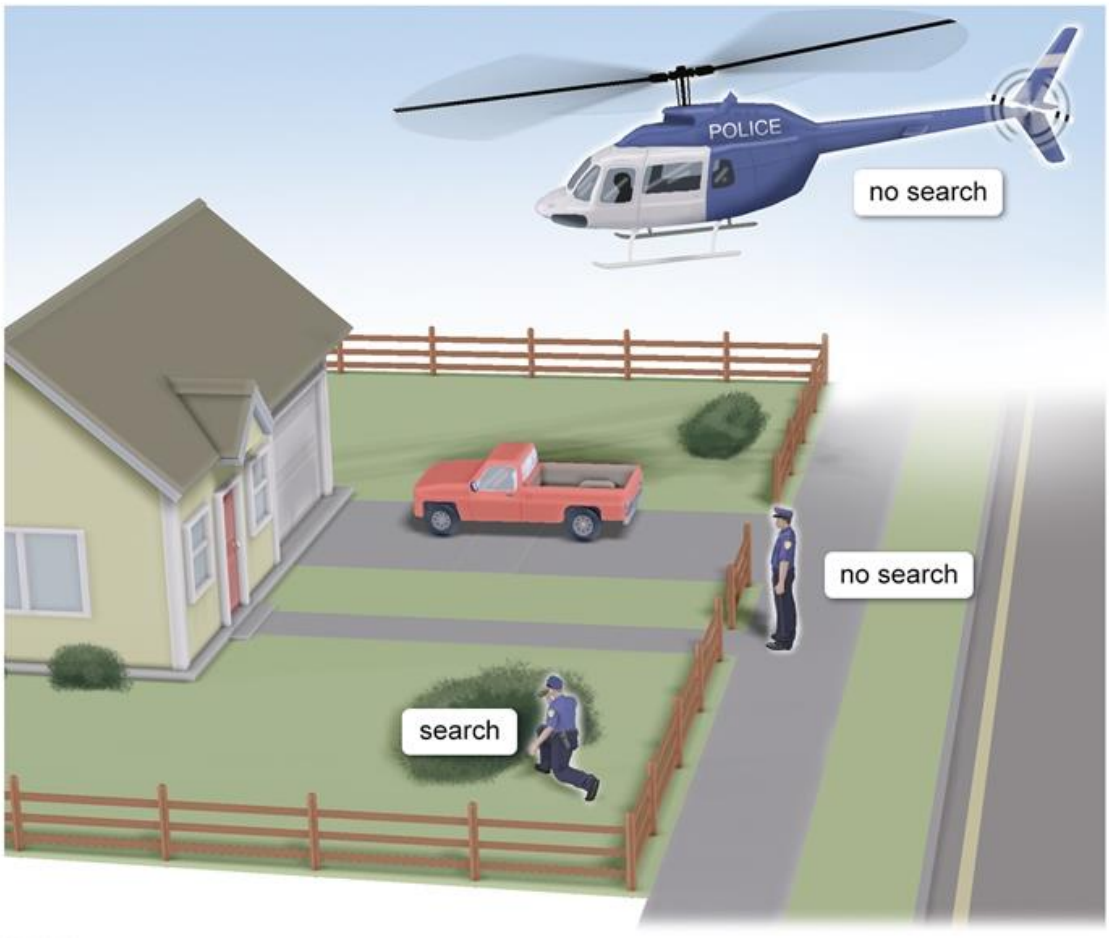
Florida v. Riley, 488 U.S. 445, 450–51 (1989) (explaining that police can use a helicopter to observe a person's property because there is no reasonable expectation of privacy from aerial observation).

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**Fourth Amendment search**

(no reasonable expectation of privacy in areas/activities exposed to public)



A state statute provides as follows: "In all criminal cases, whenever the U.S. Constitution permits, the burden of proof as to a defense claimed by the defendant shall rest on the defendant, and the magnitude of the burden shall be as great as the Constitution permits."

The same state defines the crime of forcible rape as follows: "Forcible rape consists of sexual penetration inflicted on an unconsenting person by means of force or violence. Consent of the victim is a complete defense to a charge of rape."

At a defendant's trial for forcible rape, he testified that the alleged victim had consented to having sexual intercourse with him.

How should the trial judge instruct the jury regarding the burden of proof on the issue of consent?

A. The defendant must prove by a preponderance of the evidence that the victim consented.
B. The defendant must prove by clear and convincing evidence that the victim consented.
C. The defendant must prove beyond a reasonable doubt that the victim consented.
D. The prosecution must prove beyond a reasonable doubt that the victim did not consent.

**Explanation:**

**Due process** requires that the **government prove every element** of a criminal offense **beyond a reasonable doubt**. Therefore, even when the defendant asserts a **defense that negates an element** of the crime (eg, lack of intent, alibi), the **burden of proof must remain on the prosecution** to prove that element—it cannot be placed on the defendant. Since a jury instruction must reflect this constitutional requirement, an instruction violates due process if it places the burden on the defendant to prove any element of the crime.

In this state, forcible rape requires proof that: (1) sexual penetration occurred, (2) the victim did not consent, and (3) the defendant used force or violence. Since the defendant testified that the alleged victim consented to having sexual intercourse, he is asserting a defense (consent) that negates the second element of the crime (no consent). Therefore, to comply with due process, the judge should instruct the jury that the prosecution must prove beyond a reasonable doubt that the victim did not consent.

**(Choices A, B, & C)** Since consent is a defense that challenges an element of the crime, the prosecution must bear the burden of proving that element (and disproving that defense) beyond a reasonable doubt. But had the defendant raised an *affirmative defense*—ie, a defense that justifies or excuses criminal conduct but does not negate an element of the crime—he could have been required to prove that defense under any evidentiary standard (eg, preponderance of the evidence, clear and convincing evidence, beyond a reasonable doubt).

**Educational objective:**

Due process requires that the prosecution prove every element of a criminal offense beyond a reasonable doubt to convict a defendant—even when the defendant asserts a defense that negates an element of the crime.

**References**

U.S. Const. amend. XIV § 1 (due process clause applied to the states).

Patterson v. New York, 432 U.S. 197, 210 (1977) (explaining that the prosecution must prove every element of a crime beyond a reasonable doubt).

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## Burden of proof hierarchy




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Police officers had probable cause to believe that a man had committed a series of armed bank robberies with an accomplice.

The officers obtained a valid arrest warrant for the man and went to his house to arrest him. The officers found the front door ajar and could hear a radio playing inside. They knocked on the door, identified themselves as police officers, and stated that they had a warrant. Getting no response, the officers entered the house. After the officers called the man's name several times and again identified themselves as police officers, the man emerged from the basement and was arrested. The officers went into the basement to look for the accomplice. They opened a closet door and found cocaine in plain view. They did not find the accomplice.

The man was indicted for cocaine possession. He has moved to suppress the cocaine as evidence on the ground that it was obtained in violation of the Fourth Amendment.

Should the court grant the motion to suppress?

A. No, because the officers discovered the cocaine during a lawful protective sweep of the house looking for the man's accomplice.

B. No, because the search was incident to the man's arrest.

C. Yes, because the officers did not have a search warrant.

D. Yes, because the officers did not have probable cause to believe that cocaine would be in the closet.

**Explanation:**

A court should deny a defendant's motion to suppress if the contested evidence was obtained during a reasonable Fourth Amendment search. A **protective sweep**—ie, a **quick, warrantless search of the premises** made incident to an arrest—is reasonable if:

police have a **reasonable suspicion** (ie, a belief based on specific, articulable facts) that the premises harbor someone who **poses a threat** to the safety of persons at the scene *and*

the sweep is limited to a **cursory inspection of places** where a **person could hide**.

Evidence or contraband found in **plain view** during the sweep may be seized without a warrant and admitted at trial.

Here, officers arrested the man pursuant to a warrant as he emerged from the basement of his home. The officers then conducted a protective sweep of the premises. That sweep was lawful because the man was suspected of committing armed bank robberies with an accomplice (reasonable suspicion of danger) and the sweep was limited to the basement and closet (places a person could hide). Therefore, the cocaine found in plain view during the sweep was lawfully seized and should be admitted (not suppressed) at trial.

**(Choice B)** The search-incident-to-lawful-arrest exception to the warrant requirement allows officers to conduct a warrantless search of an arrested person and the areas in his/her immediate reach. This exception does not apply here since the basement was not in the man's reach. Therefore, this is not a basis to deny the motion to suppress.

**(Choice C)** Police do not need a search warrant to conduct a protective sweep—or to seize evidence found in plain view during that sweep—if they reasonably suspect that a dangerous person is in the area to be searched (and the search is limited to places a person could hide).

**(Choice D)** Police did not have probable cause to believe that cocaine would be found in the closet. But since the cocaine was discovered during a lawful protective sweep, they did not need probable cause (or a warrant) to seize it.

**Educational objective:**

Police can conduct a protective sweep—a quick, warrantless search of the premises made incident to an arrest—if they reasonably suspect that a dangerous person may be on the premises and the sweep is limited to places where a person may be found. Evidence found in plain view during the sweep may be seized without a warrant.

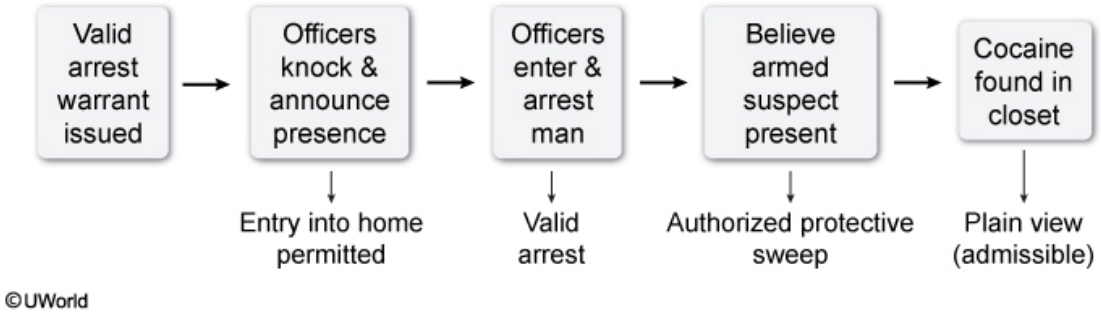
**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Maryland v. Buie, 494 U.S. 325, 334–36 (1990) (explaining that officers may conduct a protective sweep if they have reasonable suspicion that a dangerous person is in the area swept).

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A defendant was charged with and tried for murder. At trial, the defendant testified that he had acted in self-defense.

The trial court instructed the jury that the defendant had the burden of proving by a preponderance of the evidence that he had acted in self-defense. The defendant objected, arguing that this instruction violated the constitutional requirement that the prosecution prove the offense beyond a reasonable doubt.

Did the trial court's instruction violate the defendant's federal constitutional rights?

A. No, because due process does not preclude requiring a defendant to prove self-defense by a preponderance of the evidence.

B. No, because due process does not regulate the burdens of proof in criminal cases.

C. Yes, because due process precludes placing any evidentiary burden on a criminal defendant.

D. Yes, because due process precludes requiring a criminal defendant to bear the burden on an issue that would make an act lawful.

**Explanation:**

**Due process** seeks to prevent wrongful convictions by requiring the **government** to prove every element of a **criminal offense beyond a reasonable doubt** (a high evidentiary burden). However, a legislature can place **any burden of proof** on the **defendant** to establish an **affirmative defense**—an assertion that, if proven, will justify or excuse a criminal defendant's actions and defeat the prosecution's claim **(Choice C)**.

Here, the trial court instructed the jury that the defendant had the burden of proving that he acted in self-defense by a preponderance of the evidence. Since self-defense is an affirmative defense—not an element of the charged crime (murder)—this instruction placed a proper burden of proof on the defendant and did not violate due process.

**(Choice B)** Although due process does not regulate the burden of proof for *affirmative defenses* in criminal cases (eg, self-defense, insanity), it does regulate the burden of proof for criminal *offenses* (eg, murder, rape).

**(Choice D)** Due process precludes requiring a criminal defendant to bear the burden on an issue necessary to prove an element of a crime (eg, for murder, that the defendant caused the death of another)—not an issue that would make an act lawful. Therefore, a defendant can be required to prove an affirmative defense that would justify or excuse his/her actions and make the act lawful (eg, that the defendant killed another in self-defense).

**Educational objective:**

Due process requires the prosecution to prove every element of a criminal offense beyond a reasonable doubt. But the defendant can be required to prove an affirmative defense (eg, self-defense, insanity) by any degree of proof.

**References**

U.S. Const. amend. V (due process clause applicable to the federal government).

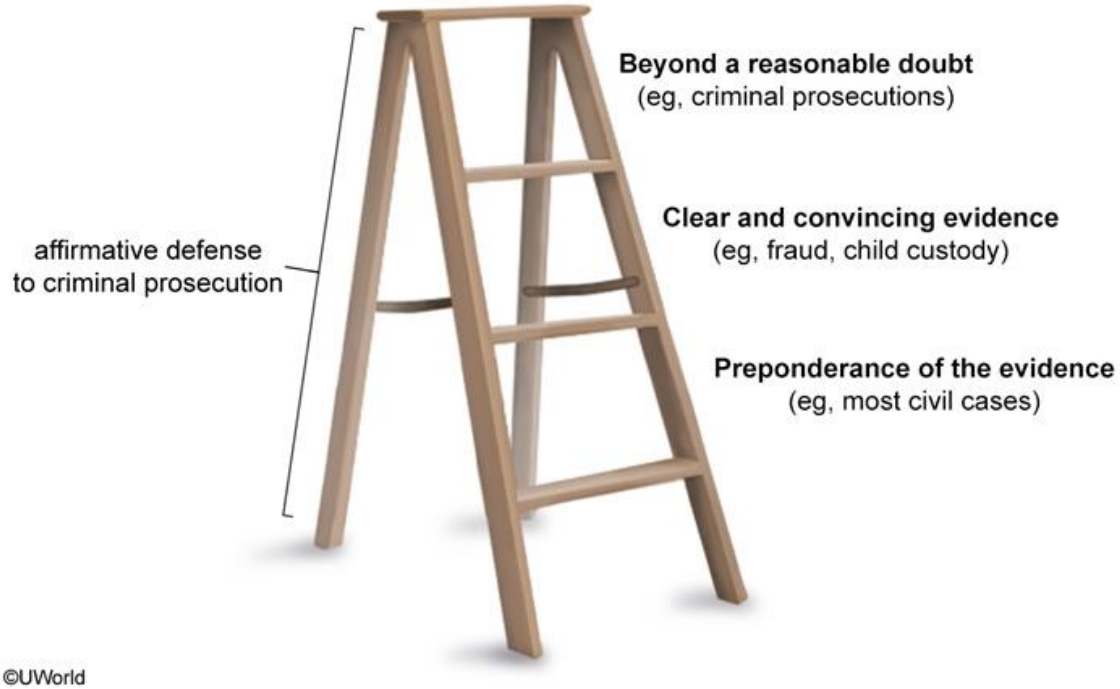
U.S. Const. amend. XIV § 1 (due process clause applicable to the states).

Martin v. Ohio, 480 U.S. 228, 233 (1987) (holding that a state can place the burden of proof for self-defense on a defendant).

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## Burden of proof hierarchy




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A defendant was lawfully arrested for bank robbery, without an arrest warrant. He was not given Miranda warnings but was immediately taken to a police station, where he and five other men were placed in a lineup to be viewed by the bank teller who had been on duty at the time of the robbery. Each man was required to say the words spoken by the bank robber: "Give me all your money. I've got a gun." After all the men in the lineup spoke those words, the teller identified the defendant as the robber.

The defendant subsequently moved to suppress the teller's testimony, claiming that the lineup violated his privilege against self-incrimination. At the suppression hearing, the teller testified that she had not gotten a good look at the robber's face, because the robber had been wearing a hat pulled down over most of his face, but that she was certain the defendant was the robber because she had recognized his voice at the lineup.

Should the defendant's motion be granted?

A. No, because being required to speak at the lineup, while compelled, was not testimonial or communicative.

B. No, because testimony of a witness based on firsthand observation is not subject to exclusion as the fruit of the poisonous tree.

C. Yes, because the defendant was compelled to speak at the lineup, and this compelled speech led to the teller's identification testimony.

D. Yes, because the defendant was never informed that he could refuse to make a statement and that any statement could be used as evidence against him.

**Explanation:**

**Fifth Amendment privilege against self-incrimination**

| | |
|---|---|
| **Testimonial communications** (privileged) | Oral testimony<br>Act of producing documents |
| **Real or physical evidence** (not privileged) | Fingerprints<br>Handwriting samples<br>Voice tests<br>Photographs<br>Physical characteristics & clothing<br>Movements or gestures<br>Blood, DNA, urine samples |

A court should grant a motion to suppress if the defendant's statement was taken in violation of his/her Fifth Amendment **privilege against self-incrimination**. This privilege protects a suspect from being compelled to provide incriminating evidence. But the privilege only applies to compelled **testimonial communications** (eg, oral testimony)—**not real or physical evidence** (eg, fingerprinting, voice identification).

Here, the police arrested the defendant and forced him to say the words spoken by the bank robber in a lineup (compulsion). The teller then identified the defendant as the robber by his *voice* (incriminating evidence). But since the privilege against self-incrimination does not apply to real or physical evidence (eg, voice identification), the court should deny the defendant's motion to suppress.

**(Choice B)** The fruit of the poisonous tree doctrine excludes evidence and testimony obtained from unconstitutional police actions. Here, since the police validly conducted a voice identification procedure and the defendant's constitutional rights were not otherwise violated, this doctrine does not apply.

**(Choice C)** The privilege against self-incrimination applies to compelled testimony (discloses the defendant's *knowledge*)—not compelled speech (discloses the *characteristics* of the defendant's voice). Since the defendant was compelled to disclose his vocal characteristics (not what he knew), the privilege against self-incrimination does not apply.

**(Choice D)** Police must give a suspect Miranda warnings (eg, suspect has the right to remain silent, any statement can be used against him/her at trial) when he/she is subject to a custodial interrogation. Here, though the defendant was lawfully arrested (custody), the purpose of the lineup was to identify his voice—not to elicit an incriminating statement (no interrogation). Therefore, Miranda warnings were not required.

**Educational objective:**

The Fifth Amendment privilege against self-incrimination protects a suspect from being compelled to provide incriminating testimonial communications, but not real or physical evidence.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

United States v. Wade, 388 U.S. 218, 222–23 (1967) (recognizing that voice identification is not a testimonial communication since it does not disclose the defendant's knowledge).

United States v. Hubbell, 530 U.S. 27, 35 (2000) ("[E]ven though the act may provide incriminating evidence, a criminal suspect may be compelled . . . to make a recording of his voice").

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A man was in jail after being arrested for burglary. When the police attempted to question him, the man invoked his Miranda rights and refused to answer any questions. The man was subsequently tried, convicted, and sentenced to a prison term for the burglary. Three years later, while the man was serving his prison sentence for the burglary, a police detective from a nearby town questioned him about an unsolved homicide. The detective did not know that the man had invoked Miranda at an earlier time. The man waived his Miranda rights and made several incriminating statements to the detective. When he was later charged with the homicide, the man moved to suppress these statements, claiming that his earlier refusal to waive his Miranda rights should have been honored.

Should the court suppress the statements?

A. No, because the detective was unaware that the man had originally invoked his Miranda rights.

B. No, because the man's prior invocation of his Miranda rights did not preclude the later interrogation.

C. Yes, because the man had earlier invoked his Miranda rights, and the police were not permitted to resume questioning, even after a time lapse of years.

D. Yes, because the man was incarcerated, and his earlier invocation of his Miranda rights shielded him from further questioning until he was released.

**Explanation:**

A motion to suppress should be granted if the defendant's statement was taken in violation of his/her **Fifth Amendment privilege against self-incrimination**. To comply with this privilege, police must give a suspect **Miranda warnings** (eg, the right to speak to an attorney) before conducting a custodial interrogation. If the suspect invokes his/her right to counsel, any **custodial interrogation must stop** *until*:

the suspect's attorney is present

the suspect voluntarily reinitiates the interrogation *or*

**14 days** have passed since the suspect was **released from police custody** OR was no longer subject to coercive pressures associated with police custody **(Choices C & D)**.

Here, the man invoked his Miranda right to counsel during a prior custodial interrogation, after which he was convicted and sent to prison (released from police custody). *Three years later*, a detective interrogated the man about a homicide. Since more than 14 days had passed since the man was released from police custody, the detective was free to question him after he waived his Miranda rights. Therefore, the man's motion to suppress should be denied.

**(Choice A)** An invocation of the right to counsel is valid against all police officers—including subsequent interrogators who are unaware of the invocation. Therefore, the court would not deny the man's motion to suppress merely because the detective did not know that the man had invoked his Miranda rights in a prior interrogation.

**Educational objective:**

When a suspect invokes his/her Miranda right to counsel, all police interrogation must stop until (1) the suspect's attorney is present, (2) the suspect voluntarily reinitiates the questioning, or (3) fourteen days have passed since the suspect was released from custody or free of coercive pressures associated with police custody.

**References**

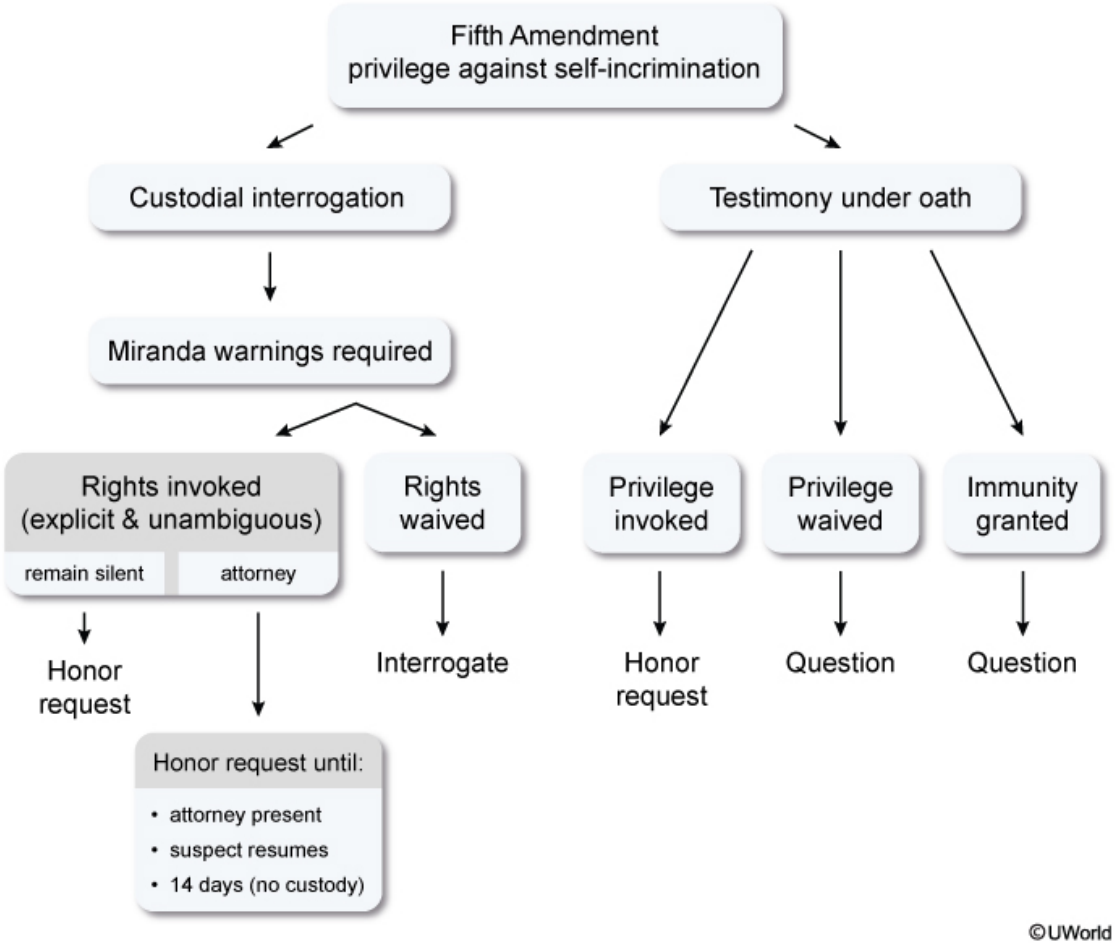
U.S. Const. amend. V (privilege against self-incrimination).

Arizona v. Roberson, 486 U.S. 675, 682–85 (1988) (recognizing that the invocation of Miranda rights extends to interrogations about other crimes).

Maryland v. Shatzer, 559 U.S. 98, 110 (2010) (holding that a break in the chain of custody ends Miranda protection).

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Fifth Amendment
privilege against self-incrimination
Custodial interrogation
Testimony under oath
Miranda warnings required
Rights invoked
(explicit & unambiguous)
remain silent
attorney
Rights
waived
Privilege
invoked
Privilege
waived
Immunity
granted
Honor
request
Interrogate
Honor
request
Question
Question
Honor request until:
• attorney present
• suspect resumes
• 14 days (no custody)
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A police officer had a hunch, not amounting to probable cause or reasonable suspicion, that a man was a drug dealer. One day while the officer was on highway patrol, her radar gun clocked the man's car at 68 mph in an area where the maximum posted speed limit was 65 mph. The officer's usual practice was not to stop a car unless it was going at least 5 mph over the posted limit, but contrary to her usual practice, she decided to stop the man's car in the hope that she might discover evidence of drug dealing. After she stopped the car and announced that she would be writing a speeding ticket, the officer ordered the man and his passenger to step out of the car. When the passenger stepped out, the officer saw that the passenger had been sitting on a clear bag of what the officer immediately recognized as marijuana. The officer arrested both the man and the passenger for possession of marijuana.

At their joint trial, the man and the passenger claim that their Fourth Amendment rights were violated because the officer improperly (1) stopped the car for speeding as a pretext for investigating a hunch rather than for the stated purpose of issuing a traffic ticket and (2) ordered the passenger to step out of the car even though there was no reason to believe that the passenger was a criminal or dangerous.

Are the man and the passenger correct?

A. No, as to both the stop of the car and the officer's order that the passenger step out of the car.

B. No as to the stop of the car, but yes as to the officer's order that the passenger step out of the car.

C. Yes, as to both the stop of the car and the officer's order that the passenger step out of the car.

D. Yes as to the stop of the car, but no as to the officer's order that the passenger step out of the car.

**Explanation:**

A **vehicle stop violates** a driver's and a passenger's **Fourth Amendment** right against unreasonable seizures if the stop is conducted **without a warrant** or an **objectively justifiable basis** like:

**reasonable suspicion** – specific and articulable facts to support a belief that a vehicle occupant is, or will be, involved in criminal activity *or*

**probable cause** – a reasonable belief that an occupant has violated the law (including a traffic law).

A seizure is reasonable—even if it is used as a pretext or excuse to investigate a hunch—if there is an objectively justifiable basis for the vehicle stop. Therefore, the officer's **subjective motivation** for the stop is **irrelevant**. The **driver and passenger(s)** can then be **ordered out of the vehicle** while the officer addresses the matter justifying the stop since this additional intrusion is minimal and helps ensure officer safety. And evidence discovered during this process can create probable cause for an arrest.

Here, the officer stopped the car because she hoped to find evidence of drug dealing (subjective motivation). But she had probable cause to believe that the man had violated a traffic law since she clocked him driving 68 mph in a 65-mph zone (objectively justifiable basis). Therefore, the stop was reasonable under the Fourth Amendment **(Choices C & D)**. As a result, the officer properly ordered the man and the passenger out of the car while she wrote the speeding ticket **(Choices B & C)**. And since no Fourth Amendment rights were violated, the officer lawfully discovered the marijuana and validly arrested the man and the passenger.

**Educational objective:**

A warrantless vehicle stop is a reasonable Fourth Amendment seizure if the officer has an objectively justifiable basis for the stop—ie, reasonable suspicion or probable cause. The officer's subjective motivation is irrelevant. And during a legal stop, the officer can order the driver and passenger(s) to exit the vehicle.

**References**

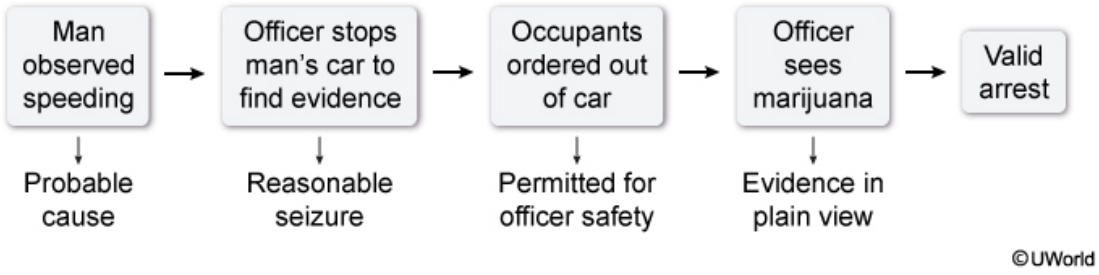
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Whren v. United States, 517 U.S. 806, 813 (1996) (recognizing that an officer's subjective intentions play no role in the reasonableness of a seizure under the Fourth Amendment).

Maryland v. Wilson, 519 U.S. 408, 415 (1997); Pennsylvania v. Mimms, 434 U.S. 106, 111 (1977) (holding that an officer can order a driver and passengers out of a vehicle during a valid traffic stop).

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In a city, a number of armed bank robberies were committed near closing time by a masked man wearing a white hooded sweatshirt and blue sweatpants. Police saw a man wearing a white hooded sweatshirt and blue sweatpants pacing nervously outside one of the city's banks just before it closed. The police stopped the man and frisked the outer layers of his clothing for weapons but found none. They asked the man what he was doing outside the bank and pointed out that he was wearing clothing similar to clothing worn by the perpetrator of recent robberies. After pausing for several moments, the man confessed. The police had not provided him with any Miranda warnings.

After being charged with the bank robberies, the man moved to suppress his confession. The parties agreed, and the court properly found, that the police had reasonable suspicion, but not probable cause, at all times before the man confessed.

Should the man's motion to suppress be granted?

A. No, because there was neither a Fourth Amendment violation nor a Miranda violation.
B. Yes, because the confession was the fruit of a Fourth Amendment violation, even though there was no Miranda violation.
C. Yes, because the confession was the fruit of a Miranda violation, even though there was no Fourth Amendment violation.
D. Yes, because the confession was the fruit of both a Fourth Amendment violation and a Miranda violation.

**Explanation:**

**Police-citizen encounters**

| Type | Characteristics |
|---|---|
| **Consensual encounter** | No suspicion required<br>Officer may approach citizen/engage in conversation<br>Citizen may:<br>respond to officer *or*<br>walk away |
| **Terry stop**<br>(stop & frisk) | Reasonable suspicion required<br>Officer may:<br>briefly question to confirm/dispel suspicion<br>frisk if reasonably believes person armed<br>Investigative in nature |
| **Arrest** | Probable cause required<br>Officer may:<br>search incident to arrest<br>interrogate after Mirandizing<br>Initiates criminal prosecution |

A motion to suppress should be granted if the court finds that evidence (eg, a confession) was obtained in violation of the defendant's constitutional rights. These include the Fourth Amendment right to be free from unreasonable searches and seizures and the Fifth Amendment privilege against self-incrimination.

Under the **Fourth Amendment**, police may stop an individual for investigative purposes if they have a **reasonable suspicion**—ie, a reasonable belief, based on specific and articulable facts—that a person is (or will soon be) involved in criminal activity. During the **investigatory detention** (ie, **Terry stop**), police may:

**briefly stop and question** a person to confirm or dispel their suspicions about the criminal activity *and*

**frisk** (pat down) the person's outer garments to search for weapons if they reasonably suspect that the person may be **armed and dangerous**.

Under the **Fifth Amendment**, police must give a suspect Miranda warnings before conducting a custodial interrogation—ie, an interrogation that occurs when a suspect's freedom of movement is restricted to such a degree that a reasonable person would not feel free to leave (eg, an arrest). Since a **Terry stop** is typically brief and does not substantially

limit the suspect's freedom of movement (ie, no custody), **Miranda warnings are not required** before police questioning.

Here, police stopped and frisked the man when he was standing outside a bank before closing. However, this Terry stop did not violate the Fourth Amendment since police had reasonable suspicion that the man was (1) engaged in criminal activity and (2) armed and dangerous since he was wearing the same clothes as a man who had committed armed bank robberies near closing time **(Choices B & D)**. And since Miranda warnings are not needed to question a suspect during a Terry stop, the man's confession is not protected by the Fifth Amendment. As a result, his motion to suppress his confession should be denied **(Choices C & D)**.

**Educational objective:**

During a Terry stop, police may (1) briefly stop and question a person if they reasonably suspect he/she is (or will soon be) involved in criminal activity and (2) frisk that person's outer garments if they reasonably suspect he/she is armed and dangerous. Additionally, Miranda warnings are not required to question a suspect during a Terry stop.

**References**

U.S. Const. amend. IV (prohibiting unreasonable searches and seizures).

Terry v. Ohio, 392 U.S. 1, 21 (1968) (holding that investigatory detentions require reasonable suspicion).

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 468–70 (1966) (listing Miranda warnings).

Berkemer v. McCarty, 468 U.S. 420, 440 (1984) (recognizing that a person is not in custody during an investigatory detention).

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Police officers received a tip that illegal drugs were being sold at a certain ground-floor apartment. They decided to stake out the apartment. The stakeout revealed that a significant number of people visited the apartment for short periods of time and then left. A man exited the apartment and started to walk briskly away. The officers grabbed the man and, when he struggled, wrestled him to the ground. They searched him and found a bag of heroin in one of his pockets. After discovering the heroin on the man, the officers decided to enter the apartment. They knocked on the door, which was opened by the woman who lived there. The officers asked if they could come inside, and the woman gave them permission to do so. Once inside, the officers observed several bags of heroin on the living room table.

The woman has been charged with possession of the heroin found on the living room table. She has filed a pretrial motion to suppress the heroin on the ground that it was obtained by an illegal search and seizure.

Should the woman's motion be granted?

A. No, because the tip together with the heroin found in the man's pocket provided probable cause for the search.

B. No, because the woman consented to the officers' entry.

C. Yes, because the officers' decision to enter the apartment was the fruit of an illegal search of the man.

D. Yes, because the officers did not inform the woman that she could refuse consent.

**Explanation:**

A court should suppress evidence that was obtained during an unreasonable Fourth Amendment search or seizure. A search or seizure is unreasonable when it is conducted without a warrant and no exception to the warrant requirement applies. The **plain view doctrine** is an exception that allows an officer to seize an item without a warrant if:

the item is in the officer's **plain view**
it is **immediately recognized as contraband** *and*
the officer is **lawfully in the area**.

An officer can lawfully enter a private area without a warrant if the officer obtains the owner's consent. **Consent** is a valid basis for entering an area if (1) the owner's consent is given **voluntarily** (ie, without police coercion) and (2) any search is limited to the **scope** of the consent.

Here, the officers saw several bags on the woman's living room table (item in plain view) that contained heroin (immediately recognizable contraband) after they entered her apartment. And since the woman voluntarily consented to their entry and the officers limited their actions to the scope of her consent, the officers were lawfully in the area. Therefore, the plain view doctrine allowed the officers to seize the heroin without a warrant, and the court should deny the woman's motion to suppress that evidence.

**(Choice A)** The tip and the heroin found in the man's pocket may have given the officers probable cause to obtain a search warrant—but did not justify their warrantless search of the woman's apartment. Instead, that search was justified because the woman consented to their entry.

**(Choice C)** Under the fruit of the poisonous tree doctrine, a court should suppress evidence that stems from an unreasonable police search. However, that search must have violated the defendant's Fourth Amendment rights—not the rights of another. Therefore, the illegal search of the *man* is not a legitimate basis to grant the *woman's* motion.

**(Choice D)** Consent is valid when it is given voluntarily—informed consent is not required. Therefore, the officers did not need to inform the woman that she had the right to refuse consent to enter her home.

**Educational objective:**

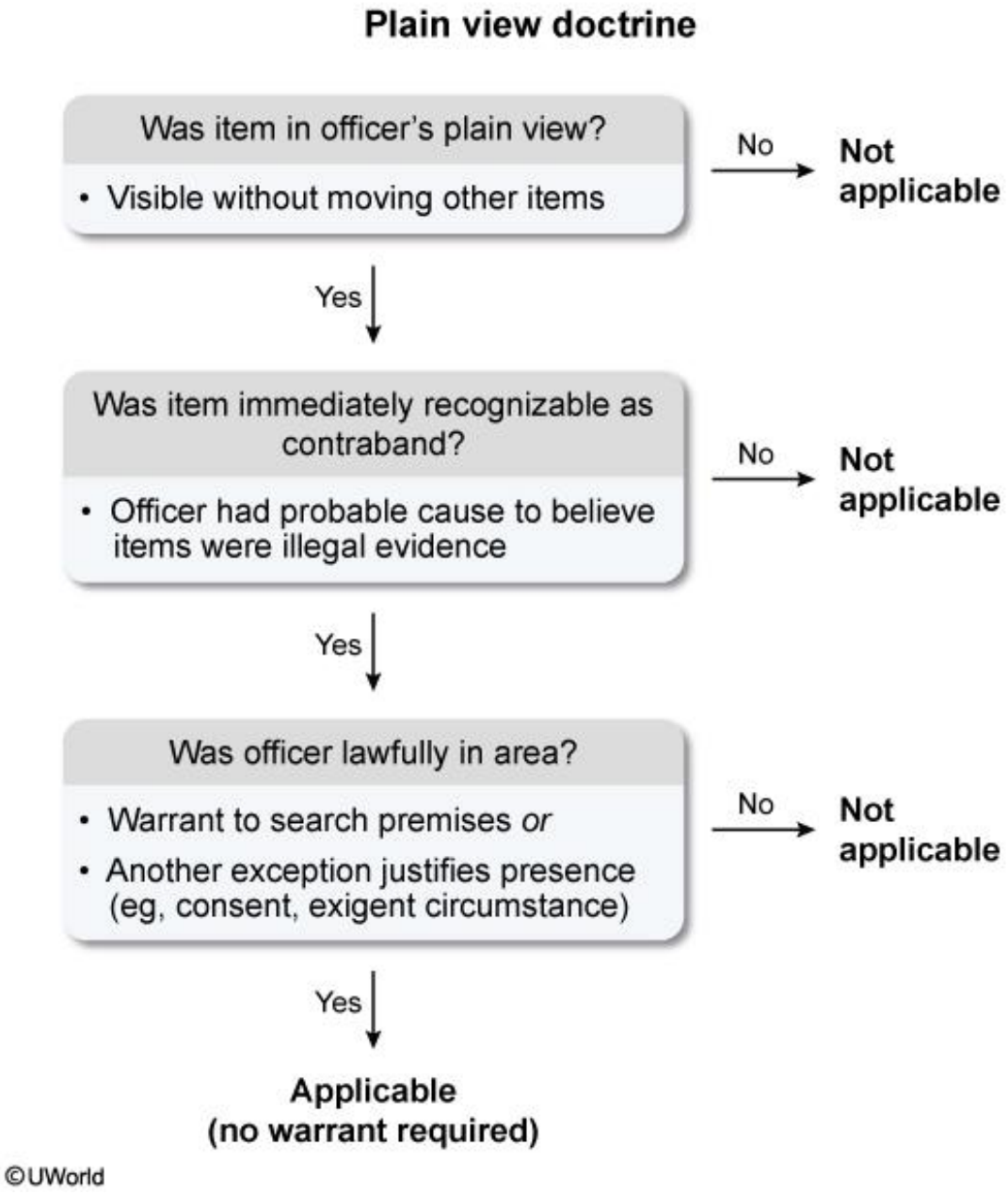
The plain view doctrine allows police to legally seize an item without a warrant if they (1) see the item in plain view, (2) immediately recognize it as contraband, and (3) are in the area lawfully (eg, consent).

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Coolidge v. New Hampshire, 403 U.S. 443, 465 (1971) (discussing the plain view doctrine).

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A defendant was convicted of fraud after a jury trial in state court. The conviction was affirmed on direct appeal.

The defendant timely moved for postconviction relief under the Sixth Amendment on the ground that his attorney had provided ineffective assistance of counsel. The trial judge, after a hearing, found that the attorney had performed deficiently by failing to raise a proper objection that would have resulted in exclusion of important prosecution evidence.

What more, if anything, must the trial court find in order to sustain the defendant's Sixth Amendment claim?

A. Nothing more, because the unjustifiable failure to object to important prosecution evidence is structural error.

B. That the attorney was court-appointed and not privately retained.

C. That there is a reasonable probability that the trial's outcome would have been different if the attorney had objected.

D. That there is clear and convincing evidence that the trial's outcome would have been different if the attorney had objected.

**Explanation:**

Criminal defendants can challenge their convictions directly (eg, appeal) and/or indirectly (eg, postconviction relief). To obtain **postconviction relief**, a defendant must file a petition in the trial court. The trial court will then hold a hearing and decide whether the defendant's conviction should be overturned.

The most common claim in a postconviction relief proceeding is that the defendant had **ineffective assistance of counsel** at trial. Under the **Sixth Amendment**—applied to the states through the Fourteenth Amendment's due process clause—all criminal defendants have the right to effective assistance of counsel. To protect that right, a defendant can have his/her conviction overturned by showing:

**deficient performance** – the attorney's performance during the trial fell below professional standards *and*

**prejudice** – there is a **reasonable probability** that, but for that deficiency, the trial's outcome would have been different.

Here, the defendant timely moved for postconviction relief for ineffective assistance of counsel. After the postconviction relief hearing, the trial judge found that the defendant's attorney had failed to raise an objection that would have excluded important prosecution evidence (deficient performance). But to sustain the defendant's Sixth Amendment claim, the trial judge must *also* find that there is a reasonable probability that the trial's outcome would have been different had the attorney objected (prejudice).

**(Choice A)** Structural errors are presumptively harmful since they affect the entire framework of a criminal trial and render it fundamentally unfair. As a result, these errors require automatic reversal on appeal. However, ineffective assistance of counsel is not a structural error because an attorney's misconduct (eg, failure to object) may be harmless. Therefore, the defendant must prove that his/her counsel's performance was deficient and prejudicial.

**(Choice B)** Criminal defendants are guaranteed effective assistance of counsel under the Sixth Amendment, regardless of whether their attorney was court-appointed or privately retained.

**(Choice D)** Ineffective assistance of counsel only requires a reasonable probability (ie, a *likely* chance)—not clear and convincing evidence (ie, a *substantially* likely chance)—that the defendant would not have been convicted had his/her attorney been competent.

**Educational objective:**

Under the Sixth Amendment, defense counsel was ineffective when (1) his/her performance was deficient and (2) there is a reasonable probability that the trial's outcome would have been different absent the deficient performance.

**References**

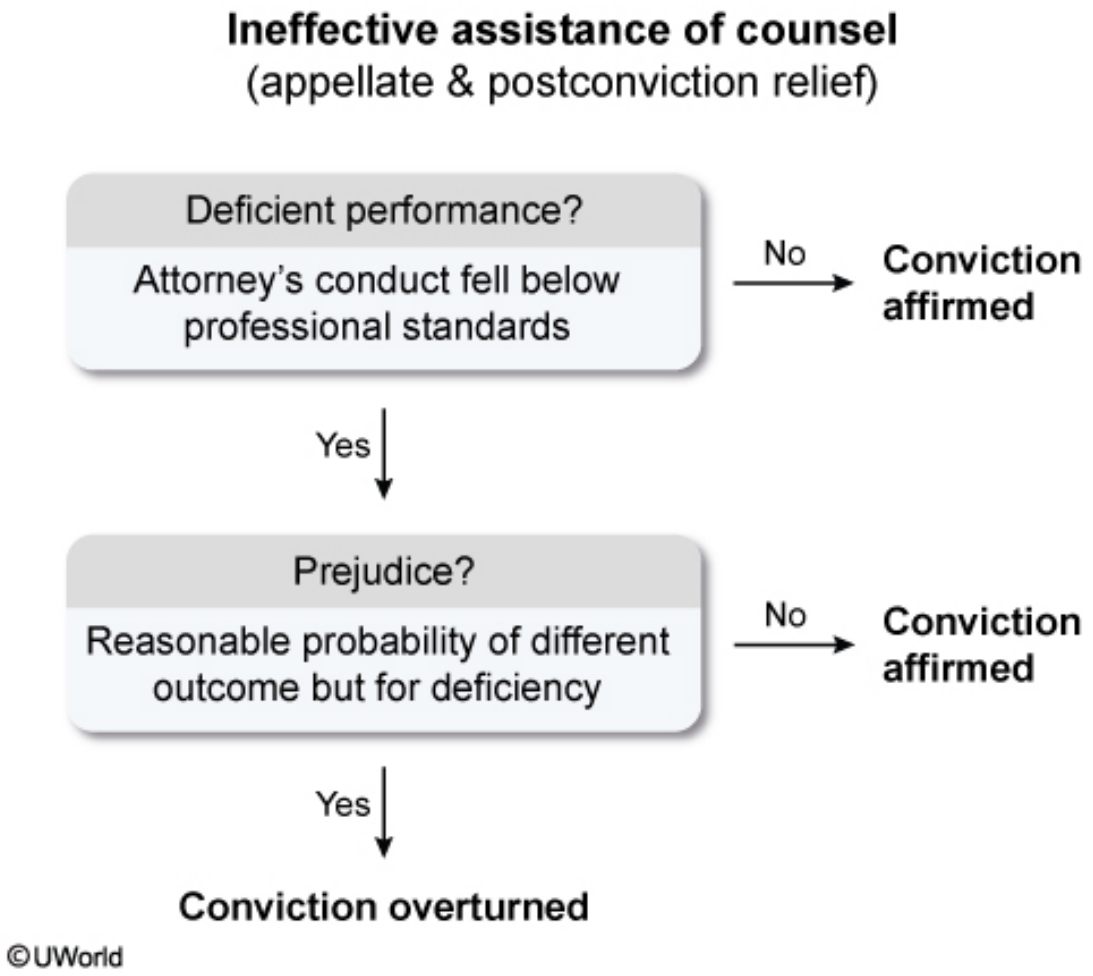
U.S. Const. amend. VI (right to effective assistance of counsel).

Strickland v. Washington, 466 U.S. 668, 687 (1984) (setting out the requirements for ineffective assistance of counsel).

Weaver v. Massachusetts, 137 S. Ct. 1899, 1910–12 (2017) (holding that postconviction relief claim of ineffective assistance of counsel requires showing of deficient performance and prejudice).

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On May 1, 2013, a car driven by a delivery man struck a pedestrian. On July 1, 2013, the delivery man pleaded guilty to reckless driving (a misdemeanor) and was sentenced to 30 days in jail and a fine of $1,000. He served the sentence and paid the fine. On April 1, 2014, the pedestrian died as a result of the injuries she suffered in the accident. On March 1, 2017, a grand jury indicted the delivery man on a charge of manslaughter of the pedestrian. On May 15, 2017, trial had not begun and the delivery man filed a motion to dismiss the indictment on the ground of double jeopardy in that his conviction of reckless driving arose out of the same incident, and on the ground that the three-year statute of limitations for manslaughter had run.

How should the court rule on the delivery man's motion?

A. Deny the motion on both grounds.

B. Grant the motion only on double jeopardy grounds.

C. Grant the motion only on statute of limitations grounds.

D. Grant the motion on either double jeopardy grounds or statute of limitations grounds.

**Explanation:**

An indictment should be dismissed if it violates the Fifth Amendment **double jeopardy** clause, which generally prohibits multiple punishments or a second prosecution for the **same offense**—ie, when crimes have identical elements *or* all elements of one crime are also elements of the other. But a second prosecution is permitted if:

the defendant was convicted of a lesser offense at the first trial

the second trial involves a **greater offense**—ie, a more serious crime that includes all elements of the first crime—*and*

the **facts necessary** to establish the greater offense **did not exist** at the time of the first trial.

Here, the delivery man pled guilty to reckless driving (lesser offense) and was then indicted for manslaughter (greater offense). These crimes constitute the same offense since manslaughter—here, an unintentional killing of another during the commission of a misdemeanor—includes the elements of reckless driving. But since the pedestrian died *after* the man was convicted of reckless driving, the man could not have been prosecuted for manslaughter at the first trial. Therefore, the indictment does not violate double jeopardy **(Choices B & D)**.

An indictment should also be dismissed if the **statute of limitations**—a statutory time limit for prosecuting a defendant for a crime—has expired before a prosecution has commenced. A statute of limitations **starts to run** (ie, the time limit begins) once all the **elements of the crime have occurred**. This helps ensure that defendants can adequately defend themselves with evidence and facts that have not been obscured by the passage of time.

Here, the three-year statute of limitations for manslaughter began when the pedestrian died on April 1, 2014. Therefore, it would not expire until April 1, 2017. And since the delivery man was indicted for manslaughter on March 1, 2017—one month before the statute of limitations was set to expire—the indictment should not be dismissed on this basis **(Choices C & D)**.

**Educational objective:**

Double jeopardy does not prohibit a second prosecution for the same offense when (1) the defendant was convicted of a lesser offense at the first trial, (2) the second prosecution involves a greater offense, and (3) the facts necessary to prove that offense did not exist during the first trial. But the defendant must be indicted before the statute of limitations expires.

**References**

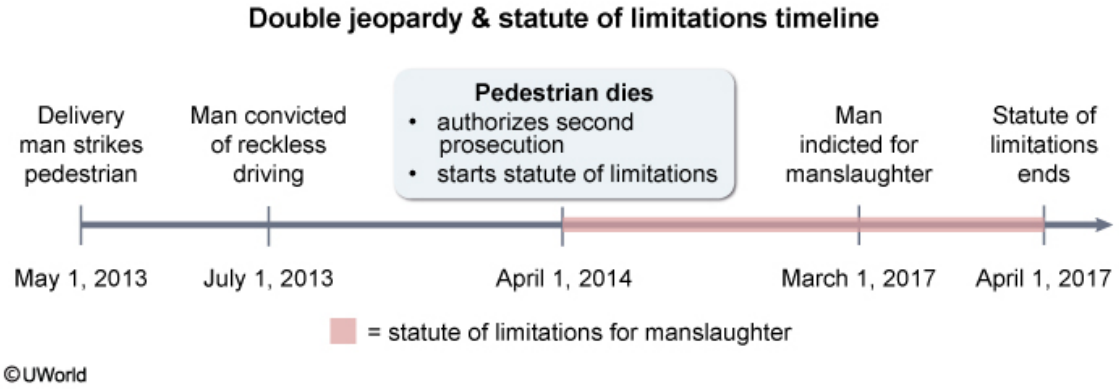
U.S. Const. amend. V (prohibition against double jeopardy).

Diaz v. United States, 223 U.S. 442, 449 (1912) (holding that double jeopardy does not prevent a second prosecution for murder when victim was alive at the time of the first prosecution for assault and battery).

Toussie v. United States, 397 U.S. 112, 114–15 (1970) (explaining the significance of statute of limitations).

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A defendant was charged with armed robbery. The defendant had only an eighth-grade education and no legal knowledge.

At a pretrial hearing, the defendant told the judge that he was unhappy with the public defender who had been appointed to represent him and that he wanted the judge to appoint another lawyer. The judge refused to appoint another lawyer, telling the defendant, with no further explanation, that his only other choice was to represent himself. The defendant said that he would represent himself at trial then, as "anything [was] better than having this lawyer."

The defendant did not raise the subject again, and he represented himself at trial. After hearing overwhelming evidence of the defendant's guilt, the jury convicted him of armed robbery. On appeal, the defendant has requested a new trial on the ground that he was deprived of his right to counsel.

Should the appellate court grant the defendant's request?

A. No, because the defendant voluntarily waived his right to counsel.

B. No, because the trial court's error was harmless in light of the overwhelming evidence.

C. Yes, because the defendant was not capable of effectively representing himself.

D. Yes, because the record does not establish a valid waiver of the right to counsel.

**Explanation:**

**Waiver of Sixth Amendment right to counsel**

| | |
|---|---|
| **Knowing** | Aware of right to counsel |
| **Intelligent** | Understands nature of charges |
| | Knows range of punishment |
| | Recognizes disadvantages of self-representation |
| **Voluntary** | Waiver is given freely |
| | Not choosing self-representation over incompetent counsel |

In *Faretta v. California*, the Supreme Court held that a criminal defendant may only **waive his/her Sixth Amendment right to counsel** and **engage in self-representation** if the waiver is made **knowingly, intelligently, and voluntarily**. To ensure that this standard is met, a judge must confirm on the record that the defendant is both:

aware of the nature of the charges, the range of punishment, and the disadvantages of self-representation *and*

not being forced to choose between incompetent counsel and self-representation.

Here, the defendant told the judge he was unhappy with his public defender and wanted another lawyer. The judge then forced the defendant to keep his current counsel or represent himself. Therefore, the defendant's waiver and subsequent trial were invalid, and a new trial should be granted.

**(Choice A)** The defendant did *not* voluntarily waive his right to counsel since the judge forced the defendant to choose between his existing counsel and self-representation.

**(Choice B)** Most trial court errors are reviewed on appeal for harmless error—ie, whether the error was so damaging that it caused an incorrect judgment. But structural errors (eg, deprivation of the right to counsel) are never harmless since they affect the entire framework of a trial and render it fundamentally unfair. Therefore, they require automatic reversal on appeal.

**(Choice C)** The defendant likely was not capable of effectively representing himself since he has an eighth-grade education and no legal knowledge. But a defendant has the right to engage in self-representation even if he/she cannot do so effectively, so this is not a basis for granting a new trial.

**Educational objective:**

A defendant can only waive his/her Sixth Amendment right to counsel and engage in self-representation if the trial court confirms that the defendant (1) knows the nature of the

charges, range of punishment, and disadvantages of self-representation and (2) is not being forced to choose between incompetent counsel and self-representation.

**References**

U.S. Const. amend. VI (right to assistance of counsel).

Faretta v. California, 422 U.S. 806, 834–35 (1975) (holding that right to self-representation is implicit in the Sixth Amendment but waiver of counsel must be knowing, intelligent and voluntary).

Johnson v. Zerbst, 304 U.S. 458, 465 (1938) ("[The Sixth Amendment] imposes the serious and weighty responsibility upon the trial judge of determining whether there is an intelligent and competent waiver by the accused").

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A man was charged with first-degree murder. Two lawyers were appointed to represent him because the prosecution planned to seek the death penalty. On the first day of trial, the air-conditioning malfunctioned in the courtroom, so the judge directed that the selection of the jurors take place in his chambers. Because of the large number of potential jurors, the judge directed that only one lawyer for the prosecution and one for the defense participate in the jury selection process. The defendant remained in the courtroom during the questioning of the jurors. Once the jury was selected, the trial was postponed until the next day, when the air-conditioning was again working.

Did the court's jury selection process violate the defendant's federal constitutional rights?

A. No, because a defendant's confrontation rights are limited to witnesses rather than jurors.

B. No, because there was good cause to conduct jury selection outside the defendant's presence.

C. Yes, because excluding the defendant undercut the presumption of innocence.

D. Yes, because jury selection is a critical stage at which a defendant is entitled to be present.

**Explanation:**

The **Sixth Amendment right to confrontation** guarantees a criminal defendant's right to be **present at all critical stages of trial**—ie, any event in a criminal proceeding that holds significant consequences for the defendant. **Jury selection** is a critical stage since the defendant's absence would deprive him/her of the opportunity to evaluate potential jurors in person and help decide whom to challenge. Therefore, a defendant has the right to be present during jury selection unless he/she:

**waives** this right by voluntarily leaving the proceedings *or*

is **excluded for good cause** (ie, misconduct) after receiving a warning from the court.

Here, jury selection occurred in the judge's chambers due to a malfunctioning air-conditioning system. Due to the limited space in the judge's chambers, the defendant had to remain in the courtroom. But since the defendant did not voluntarily leave or engage in misconduct, there was no good cause for his exclusion from the jury selection process **(Choice B)**. Therefore, that exclusion violated his right to confrontation.

**(Choice A)** The confrontation clause gives criminal defendants the right to be personally present during *all* critical stages of trial—including jury selection—not just to confront witnesses.

**(Choice C)** Criminal defendants are presumed innocent until the prosecution proves their guilt beyond a reasonable doubt. Therefore, excluding the defendant did not undercut this presumption since it had no effect on the prosecution's burden of proof.

**Educational objective:**

The Sixth Amendment confrontation clause guarantees a criminal defendant the right to be present during all critical stages of trial—including jury selection. A defendant can only lose this right if he/she leaves voluntarily or is removed for good cause after receiving a warning from the court.

**References**

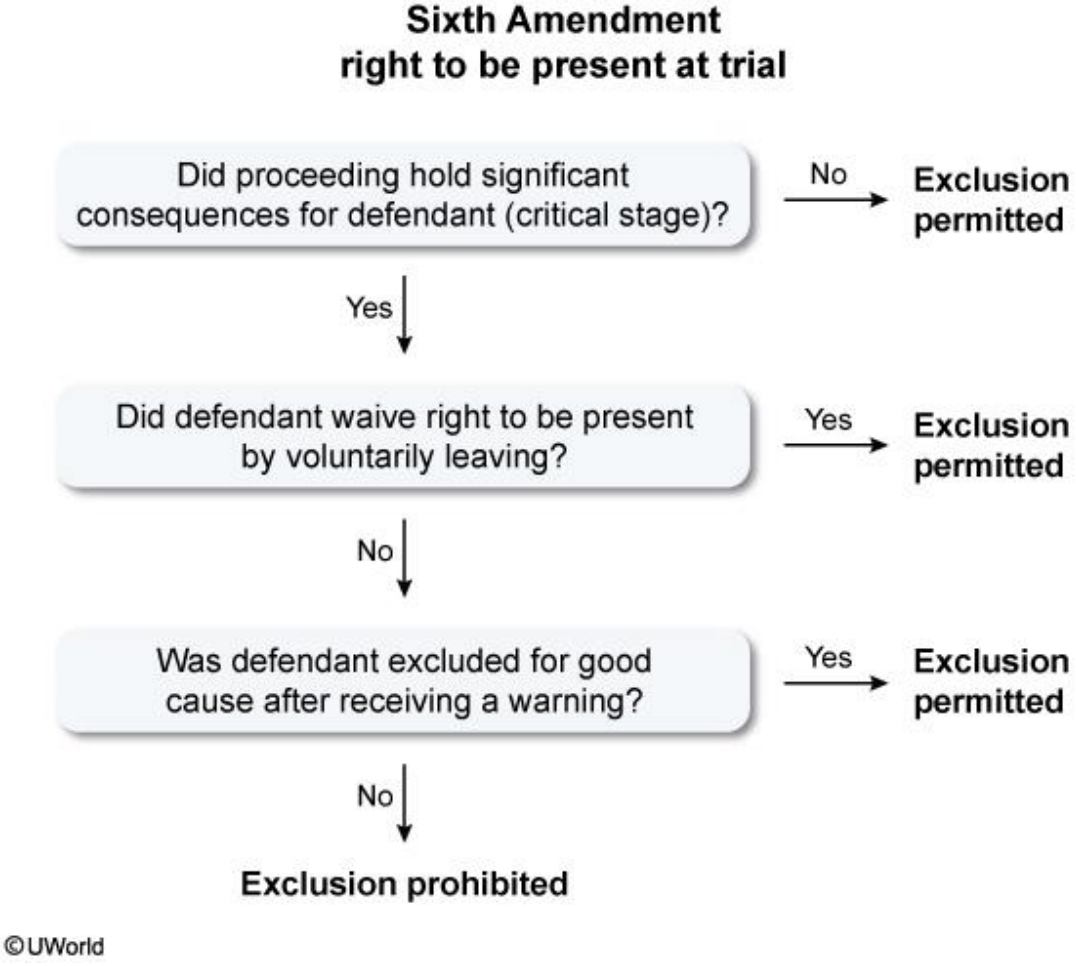
U.S. Const. amend. VI (confrontation clause).

Lewis v. United States, 146 U.S. 370, 372–73 (1892) (recognizing that the confrontation clause guarantees a criminal defendant's right to be personally present during every critical stage of trial).

Illinois v. Allen, 397 U.S. 337, 338 (1970) (holding that a defendant's right to be present at every stage of trial is lost when the defendant engages in disruptive behavior).

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Sixth Amendment
right to be present at trial
Did proceeding hold significant consequences for defendant (critical stage)?
No
Exclusion permitted
Yes
Did defendant waive right to be present by voluntarily leaving?
Yes
Exclusion permitted
No
Was defendant excluded for good cause after receiving a warning?
Yes
Exclusion permitted
No
Exclusion prohibited

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Police received information from an undercover police officer that she had just seen two men (whom she described) in a red pickup truck selling marijuana to schoolchildren near the city's largest high school. A few minutes later, two police officers saw a pickup truck fitting the description a half block from the high school. The driver of the truck matched the description of one of the men described by the undercover officer. The only passenger was a young woman.

The police stopped the truck and searched the driver. In the pocket of the driver's jacket, the police found a small bottle of pills that they recognized as narcotics. They then broke open a locked toolbox attached to the flatbed of the truck and found a small sealed envelope inside. They opened it and found marijuana. They also found a quantity of cocaine in the glove compartment.

After completing their search of the driver and the truck, the driver was arrested and charged with unlawful possession of narcotics.

If the driver moves to suppress the use as evidence of the marijuana and cocaine found in the search of the truck, how should the court rule on his motion?

A. Deny the motion as to both the marijuana and the cocaine.

B. Deny the motion as to the marijuana but grant it as to the cocaine.

C. Grant the motion as to both the marijuana and the cocaine.

D. Grant the motion as to the marijuana but deny it as to the cocaine.

**Explanation:**

**Exceptions to warrant requirement**

| **Exceptions** | **Elements** |
|---|---|
| **S**earch incident to arrest | Search of body & immediate surrounding area directly before or after lawful arrest |
| **Ad**ministrative search of highly regulated industry | Regulatory scheme has substantial government interest<br>Warrantless search necessary to further interest<br>Scheme provides constitutionally adequate substitute for warrant |
| **S**top and frisk<br>(Terry stop) | Reasonable suspicion person is (or was) involved in crime<br>Search limited to:<br>brief questioning to confirm or dispel suspicion<br>frisk if reasonably believe person is armed |
| **P**lain view doctrine | Immediately recognizable contraband in plain view of officer lawfully in area |
| **A**utomobile | Probable cause that vehicle contains evidence of crime<br>Search limited to areas where evidence might be located |
| **C**onsent | Given voluntarily by person with actual or apparent authority<br>Search limited to scope of consent |
| **E**xigent circumstance | Evanescent evidence – destruction of evidence<br>Emergency situation – threat of physical harm to police and/or public<br>Hot pursuit – pursuit of fleeing felony suspect |
| **S**pecial government purpose | Inventory search – items searched under established routine<br>Special needs (eg, search of students, government employees)<br>Parolee – warrantless search as condition of parole<br>Border search – national security allows search |

Mnemonic: **SAD SPACES**

A court should suppress evidence obtained during an unreasonable Fourth Amendment search. An unreasonable search occurs when the government acts without a warrant based on probable cause and no exception to the warrant requirement applies. The **automobile exception** justifies a warrantless police search of a person's vehicle when:

police have **probable cause** to believe that the **vehicle contains evidence of a crime** *and* the search is limited to **areas where the evidence might be located**.

During an automobile search, police can **search any containers** inside the vehicle—including locked containers—that might contain the illegal evidence. They can also seize any other illegal items discovered during this search.

Here, the police had probable cause to stop and search a truck and driver that matched the description given by the undercover officer. This allowed the police to then conduct a warrantless search of areas in the truck where the marijuana might be located—including the locked toolbox and the glove compartment. Since the police discovered marijuana and cocaine during that lawful search, they did not need a warrant to seize the illegal items. Therefore, the driver's motion to suppress should be denied **(Choices B, C & D)**.

**Educational objective:**

The automobile exception to the warrant requirement allows police to conduct a warrantless search of a vehicle if they have probable cause to believe it contains evidence of a crime. Officers can search any area within the vehicle where the evidence might be located, including locked containers.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Carroll v. United States, 267 U.S. 132, 153 (1925) (establishing the automobile exception to the warrant requirement).

United States v. Ross, 456 U.S. 798, 825 (1982) (holding that during an automobile search, police can also search containers that may contain evidence of the crime).

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Federal agents had a hunch that a local man was engaged in illegal gambling activities. An agent decided to enter the man's house while he was not at home and see what he could find. The agent discovered an envelope containing $5,000 in cash and an executive's business card. Returning the envelope to its place, the agent located and interviewed the executive, who admitted that he had paid the man $5,000 to settle a gambling debt; the executive also disclosed that the man regularly took illegal bets from the executive and several of his acquaintances. The agent then interviewed the acquaintances, who confirmed what the executive had told him. The agent then arranged to be introduced to the man at a local bar. After a few drinks, the man, unaware of the agent's identity, boasted that he was one of the biggest bookmakers in the state.

The agent testified to all of his investigation's discoveries before a grand jury, which returned an indictment against the man for illegal gambling activities, based solely on the agent's testimony. The man's attorney then filed a motion to dismiss the indictment, claiming that it rested on violations of the man's constitutional rights.

Should the court grant the motion?

A. No, because dismissal of the indictment is not the appropriate remedy.
B. Yes, because much of the agent's testimony before the grand jury was inadmissible hearsay.
C. Yes, because of the agent's unlawful search of the man's home.
D. Yes, because of the agent's violation of the man's right to counsel.

**Explanation:**

**Grounds for dismissing indictment**

| | |
|---|---|
| **Deficient indictment** | Fails to charge actual crime |
| | Omits elements of crime |
| | Statute of limitations has run |
| | Improper venue or jurisdiction |
| **Defective grand jury proceedings** | Admission of unqualified grand juror |
| | Exclusion of grand juror based on race/gender |
| | Prosecutorial misconduct |
| **Constitutional violation** | Fifth Amendment double jeopardy clause |
| | Sixth Amendment right to speedy trial |
| | Fifth/Fourteenth Amendment due process clauses |

**Grand jury proceedings** are investigatory in nature since they are used to determine whether probable cause exists to bring a criminal charge (ie, issue an indictment) against an individual. To help the grand jury in its investigation, the prosecutor can **present any evidence that may be relevant** to the grand jury's decision—even if that evidence was obtained in violation of the Fourth Amendment. And since these are not traditional judicial proceedings, the **exclusionary rule** (used to suppress illegally obtained evidence at trial) does not apply.

Here, the man filed a motion to dismiss the indictment, claiming that it was based on violations of his constitutional rights. Although the man's Fourth Amendment rights *were* violated when the agent conducted a warrantless search of the man's home, the agent's testimony regarding that search was relevant to the man's illegal gambling charge. Therefore, that testimony was properly presented to the grand jury, so the indictment should not be dismissed. Instead, the appropriate remedy will be to suppress any evidence obtained from the unlawful search at trial.

**(Choice B)** Hearsay is an out-of-court statement offered into evidence to prove the truth of the matter asserted. Although hearsay is generally inadmissible at trial, it can be presented at a grand jury proceeding where the rules of evidence do not apply. Therefore, though much of the agent's testimony would be inadmissible hearsay if offered at trial, it was properly considered by the grand jury.

**(Choice C)** A Fourth Amendment search is unlawful when it is conducted without a warrant and no exception to the warrant requirement applies (as seen here). But the exclusionary rule only prohibits the use of illegally obtained evidence at trial—not at a grand jury proceeding. Therefore, since the evidence from the unlawful search was relevant

to the grand jury's probable cause determination, it was properly presented to the grand jury.

**(Choice D)** The Fifth Amendment right to counsel is not triggered unless the defendant is subjected to a custodial interrogation. And the Sixth Amendment right to counsel does not attach until judicial proceedings have commenced (eg, indictment issued). But neither right was violated here because the man met with the agent voluntarily (no custody) and was interviewed *before* judicial proceedings began.

**Educational objective:**

The exclusionary rule prohibits the use of illegally obtained evidence at trial—not grand jury proceedings. Therefore, evidence from an unlawful Fourth Amendment search can be presented to the grand jury if that evidence may be relevant to the grand jury's probable cause determination.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Calandra, 414 U.S. 338, 351–52 (1974) (explaining that the exclusionary rule does not apply to grand jury proceedings).

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The police suspected that a 15-year-old high school student had committed a series of burglaries. One day, two officers went to the student's high school and asked the principal to call the student out of class and to search his backpack. While the officers waited, the principal took the student into the hall where she asked to look in his backpack. When the student refused, the principal grabbed it from him and found jewelry that she turned over to the officers.

The officers believed that the jewelry had been taken in one of the burglaries. They arrested the student, took him to the station, and gave him Miranda warnings. The student then asked to see a lawyer. The police called the student's parents to the station. When the parents arrived, the police asked them to speak with the student. The officers put the student and his parents in a room and secretly recorded their conversation with a concealed electronic device. The student immediately broke down and confessed to his parents that he had committed the burglaries.

The student was charged with the burglaries.

If the student moves to suppress the use of the statement he made to his parents, what is the student's best argument for exclusion?

A. Once the student had invoked his right to counsel, it was improper for the police to listen to any of his private conversations.
B. The meeting between the student and his parents was arranged by the police to obtain an incriminating statement.
C. The police did not comply with the student's request for a lawyer.
D. The student was in custody at the time the statement was recorded.

**Explanation:**

The **Fifth Amendment** protects defendants from compelled self-incrimination. To safeguard this privilege, police must give a suspect **Miranda warnings** before a custodial interrogation (suspect in custody and subjected to interrogation). Police conduct amounts to an **interrogation** if that conduct is reasonably likely to elicit an incriminating response based on the **totality of the circumstances**. Such circumstances include:

the suspect's personal characteristics (eg, age, mental capacity, religion)

whether police asked a close relative to speak with the suspect

whether police concealed that they were recording the suspect's conversations

other coercive tactics

A custodial interrogation must stop once a suspect invokes the Fifth Amendment **right to counsel**. If the interrogation continues, any statements made during that interrogation will be suppressed (ie, excluded) at trial.

Here, the student was arrested and taken to police headquarters (custody). Once he asked to see a lawyer, no interrogation should have occurred. However, the totality of the circumstances suggests that an interrogation took place since:

the student was only 15 years old

the police asked his parents to speak with him *and*

the police secretly recorded their conversation.

Therefore, the student's best argument for exclusion is that the police arranged the meeting with his parents to elicit an incriminating statement in violation of his Fifth Amendment rights.

**(Choice A)** Although police cannot conduct an interrogation once the Fifth Amendment right to counsel is invoked, they can still listen to a suspect's private conversations for safety or security purposes (eg, to thwart escape plans).

**(Choice C)** Police need only comply with a request for an attorney if they intend to conduct a custodial interrogation. Therefore, the officers' disregard of the student's request does not justify exclusion unless the student also shows that he was subsequently interrogated.

**(Choice D)** The Fifth Amendment excludes incriminating statements obtained when the defendant was in custody *and* subject to interrogation. Therefore, the fact that the student was in custody does not, by itself, trigger Fifth Amendment protections.

**Educational objective:**

Police conduct amounts to an interrogation when that conduct is reasonably likely to elicit an incriminating response under the totality of the circumstances, including the suspect's personal characteristics and coercive tactics.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Arizona v. Mauro, 481 U.S. 520, 526–28 (1987) (evaluating whether police conduct amounted to interrogation).

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The police suspected a woman of growing marijuana in her private residence. Narcotics officers went to her neighborhood in the middle of the night. Nothing unlawful could be seen from the street, so the officers walked into her neighbors' yard and looked in through the woman's kitchen window, which had neither drapes nor shades. The officers observed what appeared to be marijuana plants being cultivated under grow lights in the kitchen. Using this information, the officers obtained a search warrant. The execution of the warrant netted numerous marijuana plants.

The woman was charged with possession of marijuana. She has moved to suppress the marijuana plants recovered when the warrant was executed, claiming that the evidence supporting the warrant was obtained through a search that violated the Fourth Amendment.

Should the marijuana plants be suppressed?

A. No, because regardless of the lawfulness of the police conduct beforehand, they did obtain a warrant to search the woman's home.

B. No, because the woman could have no reasonable expectation of privacy concerning activities that she exposed to the view of her neighbors.

C. Yes, because no unlawful activities could be observed by the officers from any public vantage point.

D. Yes, because the officers' clandestine observation of the plants violated the woman's reasonable expectation of privacy concerning activities occurring in her home.

**Explanation:**

The woman argued that the recovered marijuana plants should be suppressed because the evidence supporting the search warrant for those plants was obtained through an unlawful Fourth Amendment search. A **Fourth Amendment search** occurs when one of the following tests is met:

**Physical trespass test** – the government physically intruded upon a constitutionally protected area, like a person's yard, to obtain information.

**Reasonable expectation of privacy test** – the government invaded (1) a person's subjective expectation of privacy (2) that society would find objectively reasonable.

A search is unlawful if it was conducted without a warrant and no exception to the warrant requirement applies. However, a court will only suppress evidence obtained from an unlawful search if the defendant has **standing** to challenge it—ie, a **legitimate expectation of privacy** (or an ownership or possessory interest) in the area or item searched. Therefore, a defendant cannot challenge an unlawful search of a third party's premises since it infringed on the third party's right to privacy—not the defendant's.

Here, a search occurred under the *physical trespass test* when the officers intruded upon the neighbors' yard. But the woman lacks standing to challenge that search because she has no legitimate privacy expectation in that yard. And though the officers looked through her uncovered window and saw marijuana plants in her kitchen, she had no objectively reasonable expectation of privacy in what she knowingly exposed to others—including her neighbors. Therefore, no search occurred under the *reasonable expectation of privacy test*, and her motion should be denied.

**(Choice A)** A court must always determine if a search warrant is supported by valid probable cause—ie, that probable cause stemmed from lawful police conduct. Therefore, the lawfulness of the police conduct before they obtained a search warrant must be considered even after the warrant was issued.

**(Choice C)** Persons have no reasonable expectation of privacy in activities knowingly exposed to others (eg, neighbors). Here, although no unlawful activities could be seen from a public vantage point (eg, the street), the woman's activities could be seen—through an *uncovered* window—from her neighbors' yard (knowingly exposed to others). As a result, the police did not violate her right to privacy, and her motion will not be granted on this basis.

**(Choice D)** The officers' clandestine (ie, secret) observation of the marijuana plants did *not* violate the woman's reasonable expectation of privacy since privacy expectations in activities exposed to one's neighbors (or the public) are objectively unreasonable.

**Educational objective:**

A Fourth Amendment search occurs when the government (1) physically intrudes upon a constitutionally protected area to obtain information or (2) invades a person's subjective

and objectively reasonable expectation of privacy. But when police search a third party's premises, a defendant has no standing to challenge that search.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Katz v. United States, 389 U.S. 347, 351 (1967) ("What a person knowingly exposes to the public, even in his own home or office, is not a subject of Fourth Amendment protection").

Rakas v. Illinois, 439 U.S. 128, 134 (1978) (explaining that a defendant only has standing to contest a search that violated his/her own Fourth Amendment rights).

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**Standing to challenge 4th Amendment search**
(legitimate expectation of privacy required)




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FBI agents, without a warrant and without the permission of foreign law enforcement or judicial officers, entered a foreign country, kidnapped a businessman—a U.S. citizen wanted in the United States for drug-smuggling violations—on the street, and forcibly drove him back to State A. Thereafter, the agents, again without a warrant, broke into the State A home of the businessman's girlfriend and arrested her.

The businessman and his girlfriend were both indicted for narcotics violations. Both moved to dismiss the indictment on the ground that their arrests violated the Fourth Amendment.

How should the court rule on their motions to dismiss?

A. Deny both motions.

B. Grant the businessman's motion but deny the girlfriend's motion.

C. Grant the girlfriend's motion but deny the businessman's motion.

D. Grant both motions.

**Explanation:**

**Grounds for dismissing indictment**

| | |
|---|---|
| **Deficient indictment** | Fails to charge actual crime |
| | Omits elements of crime |
| | Statute of limitations has run |
| | Improper venue or jurisdiction |
| **Defective grand jury proceedings** | Admission of unqualified grand juror |
| | Exclusion of grand juror based on race/gender |
| | Prosecutorial misconduct |
| **Constitutional violation** | Fifth Amendment double jeopardy clause |
| | Sixth Amendment right to speedy trial |
| | Fifth/Fourteenth Amendment due process clauses |

An **indictment** is a written statement by a grand jury that formally charges a person with a criminal offense after a finding of probable cause. It can be **dismissed for** (1) defective grand jury proceedings, (2) deficiencies in the indictment, or (3) **violations of certain constitutional rights**. Here, both defendants moved to dismiss the indictment on the ground that their arrests violated the **Fourth Amendment**. But since a Fourth Amendment violation is **not a proper basis to dismiss an indictment**, both motions should be denied **(Choices B, C, & D)**.

And even if an indictment could be dismissed based on a Fourth Amendment violation, the businessman's arrest was proper. Police can lawfully arrest persons:

outside their home if police have probable cause to believe that they committed a felony *or*

inside their home if police have a valid warrant authorizing their arrest.

Here, FBI agents kidnapped the businessman in a foreign country and drove him back to State A to face charges for narcotics violations. This arrest was valid since (1) it occurred on the street (outside his home) and (2) the police had probable cause to believe that he had committed a felony (drug smuggling). And under the *Ker/Frisbie* doctrine, a defendant can be prosecuted in the United States even if he/she was forcibly abducted from another country without a warrant or the other country's permission. Therefore, the businessman was properly indicted.

In contrast, the girlfriend's arrest was invalid since (1) it occurred inside her State A home but (2) the police had no arrest warrant. And though the court will not dismiss the indictment on this basis, she can move to suppress any evidence discovered from that illegal arrest at trial.

**Educational objective:**

An illegal Fourth Amendment arrest is not a valid basis to dismiss an indictment, but evidence obtained from an illegal arrest can be suppressed at trial.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Crews, 445 U.S. 463, 474 (1980) ("An illegal arrest, without more, has never been viewed as a bar to subsequent prosecution . . . .").

Ker v. Illinois, 119 U.S. 436, 444 (1886); Frisbie v. Collins, 342 U.S. 519, 522 (1952) (holding that a forcible abduction does not preclude prosecution).

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A man held up a drugstore at 10:30 at night and drove away. His car broke down in an isolated area just outside the small city in which the crime occurred. The man walked to the nearest house and asked a farmer if he could stay until the next morning, explaining that he had been searching for his sister's home and had run out of gas. The farmer agreed to let him sleep on a couch in the basement.

During the course of the night, the farmer began to doubt the story the man had told him. Early the next morning, the farmer called the police for help and said he was suspicious and frightened of a stranger whom he had allowed to stay the night. The police went immediately to the house to assist the farmer and walked through the open front door. They found the man and the farmer drinking coffee in the kitchen. When they saw the man, they realized he matched the description of the drugstore robber. They arrested the man and found drugs taken during the robbery in the jacket he was wearing.

The man moves to suppress the evidence of the drugs at trial. Assume that the court finds that the police did not have probable cause to believe the man was the robber until they saw him inside the farmer's house and realized he matched the description.

How should the court rule on the man's motion to suppress?

A. Deny the motion, because the man had no ownership or other possessory interest in the premises.

B. Deny the motion, because the police had the permission of the farmer to enter his house.

C. Grant the motion, because, as a guest, the man has sufficient standing to contest the entry of the house without a warrant.

D. Grant the motion, because, as a guest, the man has sufficient standing to contest the lack of probable cause at the time of the entry.

**Explanation:**

To prevail on a motion to suppress, the defendant must first establish that he/she has standing to contest the allegedly unlawful Fourth Amendment search or seizure. **Standing** exists when the defendant has:

an **ownership or possessory interest** in the place or property searched *or*
a **reasonable expectation of privacy** in that place or property.

In *Minnesota v. Olson*, the Supreme Court held that an **overnight guest** has a reasonable expectation of **privacy in the host's home** and therefore has standing to contest a government search of that home. The search will be found unlawful if it is conducted without a warrant and no exception to the warrant requirement (eg, consent) applies.

Here, though the man had no ownership or other possessory interest in the farmer's home, he did have a reasonable expectation of privacy in the premises because he was an overnight guest **(Choice A)**. This status gave him standing to contest the police entry of the house without a warrant based on probable cause **(Choices C & D)**. However, the police did not need a warrant since the farmer (who owned the home) consented to their entry when he called the police for help.

Once the police entered the farmer's home, they noticed that the man matched the description of the robber. Since this observation gave them probable cause to believe that the man committed the robbery (a felony), they could—and did—arrest him without a warrant. As part of this arrest, the police properly conducted a warrantless search of the man's body (ie, a search incident to a valid arrest). Therefore, the drugs found in his jacket should be admitted at trial.

**Educational objective:**

A defendant has standing to challenge a Fourth Amendment search when he/she has an ownership or possessory interest, or a reasonable expectation of privacy, in the place or property searched. Since an overnight guest has a reasonable expectation of privacy in the host's home, the guest has standing to contest a search of that home.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

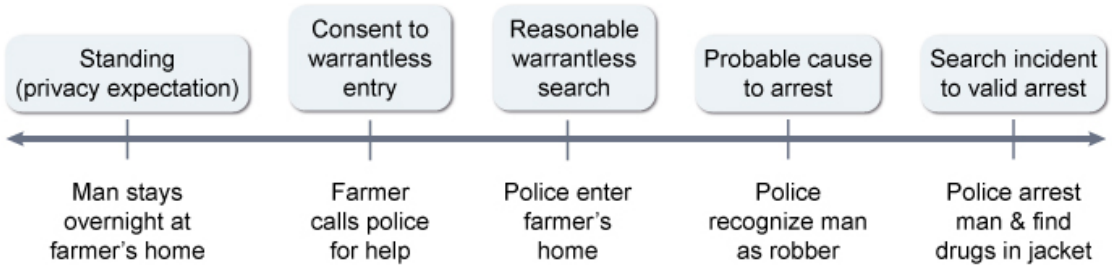
Minnesota v. Olson, 495 U.S. 91, 99–100 (1990) (holding that an overnight guest has a reasonable expectation of privacy in the host's home).

United States v. Robinson, 414 U.S. 218, 235 (1973) (explaining the search incident to a lawful arrest exception to the warrant requirement).

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**4th Amendment search & arrest timeline**




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A department store had experienced a growing incidence of shoplifting. At the store's request, the police concealed a detective at a vantage point above the women's apparel fitting rooms where she could see into these rooms, where customers tried on clothes. The detective saw a teenager enter a fitting room, shut the door, stuff a dress into her purse, leave the fitting room, and start for the street door. By prearranged signal, the detective notified another police officer near the door, who detained the teenager as she started to go out into the street. The teenager was placed under arrest, and the dress was retrieved from her purse.

The teenager is charged with shoplifting. At trial, she moves to suppress the introduction of the dress into evidence.

How will the court likely rule on her motion?

A. Deny the motion, because the detective could see into the room and thus the teenager's activities were legitimately in plain view.

B. Deny the motion, because the search and seizure were made incident to a valid arrest based on probable cause.

C. Grant the motion, because an individual has a reasonable expectation of privacy while using a department store fitting room.

D. Grant the motion, because the police should have secured a search warrant to search her purse.

**Explanation:**

The Fourth Amendment protects persons from unreasonable government searches and seizures. A Fourth Amendment **search** occurs when one of the following tests is met:

**Physical trespass test** – the government physically intruded upon a **constitutionally protected area**—a person's body, home, papers, or effects—to obtain information.

**Reasonable expectation of privacy test** – the government invaded (1) a person's **subjective expectation** of privacy (2) that society would find **objectively reasonable**.

A Fourth Amendment search is **presumptively unreasonable** if it is conducted **without a warrant**. And under the fruit of the poisonous tree doctrine, any evidence that stems from an unreasonable search should be suppressed at trial.

Here, the *physical trespass test* is not met since a department store fitting room is not a constitutionally protected area. However, the *reasonable expectation of privacy test* is met since society would find the teenager's subjective expectation of privacy in the fitting room objectively reasonable. And since the detective did not have a warrant to search the fitting room, the search was unreasonable and violated the Fourth Amendment.

Due to the unreasonable search, the detective was able to see the teenager stuff a dress into her purse. The detective then notified another police officer, who arrested the teenager and retrieved the stolen dress. And since the seizure of the dress (fruit) stemmed from the unreasonable search (poisonous tree), the court should grant the teenager's motion to suppress the introduction of the dress into evidence.

**(Choice A)** Under the plain view doctrine, police may seize an item without a warrant if (1) it is in plain view, (2) they immediately recognize it as contraband, and (3) they are *lawfully* in the area—eg, they have a warrant to search the premises for another item. Here, the detective could plainly see into the fitting room and immediately recognized the dress as evidence of the crime. But since she was there unlawfully (eg, without a warrant), this doctrine does not apply.

**(Choice B)** After making a valid arrest based on *untainted* probable cause, police may (1) conduct a warrantless search of a person's body and the area within his/her immediate control and (2) seize any evidence discovered in that search. But here, the teenager's arrest was based on *tainted* probable cause (the warrantless search of the fitting room), so the search of her purse and seizure of the dress were incident to an invalid arrest.

**(Choice D)** The police should have secured a search warrant based on *untainted* probable cause to search the teenager's purse. However, the police could not do so since they only had *tainted* probable cause supplied by the detective's unreasonable search of the dressing room. Therefore, the court will likely grant the motion to suppress because the detective violated the teenager's reasonable expectation of privacy.

**Educational objective:**

A Fourth Amendment search occurs when the government (1) physically intrudes upon a constitutionally protected area or (2) invades a person's subjective and objectively reasonable expectation of privacy. A warrantless Fourth Amendment search is presumptively unreasonable, and any evidence that stems from the search should be suppressed.

**References**

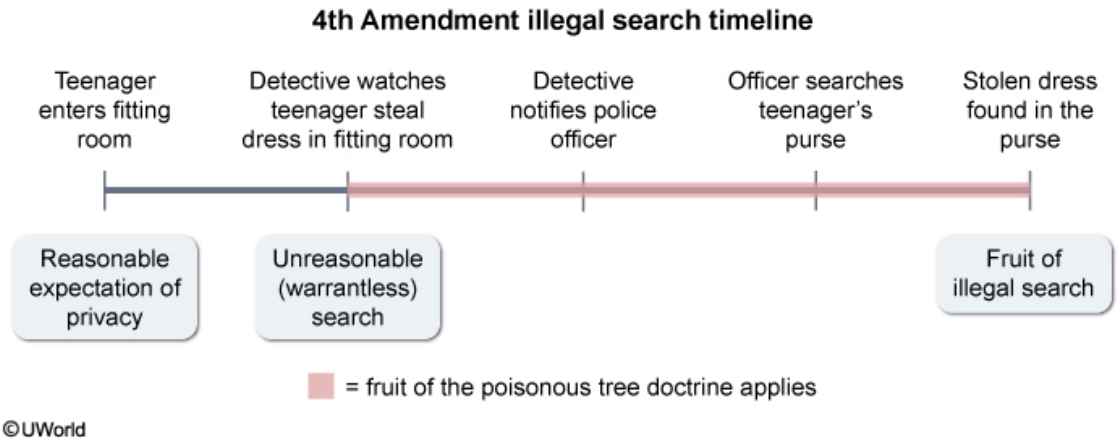
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Katz v. United States, 389 U.S. 347, 361 (1967) (establishing the reasonable expectation of privacy test).

United States v. Jones, 565 U.S. 400, 407 (2012) (explaining the physical trespass test).

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A state grand jury investigating a murder learned that the key suspect might have kept a diary. The grand jury issued a subpoena duces tecum requiring the suspect to produce any diary. The subpoena made clear that the grand jury was seeking only the diary and not any testimony from the suspect. The suspect refused to produce the diary, citing his Fifth Amendment privilege against self-incrimination.

Under what circumstances, if any, may the grand jury compel production of the diary over the suspect's assertion of his Fifth Amendment privilege?

A. It may compel production without granting immunity, because the suspect was not compelled to write a diary.

B. It may compel production if the suspect is granted use and derivative use immunity from the act of production.

C. It may compel production only if the suspect is granted transactional immunity.

D. It may not compel production of a private diary under any circumstances.

**Explanation:**

The Fifth Amendment **privilege against self-incrimination** protects suspects from being **compelled** to provide self-incriminating evidence that is **testimonial or communicative** in nature (ie, testimonial communications). For example, the compelled **act of producing a document** is privileged if that act would prove that:

the document **exists**

the suspect **possesses** the document *or*

the document is **authentic** (ie, was created or written by the suspect).

However, the **contents** of a document are not protected by this privilege since the suspect was not compelled to create that content **(Choice A)**.

Here, the grand jury compelled the suspect to produce any diary when it issued a subpoena duces tecum. The grand jury believed that the suspect *might* have kept a diary, so the suspect's act of production would *prove* that the diary exists, that he possesses it, and that it is authentic (self-incriminating evidence). As a result, the act of production is a privileged testimonial communication.

But the grand jury can still compel production of the diary over the suspect's assertion of this privilege if the suspect is granted either:

**use and derivative use immunity** – prevents the government from using self-incriminating testimonial communications (and any evidence derived from them) against the suspect in any way that could lead to a criminal prosecution (eg, to obtain a grand jury indictment, at trial) *or*

**transactional immunity** – protects the suspect from being prosecuted for any crimes associated with self-incriminating testimonial communications.

While testimony can be compelled by granting the suspect full transactional immunity, it is not necessary because the narrower use and derivative use immunity is the minimum grant of immunity required to comply with the Fifth Amendment **(Choice C)**. Therefore, the grand jury can compel production of the diary if the suspect is granted use and derivative use immunity **(Choice D)**.

**Educational Objective:**

The Fifth Amendment privilege against self-incrimination protects suspects from compelled testimonial communications—eg, the act of producing a document that would prove its existence, possession, and/or authenticity. However, self-incriminating testimony can still be compelled if the government grants use and derivative use immunity.

**References**

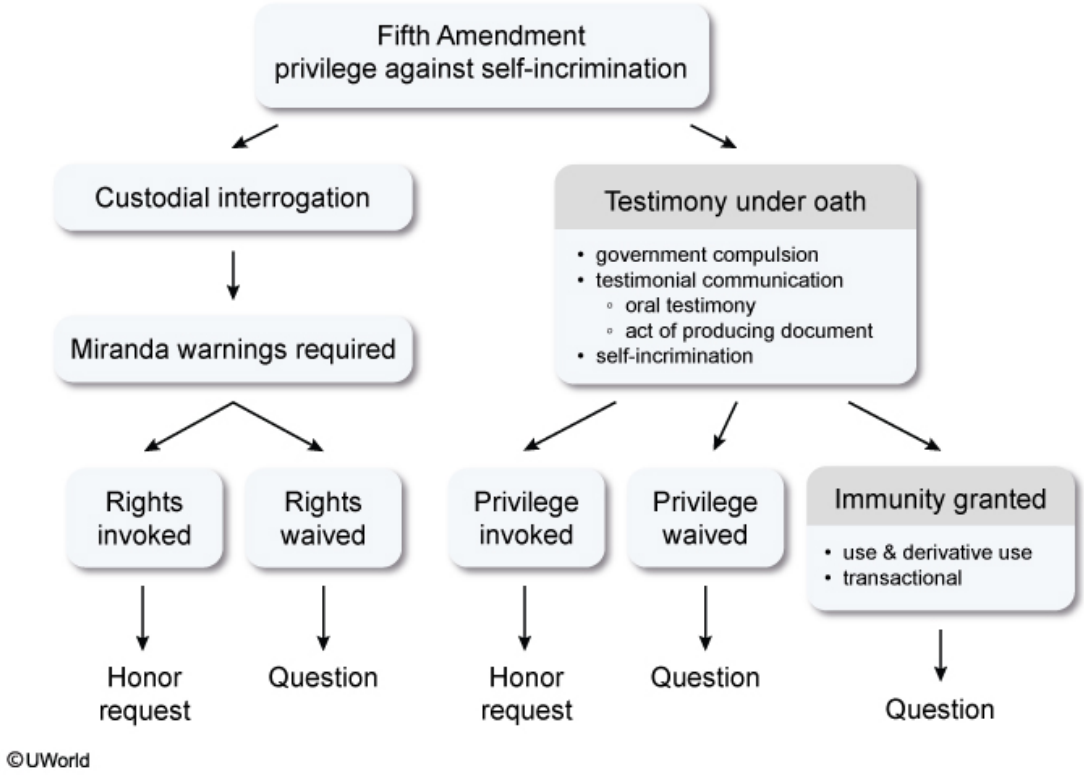
U.S. Const. amend. V (privilege against self-incrimination).

United States v. Hubbell, 530 U.S. 27, 43–44 (2000) (finding that the act of producing documents is a testimonial communication that can only be compelled by a grant of immunity).

Kastigar v. United States, 406 U.S. 441, 452–53 (1972) (holding that use and derivative use immunity is the minimum grant of immunity required to comply with the Fifth Amendment).

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After a liquor store was robbed, the police received an anonymous telephone call naming a store employee as the perpetrator of the robbery. Honestly believing that their actions were permitted by the U.S. Constitution, the police talked one of the employee's neighbors into going to the employee's home with a hidden recording device to engage him in a conversation about the crime. The neighbor went to the employee's home and was invited inside. During the conversation in the employee's home, the employee admitted having committed the robbery.

The employee was charged with the robbery in state court. He has moved to suppress the recording on the grounds that the method of obtaining it violated both his federal and his state constitutional rights.

Assume that a clear precedent from the state's highest court would result in a finding that the conduct of the police in making the recording violated the employee's rights under the state constitution, and that excluding the recording is the proper remedy.

Should the court grant the employee's motion?

A. No, because the employee's federal constitutional rights were not violated, and this circumstance overrides any state constitutional provisions.
B. No, because the police were acting in the good-faith belief that the federal Constitution permitted their actions.
C. Yes, because the making of the recording violated the employee's federal constitutional rights.
D. Yes, because the making of the recording violated the state constitution.

**Explanation:**

Although the federal Constitution sets a "floor" for personal liberties, **state constitutions may offer protections that exceed the minimum federal constitutional requirements**. And when a state's highest court sets clear precedent regarding a state constitutional right, **lower state courts** (trial and intermediate courts) **must follow that precedent** when resolving a similar legal issue.

Here, the employee moved to suppress (ie, exclude) the recording from evidence on the grounds that it was obtained in violation of his state and federal constitutional rights. The state's highest court has set a clear precedent establishing that the recording violated the employee's state constitutional rights and should be excluded from evidence. Therefore, the state court must follow this precedent and suppress the recording on this ground.

**(Choices A & C)** A defendant's Fourth Amendment rights are not violated when a government informant speaks with the defendant and secretly records their conversation (as seen here). However, compliance with the federal Constitution does not excuse a violation of a defendant's broader state constitutional protections. Therefore, the motion to suppress the recording should be granted on state constitutional grounds.

**(Choice B)** Under the good-faith exception, evidence obtained in violation of a defendant's federal constitutional rights is admissible if the police reasonably believed that they were acting lawfully (eg, that their actions were permitted by a prior court ruling). But here, the police's good-faith belief that the federal Constitution permitted the recording is irrelevant since this state's clear precedent holds that their actions violated the state constitution.

**Educational objective:**

State constitutions may offer greater protections than the federal Constitution—eg, a state exclusionary rule can suppress more evidence than the federal exclusionary rule. And lower state courts must comply with precedents from the state's highest court that interpreted those protections.

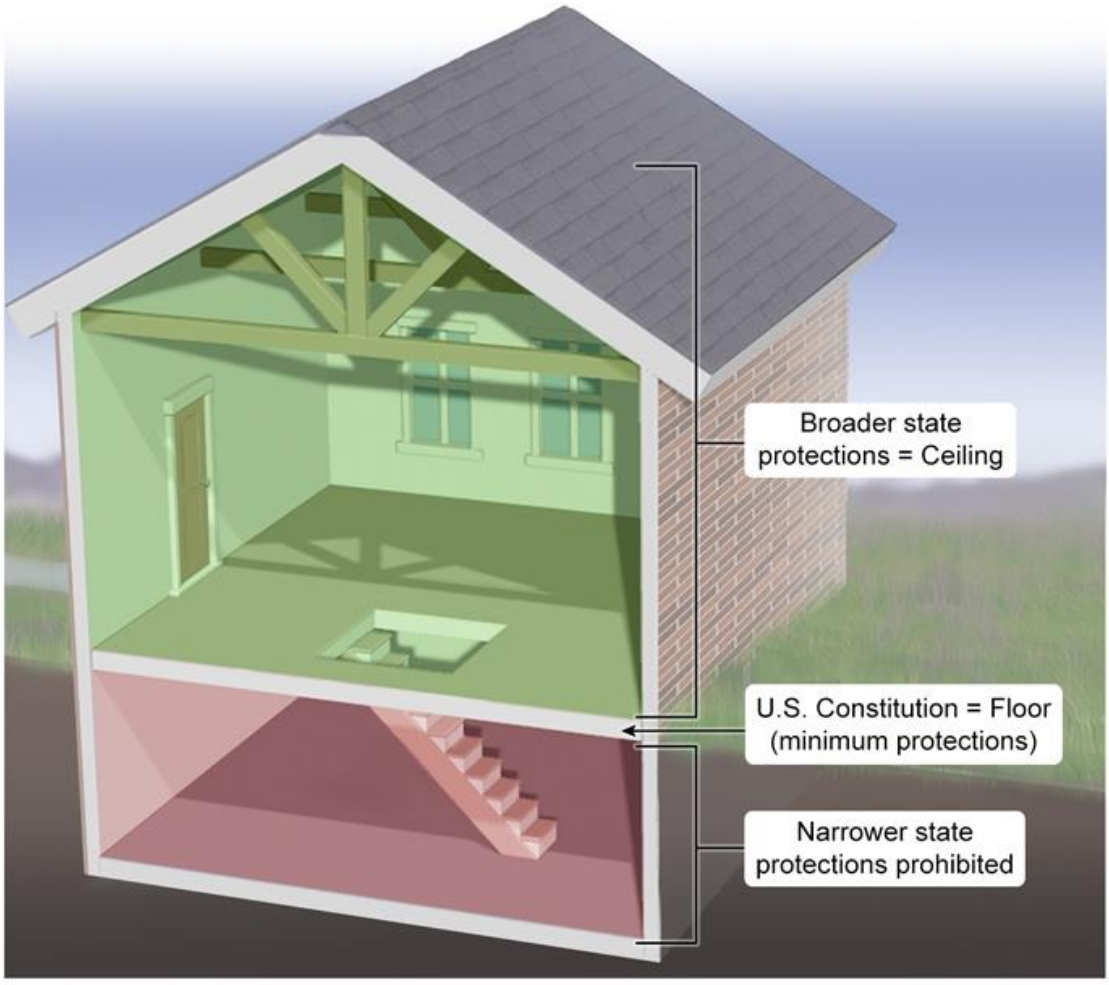
**References**

Ker v. California, 374 U.S. 23, 34 (1963) (explaining that states can grant broader rights than the U.S. Constitution).

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**Constitutional protections**




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Police responded to a call that shots had been heard coming from a certain house. Upon arriving at the house, the police looked through a window and saw a man lying on the living room floor. The police opened the front door, which was not locked, and found that the man had recently been shot in the back and was unconscious. An ambulance was called. While waiting for the ambulance, one officer walked through the house to see if anyone else was present. No one else was found, but the officer did see on the kitchen table clear bags of what he believed to be cocaine. The officer seized the bags, and laboratory tests later confirmed that the contents were cocaine.

After the ambulance arrived a few minutes later and took the man to the hospital, the police went through the house and opened drawers trying to find the gun used in the shooting. No gun was found, but upon opening a drawer in an upstairs bedroom, the police found marijuana and seized it.

Later investigation led to charging a young woman, who lived in the house, with unlawful possession of the cocaine and the marijuana. The young woman has filed a motion to suppress the use of both as evidence on the ground that the entry into the house and the searches were made without a warrant.

How should the court decide the young woman's motion?

A. Deny it as to both the cocaine and the marijuana.

B. Deny it as to the cocaine, but grant it as to the marijuana.

C. Grant it as to both the cocaine and the marijuana.

D. Grant it as to the cocaine, but deny it as to the marijuana.

**Explanation:**

A court should suppress evidence obtained during an unreasonable Fourth Amendment search—ie, a search conducted without a warrant or an exception to the warrant requirement. An **exigent circumstance** is an exception that justifies warrantless police conduct when they have **probable cause to believe** (ie, reasonably believe) that one of the following exists:

Evanescent evidence – there is an imminent threat that relevant evidence will be destroyed.

**Emergency situation** – there is an immediate threat of harm to police and/or the public.

Hot pursuit – a suspect is fleeing after a felony occurred.

During an emergency situation, police can make a warrantless **protective sweep of the premises** to search for injured individuals and any continued threats. They can also seize illegal items that are in their **plain view** without a warrant. But **once the emergency ends**, police **cannot continue to search** the premises without a warrant or another exception. If they do so, any evidence found during that search will be suppressed at trial.

Here, police went to a house in response to a call that shots had been fired. They saw a man lying on the floor, which created a reasonable belief that there was an immediate threat of harm to police or others. This emergency situation justified the officer's warrantless entry and protective sweep of the house to search for others. And since he saw cocaine sitting in plain view on the kitchen table, he lawfully seized it without a warrant. Therefore, the young woman's motion to suppress the cocaine should be denied.

However, the emergency ended once the man was taken to the hospital. Nevertheless, the police decided to search the house again to look for the gun used in the shooting. And since they did not have a search warrant and no other exception applied, this search was unreasonable. Therefore, the marijuana discovered during that search should be suppressed **(Choices A, C, & D)**.

**Educational objective:**

When police have probable cause to believe that an emergency situation exists, they can (1) conduct a warrantless search of the premises for any injured persons and continued threats and (2) seize illegal items in plain view. But once the emergency ends, the search must stop.

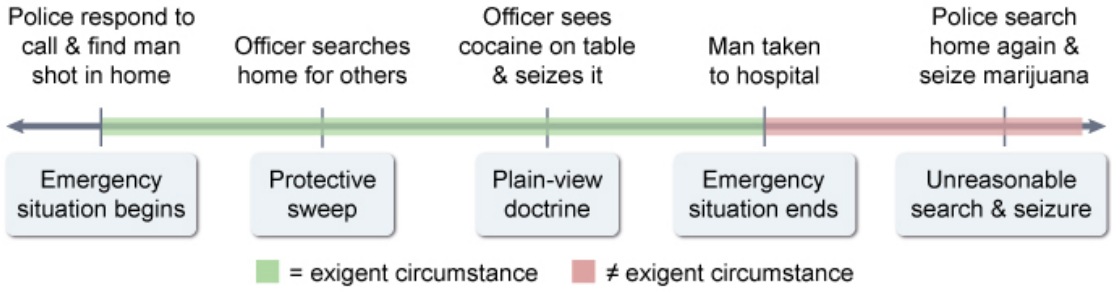
**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Mincey v. Arizona, 437 U.S. 385, 392–93 (1978) (explaining when the emergency situation exception to the warrant requirement applies).

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Police respond to call & find man shot in home
Officer searches home for others
Officer sees cocaine on table & seizes it
Man taken to hospital
Police search home again & seize marijuana
Emergency situation begins
Protective sweep
Plain-view doctrine
Emergency situation ends
Unreasonable search & seizure
= exigent circumstance
≠ exigent circumstance

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Police detectives suspected that a man was involved in a homicide committed during a robbery of a convenience store but did not have enough evidence to obtain an arrest warrant. One morning, the detectives telephoned the man and asked if he would mind coming to the police station to talk. The man agreed and met the detectives that afternoon.

Ten minutes into the interview, the detectives told the man that he was identified as a "person of interest" in the convenience store robbery and homicide and asked the man if investigators would find his fingerprints on the cash register. Suddenly, the man confessed to the detectives that he had committed the robbery but added that the store clerk's death was accidental and occurred when his gun "just went off."

The man was indicted for felony murder.

If the man files a motion to suppress the introduction of his statement into evidence, how will the court likely rule?

A. Deny the motion, because the man failed to invoke his right to remain silent during the interview with the detectives.
B. Deny the motion, because the man freely and voluntarily made the statement and was not entitled to Miranda warnings.
C. Grant the motion, because the custodial interrogation violated the man's rights to counsel and due process.
D. Grant the motion, because the man was effectively in custody and entitled to Miranda warnings once he was identified as a suspect.

**Explanation:**

Statements taken in violation of a defendant's Fifth Amendment **privilege against self-incrimination** should be excluded from evidence at the defendant's trial. To comply with this privilege, police need only administer Miranda warnings before a **custodial interrogation**—ie, when a person is in custody and subjected to interrogation. A person is in **custody** when:

the person is placed under formal arrest (eg, arrest pursuant to a warrant or based on probable cause) *or*

the person's freedom of movement is restrained to such a degree that a reasonable person would not feel free to terminate the encounter (eg, physical restraint during questioning, told by officers not free to leave).

Here, the man went to the police station voluntarily (not under arrest) and could have terminated the encounter (no restraint). Therefore, he was not in custody, and being told by the detectives that he was a suspect in the robbery-homicide would not change that fact **(Choice D)**. As a result, he was not entitled to Miranda warnings. Accordingly, the man's voluntary admission that he committed the robbery was not taken in violation of the Fifth Amendment, and his motion to suppress will likely be denied.

**(Choices A & C)** Under the Fifth Amendment, a person may invoke the right to silence and the right to counsel when subjected to custodial interrogation. Here, the man was not in custody, so these rights were never implicated. Additionally, introducing his statement into evidence would not violate his due process right to a fair trial since the confession was given voluntarily—not by coercion.

**Educational objective:**

Miranda warnings are only required when a suspect is in custody and subjected to interrogation. A suspect is in custody when formally arrested or when the suspect's freedom of movement is so restricted that a reasonable person would not feel free to terminate the encounter.

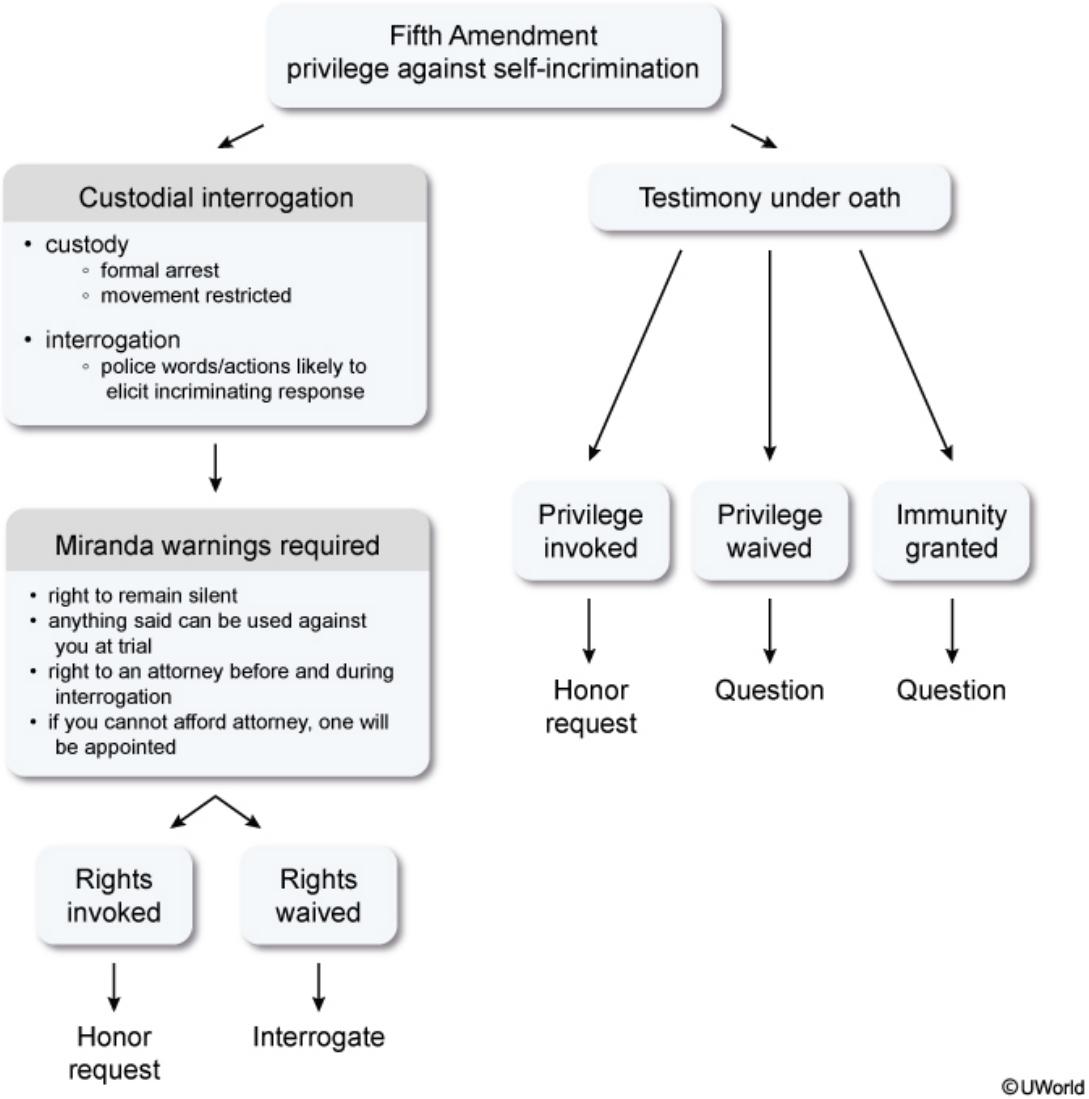
**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 469–72 (1966) (listing the warnings required prior to custodial interrogations).

Oregon v. Mathiason, 429 U.S. 492, 495–96 (1977) (explaining that custody requires a restriction on a person's freedom, not merely questioning at police station).

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Fifth Amendment
privilege against self-incrimination
Custodial interrogation
• custody
◦ formal arrest
◦ movement restricted
• interrogation
◦ police words/actions likely to elicit incriminating response
Miranda warnings required
• right to remain silent
• anything said can be used against you at trial
• right to an attorney before and during interrogation
• if you cannot afford attorney, one will be appointed
Rights invoked
Rights waived
Honor request
Interrogate
Testimony under oath
Privilege invoked
Privilege waived
Immunity granted
Honor request
Question
Question
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Police received information from an undercover police officer that she had just seen two men (whom she described) in a red pickup truck selling marijuana to schoolchildren near the city's largest high school. A few minutes later, two police officers saw a pickup truck fitting the description a half block from the high school. The driver of the truck matched the description of one of the men described by the undercover officer.

The only passenger was a young woman who was in the back of the truck. The police saw her get out and stand at a nearby bus stop. They stopped the truck and searched the driver. In the pocket of the driver's jacket, the police found a small bottle of pills that they recognized as narcotics. They then broke open a locked toolbox attached to the flatbed of the truck and found a small sealed envelope inside. They opened it and found marijuana. They also found a quantity of cocaine in the glove compartment.

After completing their search of the driver and the truck, the police went over to the young woman and searched her purse. In her purse, they found a small quantity of heroin. Both the driver and the young woman were arrested and charged with unlawful possession of narcotics.

If the young woman moves to suppress the use of the heroin as evidence, how should the court rule on her motion?

A. Deny the motion, because she had been a passenger in the truck and the police had probable cause to search the truck.
B. Deny the motion, because she was planning to leave the scene by bus and so exigent circumstances existed.
C. Grant the motion, because she did not fit the description given by the undercover officer and her mere presence does not justify the search.
D. Grant the motion, because the police should have seized her purse and then obtained a warrant to search it.

**Explanation:**

The exclusionary rule prevents the introduction of evidence found during an illegal Fourth Amendment search—ie, a search conducted without a warrant or an exception to the warrant requirement. Under the **search incident to lawful arrest** exception, police can conduct a **warrantless search** that is:

limited to a person's body and areas in his/her immediate reach *and*

conducted immediately before or after a valid arrest.

An **arrest is valid** when it is based on **probable cause**, a reasonable belief (greater than mere suspicion) that the person arrested committed a crime. But a person's **mere presence with a criminal**—or **in a vehicle** believed to contain evidence of a crime—is **insufficient** to create such a belief.

Here, the police saw the young woman exit a truck that matched the officer's description. They approached the woman, searched her purse without a warrant, and arrested her. But her arrest was not supported by probable cause (ie, it was invalid) since:

she did not fit the description of the suspected drug dealers *and*

her mere presence in the truck was insufficient grounds to believe that she had committed a crime **(Choice A)**.

And since the arrest was invalid, the warrantless search of the woman's purse conducted immediately before that arrest was also invalid **(Choice D)**. Therefore, the heroin found during that search should be suppressed.

**(Choice B)** Under the exigent circumstance exception, police can conduct a warrantless search if they reasonably believe that prompt action is necessary to prevent a suspect's escape or the destruction of evidence. Here, the woman's plan to leave the scene by bus did not create an exigent circumstance because police had no reason to believe that she was a suspect in, or had evidence of, a crime (since the undercover officer described two men).

**Educational objective:**

Police can conduct a warrantless search of a person's body or areas in his/her immediate reach if the search is conducted immediately before or after a lawful arrest. But a passenger's mere presence with a criminal or in a suspicious vehicle is not enough to establish probable cause.

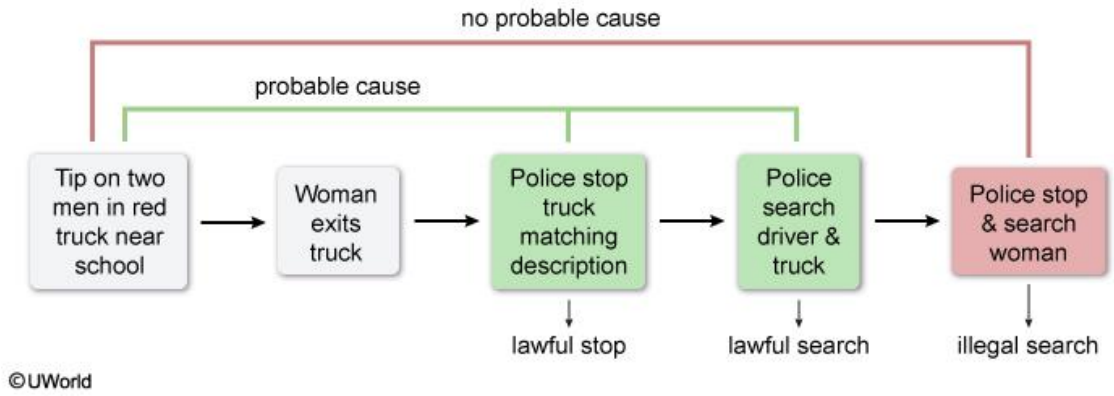
**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Di Re, 332 U.S. 581, 587 (1948) (explaining that a person's mere presence in a suspected vehicle does not forfeit his/her right to be free from unreasonable searches).

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The police obtained reliable information from an anonymous informant that a man with a reputation for violence operated a large cocaine-distribution network and kept an arsenal of weapons in his home.

One day, the informant told the police that a supply of cocaine had been delivered to the man's home and that it would be moved to a distribution point the next morning. The police obtained a valid search warrant to search for and seize the cocaine, and they went to the man's house.

The police knocked on the man's door and called out, "Police. Open up. We have a search warrant." After a few seconds with no response, the police forced the door open and entered. Hearing noises in the basement, the police ran down there and found the man holding a package of cocaine. They seized the package and put the man in handcuffs. The man cursed the police and said, "You never would have caught me with the stuff if it hadn't been for that lousy snitch!"

The man is charged with unlawful possession of cocaine. He moves pretrial to suppress the use as evidence of the statement he made.

How is the court likely to rule on the man's motion to suppress?

A. Deny the motion, because the statement was the product of a lawful public safety search.
B. Deny the motion, because the statement was volunteered.
C. Grant the motion, because the entry by forcing open the door was not reasonable.
D. Grant the motion, because the police failed to read the man his Miranda rights.

**Explanation:**

According to *Miranda v. Arizona*, a defendant's motion to suppress an incriminating statement should be granted if that statement was made when the suspect was in custody and interrogated without receiving **Miranda warnings**:

The suspect has the right to remain silent.

Anything said can be used against the suspect in court.

The suspect has the right to counsel prior to and during questioning.

The suspect has the right to an appointed attorney if he/she cannot afford one.

An **interrogation** occurs when police direct questions, words, or actions at a suspect that they know or should know are reasonably likely to **elicit an incriminating response**. Since **volunteered statements** (ie, spontaneous or unprompted remarks) are freely offered, they are not elicited by an interrogation. Therefore, volunteered statements are **admissible** even if the speaker had not been Mirandized.

Here, the man was in custody when the police apprehended and handcuffed him in his home. But his statement is admissible since he was not being interrogated when he *spontaneously* shouted, "You never would have caught me with the stuff if it hadn't been for that lousy snitch." Therefore, the police did not need Mirandize him and his motion to suppress the statement will likely be denied **(Choice D)**.

**(Choice A)** Under the public safety exception, police do not need to Mirandize a suspect before an interrogation that is reasonably prompted by a public safety concern. Since the man's statement was not the product of an interrogation, this exception does not apply.

**(Choice C)** Forcible entry into a home to execute a warrant is reasonable if police first announce their presence and give the occupant a reasonable opportunity to open the door (knock and announce rule). However, police need not follow that rule if there is a credible threat of physical violence (eg, the man's violent reputation and weapons arsenal). Additionally, suppression is not a remedy for a violation of this rule.

**Educational objective:**

Volunteered (ie, spontaneous or unprompted) statements are not protected by Miranda and are admissible at trial because they are freely offered by the suspect—not elicited by police interrogation.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 444–45 (1966) (listing the warnings required before custodial interrogation).

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## Incriminating statements

Elicited statement




Custody + Interrogation
=
Miranda required

Volunteered statement




Custody + No interrogation
=
No Miranda required

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A police officer stopped a driver who had run a red light. Upon approaching the car, the officer noticed a strong odor of alcohol and immediately asked whether the driver had been drinking. The driver admitted having had several alcoholic drinks that evening.

The driver, charged with driving while intoxicated, moved to suppress the officer's testimony regarding the driver's statement about his drinking. The driver argued that the officer had elicited the statement without providing the requisite Miranda warnings. The prosecutor has responded that the statement should be allowed in the prosecution's case-in-chief or, at a minimum, should be allowed as impeachment in the event the driver testifies and denies drinking.

How should the court rule regarding the driver's statement admitting his drinking?

A. The statement should be allowed, because although the driver was in custody, the officer's spontaneous utterance upon smelling alcohol did not rise to the level of interrogation.

B. The statement should be allowed, because the driver was not in custody for Miranda purposes when the admission was made.

C. The statement should be suppressed both in the prosecution's case-in-chief and as impeachment evidence, even if the driver testifies.

D. The statement should be suppressed in the prosecution's case-in-chief, but it may be used as impeachment evidence if the driver testifies.

**Explanation:**

A defendant's motion to suppress an incriminating statement should be granted if law enforcement failed to provide **Miranda warnings** prior to a **custodial interrogation**. A custodial interrogation occurs when a person is:

**in custody** – placed under formal arrest *or* restrained in his/her freedom of movement to such a degree that a reasonable person would not feel free to terminate the encounter and leave *and*

**subjected to interrogation** – express questions, words, or actions directed at a suspect that an officer knows or should know are likely to elicit an incriminating response.

Although **traffic stops** restrain freedom of movement, drivers are generally **not in custody** for Miranda purposes because those police encounters are typically brief.

Here, the officer stopped the driver for a red-light violation (traffic stop). The officer noticed a strong odor of alcohol and immediately asked the driver if he had been drinking (interrogation). However, the officer was not required to give Miranda warnings before doing so because the driver was *not in custody* for Miranda purposes. Therefore, the driver's statement admitting his drinking should be allowed in the prosecution's case-in-chief.

**(Choice A)** The officer's question about drinking was directed at the driver and reasonably likely to elicit an incriminating response; therefore, it was an interrogation. But since the driver was not in custody, his statement should be admitted.

**(Choices C & D)** Since the officer was not required to provide Miranda warnings, the prosecution should be allowed to use the driver's admission in its case-in-chief. But even if that admission was suppressed, it could be used as impeachment evidence if the driver later testifies contrary to that admission.

**Educational objective:**

Miranda warnings protect persons from self-incrimination when they are in custody and subjected to interrogation (custodial interrogations). Since drivers are generally not in custody during traffic stops, Miranda warnings need not be provided before brief police questioning.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 468–70 (1966) (listing Miranda warnings).

Berkemer v. McCarty, 468 U.S. 420, 440 (1984) (recognizing that a person is not in custody during an investigatory detention).

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A wife was the prime suspect in the murder of her husband. The wife had called 911 and reported that her husband had discovered an intruder breaking into their home in the middle of the night, the husband had fought with the intruder, and the intruder had shot the husband. However, the police could find no evidence of a break-in or defensive wounds on the husband. As a result, a detective brought the wife to an interrogation room at the police station and questioned her for a number of hours. The interrogation was recorded. After claiming that she had not murdered her husband, the wife, who never received any Miranda warnings, finally voluntarily admitted that she had shot her husband. The wife was then charged with murder.

At trial, the wife took the stand and denied shooting her husband. In order to impeach the wife's credibility, the prosecution now seeks to introduce her previous statement made to the detective admitting that she had shot her husband. The wife's attorney has objected.

Is the wife's previous statement admissible?

A. No, because the statement was made after the wife had been questioned for hours.

B. No, because the statement was taken in violation of the wife's Miranda rights.

C. Yes, because the statement was recorded.

D. Yes, because the statement was voluntary.

**Explanation:**

To comply with the **Fifth Amendment** privilege against self-incrimination, police must give suspects Miranda warnings before a custodial interrogation. **Statements taken without** the issuance of **Miranda warnings** cannot be used directly in deciding ultimate issues of guilt or innocence. However, such statements can be **used for** the limited purpose of **impeaching** the **criminal defendant's inconsistent testimony** if they were **voluntary and trustworthy**.*

Here, the wife's previous statement—that she shot her husband—contradicts her present testimony denying that she did so. The wife voluntarily gave the statement, and there is no indication that the statement was coerced or otherwise untrustworthy. Therefore, the wife's previous statement is admissible to impeach her credibility even though the statement was taken in violation of her Miranda rights **(Choice B)**.

*This ensures that the government's use of unlawfully obtained evidence remains limited, while also preventing the defendant from using the government's mistake as a shield against untruthful testimony.

**(Choice A)** Although the wife had been questioned for a number of hours, there is no indication that she was exhausted or that her statement about shooting her husband was coerced.

**(Choice C)** The fact that the wife's statement was recorded has no bearing on its admissibility and therefore is not relevant to the analysis at hand.

**Educational objective:**

Statements taking in violation of Miranda cannot be used directly in deciding ultimate issues of guilt or innocence. However, such a statement can be used for the limited purpose of impeaching the criminal defendant's inconsistent testimony if the statement was voluntary and trustworthy.

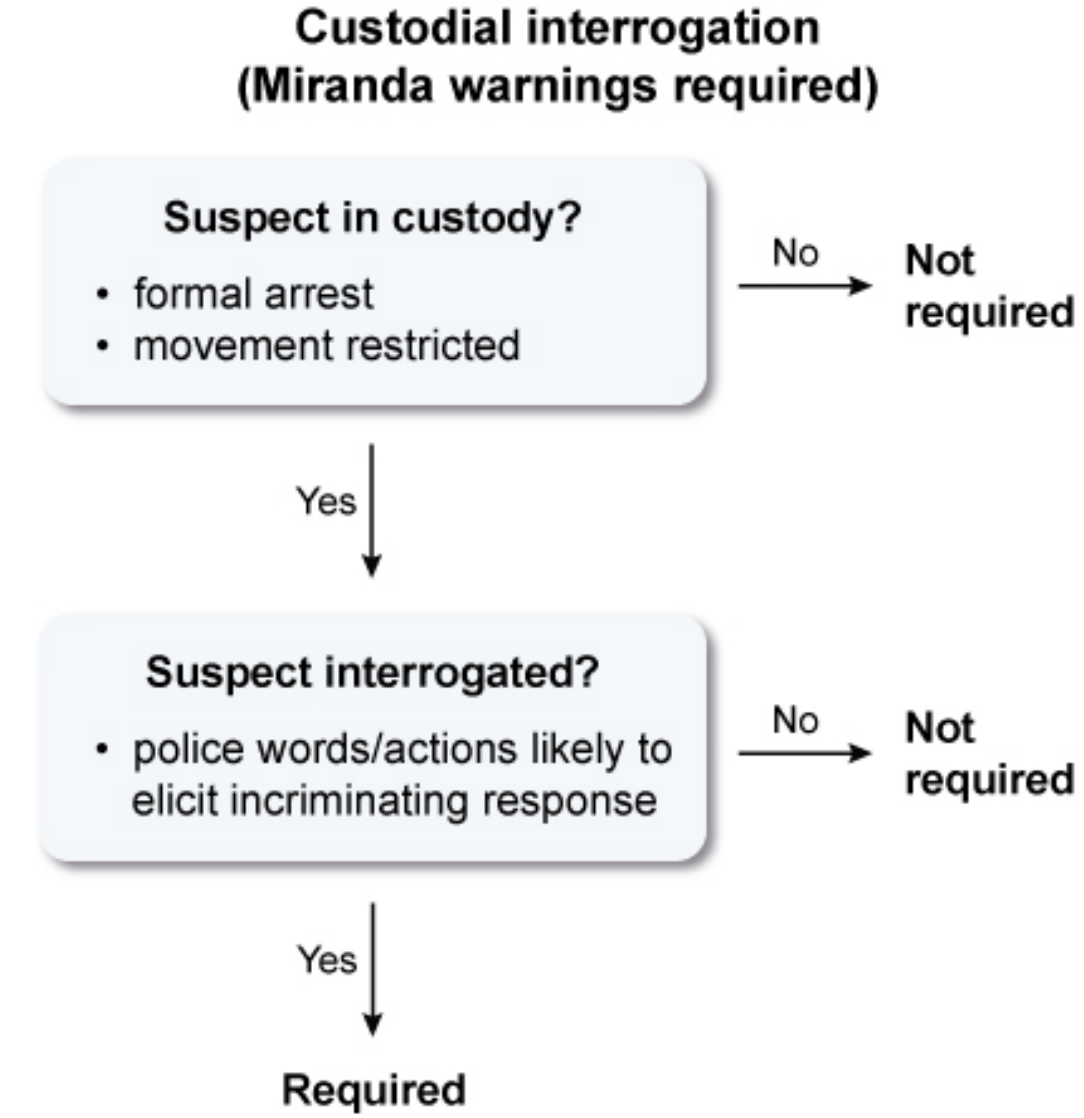
**References**

U.S. Const. amend. V (privilege against self-incrimination).

Harris v. New York, 401 U.S. 222, 224–25 (1971) (discussing the use of statements taken in violation of Miranda for impeachment purposes).

Miranda v. Arizona, 384 U.S. 436, 468–70 (1966) (listing Miranda warnings).

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Custodial interrogation
(Miranda warnings required)
Suspect in custody?
• formal arrest
• movement restricted
No
Not required
Yes
Suspect interrogated?
• police words/actions likely to elicit incriminating response
No
Not required
Yes
Required

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A federal grand jury was investigating a corporation whose tanker ship had spilled crude oil into environmentally sensitive waters. The grand jury issued a subpoena requiring the corporation to produce all emails and internal documents regarding the corporation's knowledge of the risks of an oil spill. The corporation has objected, citing its Fifth Amendment privilege against self-incrimination.

Can the subpoena be enforced?

A. No, because the corporation was not granted transactional immunity.

B. No, because the corporation was not granted use-and-derivative-use immunity.

C. Yes, because a corporation has no Fifth Amendment privilege.

D. Yes, because the Fifth Amendment privilege does not apply to the compelled production of documents.

**Explanation:**

A **subpoena** is a written order that compels a witness to testify or produce documents in his/her possession. If a subpoena seeks testimonial communications that may be incriminating, the witness can avoid the subpoena by asserting the Fifth Amendment **privilege against self-incrimination**. However, this privilege can be invoked only by **natural persons** (eg, individuals, sole proprietorships)—**not artificial entities** (eg, corporations, partnerships).

Here, the corporation objected to the grand jury's subpoena requiring it to turn over all emails and documents related to its knowledge of the risks of an oil spill. However, the corporation's objection was based on the Fifth Amendment privilege against self-incrimination, which does not apply to corporations (artificial entities). Therefore, the corporation's objection will be overruled, and the subpoena will be enforced.

**(Choices A & B)** An individual who invokes the Fifth Amendment privilege against self-incrimination can still be required to provide testimonial communications if that individual receives:

transactional immunity – protects an individual from being prosecuted for any crimes associated with his/her testimonial communications *or*

use and derivative use immunity – prevents the government from using an individual's testimonial communications (and any evidence derived from them) against him/her in future criminal proceedings.

But since a corporation has no Fifth Amendment privilege, the subpoena can be enforced even if the corporation did not receive immunity.

**(Choice D)** The Fifth Amendment privilege against self-incrimination *does apply* to the compelled production of documents when their production would admit that (1) the documents exist, (2) the suspect possesses them, or (3) the documents are authentic. But since corporations cannot assert this Fifth Amendment privilege, the corporation must produce all the subpoenaed documents.

**Educational objective:**

The Fifth Amendment privilege against self-incrimination can be asserted only by natural persons—not artificial entities like corporations.

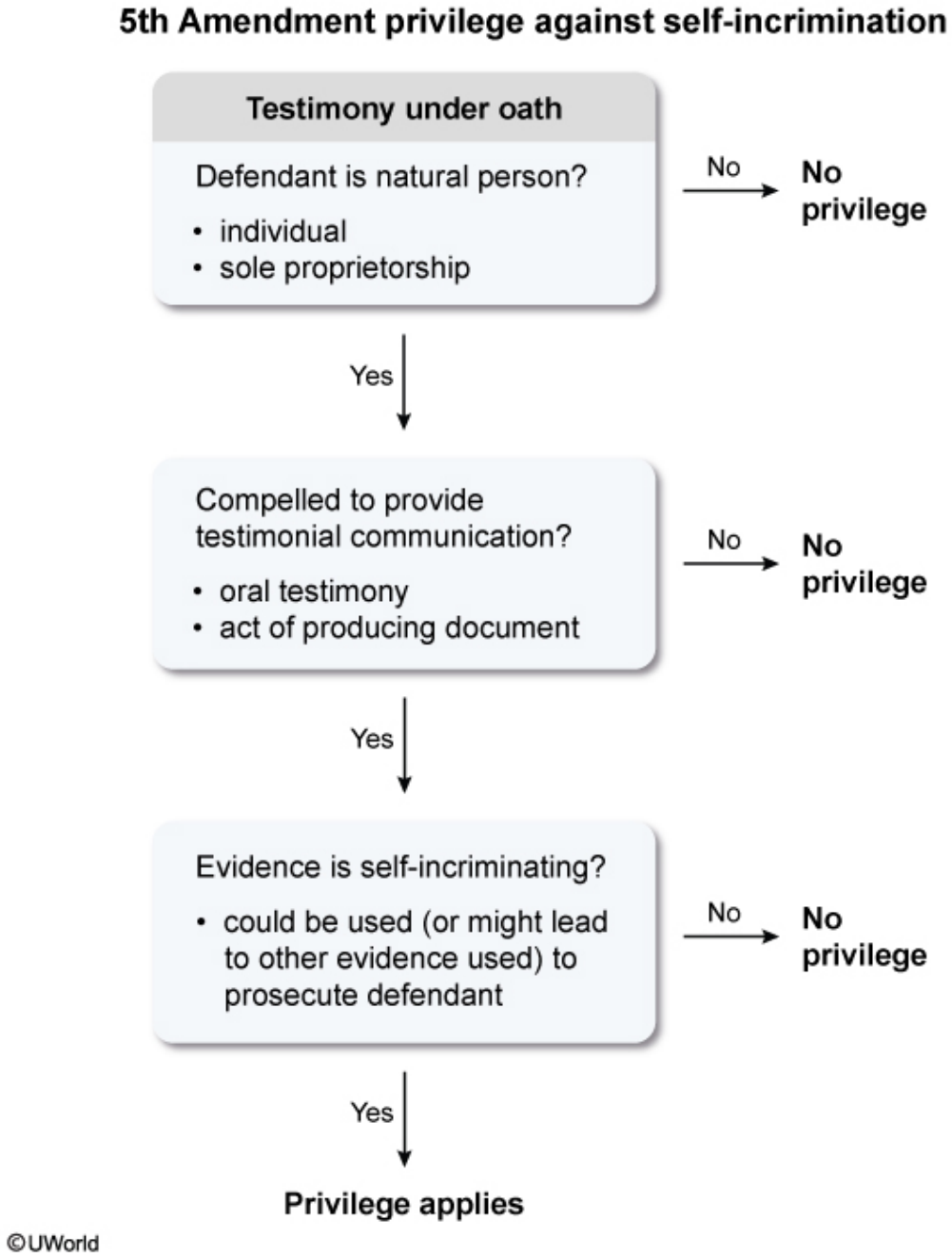
**References**

U.S. Const. amend. V (privilege against self-incrimination).

Hale v. Henkel, 201 U.S. 43, 69–70 (1906) (holding that corporations have no Fifth Amendment privilege against self-incrimination).

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A man was indicted in a state court in January 2015 for a robbery and murder that occurred in December 2012. He retained counsel, who filed a motion to dismiss on the ground that the man had been prejudiced by a 25-month delay in obtaining the indictment. Thereafter, the man appeared in court with his counsel for arraignment and stated that he wished to plead guilty.

The presiding judge asked the man whether he understood the nature and essential elements of the charges, possible defenses, and maximum allowable sentences. The man replied that he did, and the judge reviewed all of those matters with him. He then asked the man whether he understood that he did not have to plead guilty. When the man responded that he knew that, the judge accepted the plea and sentenced him to 25 years.

Six months later, the man filed a motion to set aside his guilty plea on each of the following grounds.

Which of these grounds provides a constitutional basis for relief?

A. The judge did not determine that the man had robbed and killed the victim.

B. The judge did not determine whether the man understood that he had a right to jury trial.

C. The judge did not determine whether the prosecutor's file contained any undisclosed exculpatory material.

D. The judge did not rule on the man's motion to dismiss before accepting the guilty plea.

**Explanation:**

**Due process requirements for guilty plea**

| | |
|---|---|
| **Voluntary** | Defendant's free & deliberate choice |
| **Knowing & intelligent** | Defendant aware of: |
| | nature & essential elements of offense |
| | maximum & mandatory minimum sentences |
| | waiver of constitutional right to: |
| | plead not guilty & proceed to jury trial |
| | remain silent |
| | counsel (Sixth Amendment) |
| | confront adverse witnesses |
| | subpoena witness testimony (compulsory process) |

Due process requires that a guilty plea be made (1) **voluntarily**—the product of the defendant's free and deliberate choice *and* (2) **knowingly and intelligently**—with sufficient awareness of the relevant circumstances and likely consequences of the plea. Therefore, before accepting a guilty plea, the **trial judge must ensure** (in open court and on the record) that the **defendant is aware of** the following:

the nature and essential elements of the **charged offense**

the **maximum** and any mandatory **minimum sentence** that can be imposed after a guilty plea *and*

the **constitutional rights being waived**—e.g., right to trial by jury.

If the judge fails to do so, the guilty plea is constitutionally invalid and should be set aside. The defendant is then entitled to plead anew (i.e., plead not guilty and stand trial).

Here, the man notified the judge that he wished to plead guilty. The judge then asked if the man understood the nature and essential elements of his charges, the maximum allowable sentence, and that he did not have to plead guilty. But since the judge failed to also determine if the man understood that he had a right to a jury trial—and that this constitutional right (and others) would be waived if he pled guilty—the plea was invalid and should be set aside.

**(Choice A)** A judge need not determine whether the defendant actually committed the charged crime before accepting his/her guilty plea.

**(Choice C)** The judge is not required to determine if the prosecutor's file contains undisclosed exculpatory material—i.e., evidence used to negate a defendant's guilt or mitigate punishment—before accepting a guilty plea. Additionally, the prosecution need only disclose such material before trial, not before a guilty plea.

**(Choice D)** The defendant is required to obtain a ruling on a motion before entering a guilty plea. If the defendant fails to do so (as seen here), the judge need not rule on the motion since it is considered waived. However, the defendant can reassert the motion if the guilty plea is set aside and he/she pleads not guilty.

**Educational objective:**

Due process requires that guilty pleas be made (1) voluntarily—a free and deliberate choice *and* (2) knowingly and intelligently—with sufficient awareness of the nature and essential elements of the charged offense, the ranges of possible punishment, and the constitutional rights being waived.

**References**

McCarthy v. United States, 394 U.S. 459, 466 (1969) (recognizing that a plea of guilty must be voluntary, knowing, and intelligent to comply with due process).

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A farmer had been missing for several months. The sheriff's department received an anonymous tip that a woman, the farmer's business rival, had buried the farmer in a hillside about 200 yards from the woman's farmhouse. Sheriff's deputies went to the woman's farm. They cut the barbed wire that surrounded the hillside and entered, looking for the grave. They also searched the adjacent fields on the woman's farm that were within the area enclosed by the barbed wire and discovered clothing that belonged to the farmer hanging on a scarecrow. The woman was later charged with murder.

If the woman moves to exclude the introduction of the farmer's clothing into evidence, how will the court likely rule on the motion?

A. Deny the motion, because the clothing was not the woman's property.

B. Deny the motion, because the deputies did not need a warrant to search the fields around the woman's farmhouse.

C. Grant the motion, because the deputies' conduct in its entirety violated the woman's right to due process of law.

D. Grant the motion, because the deputies had not obtained a warrant.

**Explanation:**

The Fourth Amendment protects persons from unreasonable searches and seizures. To determine whether a **Fourth Amendment search** has occurred, courts use both:

the **physical trespass test** – whether the government physically intruded upon a **constitutionally protected area**—a person's body, house (dwelling and curtilage), papers, or effects—to obtain information *and*

the **reasonable expectation of privacy test** – whether the government invaded (1) a person's **subjective expectation** of privacy (2) that society would find **objectively reasonable**.

A Fourth Amendment search conducted without a warrant based on probable cause is presumptively unreasonable, and any evidence stemming from the search may be excluded at trial.

Here, the deputies found the farmer's clothes when they went onto the adjacent fields of the woman's farm. However, the deputies did not conduct a Fourth Amendment search of the fields because:

the fields lie outside the constitutionally protected area of the woman's home *and*

although the woman manifested a subjective expectation of privacy by erecting a barbed wire fence around the fields, society would find her expectation unreasonable since the public can easily view/access them.

As a result, the deputies did not need a warrant to inspect the woman's fields, and the court will likely deny her motion to exclude the farmer's clothing from evidence.

**(Choice A)** A defendant can move to suppress any evidence seized during an unreasonable search, including evidence that he/she does not own. Therefore, the fact that the clothing belonged to the farmer—not the woman—would not serve as a basis for denying her motion.

**(Choice C)** Due process protects a defendant's right to fair legal proceedings by, in part, precluding the admission of illegally obtained evidence. Here, the deputies *lawfully* obtained the farmer's clothing, so admitting that evidence would not violate due process.

**(Choice D)** Since the deputies did not conduct a Fourth Amendment search, they did not need a warrant to enter the woman's fields.

**Educational objective:**

A government intrusion upon open fields does not trigger Fourth Amendment protections since open fields are not constitutionally protected areas and persons have no reasonable expectation of privacy in those areas.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Hester v. United States, 265 U.S. 57, 59 (1924) (recognizing that open fields are not constitutionally protected areas).

Oliver v. United States, 466 U.S. 170, 179–81 (1984) (explaining that an individual has no reasonable expectation of privacy in open fields).

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A grand jury returned an indictment charging a man with bank robbery and when he could not make bond, he was jailed pending trial. He had received Miranda warnings when arrested and had made no statement at that time. The prosecutor arranged to have an undercover informant placed as the man's cellmate and instructed the informant to find out about the bank robbery without asking any direct questions about it. The informant, once in the cell, constantly boasted about the crimes that he had committed. Not to be outdone, the man finally declared that he had committed the bank robbery with which he was charged.

At the man's trial, his attorney moved to exclude any testimony from the informant concerning the man's boast.

How will the court likely rule on the motion?

A. Deny the motion, because the man had received Miranda warnings.

B. Deny the motion, because the man was not interrogated by the informant.

C. Grant the motion, because the man's privilege against self-incrimination was violated.

D. Grant the motion, because the man's right to counsel was violated.

**Explanation:**

**Right to counsel**

| | **Applicability** | **Request** | **Waiver** |
|---|---|---|---|
| **Fifth Amendment** | Suspect has right to counsel when:<br><br>in custody *and*<br>subjected to interrogation | Unambiguous request required | Valid if made:<br><br>knowingly<br>intelligently<br>voluntarily |
| **Sixth Amendment** | Defendant has right to counsel when:<br><br>judicial proceedings commence *and*<br>critical stage of prosecution | No request required<br><br>(attaches automatically) | |

A court should exclude (ie, suppress) any statement that was taken in violation of a defendant's **Sixth Amendment right to counsel**. This right:

automatically attaches once judicial proceedings have commenced (eg, when the defendant is indicted) *and*

guarantees a defendant access to an attorney at every **critical stage of the proceedings**.

A critical stage is an event where the absence of counsel may prejudice the defendant's right to a fair trial, including **interrogations**. For Sixth Amendment purposes, an interrogation occurs when a **law enforcement officer or undercover police informant** engages in conduct designed to deliberately elicit an incriminating response from the defendant.

Here, the man was indicted for bank robbery (judicial proceedings commenced). After he was jailed pending trial, the prosecutor placed an undercover informant in the man's cell to get information about the bank robbery. The informant constantly boasted about his prior crimes to deliberately elicit an incriminating response from the man (interrogation) **(Choice B)**. Since an interrogation is a critical stage requiring access to counsel and no attorney was provided, the man's statement was obtained in violation of the Sixth Amendment and will likely be excluded.

**(Choices A & C)** Under the Fifth Amendment privilege against self-incrimination, law enforcement officers must give Miranda warnings to a suspect before a custodial interrogation by police. But here, the man was interrogated by an undercover informant—not a police officer. Therefore, Miranda warnings were not required, and the man's statement was not obtained in violation of this Fifth Amendment privilege. And though

police initially Mirandized the man when arrested, these warnings do not absolve the Sixth Amendment right to counsel violation.

**Educational objective:**

The Sixth Amendment right to counsel automatically attaches once judicial proceedings commence and guarantees a defendant access to an attorney during all critical stages of the prosecution—including interrogations conducted by law enforcement officers and undercover police informants.

**References**

U.S. Const. amend. VI (right to counsel).

United States v. Henry, 447 U.S. 264, 273 (1980) (recognizing that a secret interrogation conducted by a cellmate violated the Sixth Amendment right to counsel).

Illinois v. Perkins, 496 U.S. 292, 296–98 (1990) (holding that only known law enforcement must give Miranda warnings prior to custodial interrogation).

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A state statute provides that the crime of assault is generally punishable by a maximum of five years in prison. It further provides that the maximum punishment increases to 10 years in prison if the defendant possessed a deadly weapon during the assault. The statute designates the deadly weapon element as a sentencing factor.

A defendant charged with assault has pleaded not guilty and has requested a jury trial. The prosecutor has announced that she will be seeking a 10-year sentence based on the defendant's alleged possession of a deadly weapon.

What finding regarding the defendant's possession of a deadly weapon is necessary for the court to impose a 10-year sentence?

A. A judicial finding by a preponderance of the evidence.

B. A jury finding by a preponderance of the evidence.

C. A judicial finding beyond a reasonable doubt.

D. A jury finding beyond a reasonable doubt.

**Explanation:**

**Due process** requires the **prosecution to prove** every element of a criminal offense **beyond a reasonable doubt**. This includes **sentencing factors** (other than a previous conviction) that, if proven, would increase the statutorily imposed sentencing range. And when a defendant's Sixth Amendment right to an impartial jury has been invoked, a **jury must determine** whether the prosecution has met that burden. Therefore, these sentencing factors can only be imposed if the jury finds that the prosecution has proven them beyond a reasonable doubt.

Here, the defendant was charged with assault, which generally carries a five-year maximum sentence. But the prosecutor announced that she will seek a 10-year sentence based on the defendant's alleged possession of a deadly weapon. Since this sentence would heighten the statute's maximum sentencing range, it can only be imposed if a jury finds beyond a reasonable doubt that the defendant possessed a deadly weapon **(Choices A, B & C)**.

**Educational objective:**

A sentencing factor is considered an element of a criminal offense when it would increase the statutorily imposed sentencing range (if proven). Therefore, when the Sixth Amendment right to a jury trial has been invoked, the factor can only be imposed if a jury finds that the prosecution has proven it beyond a reasonable doubt.

**References**

U.S. Const. amend. VI (right to jury trial).

Apprendi v. New Jersey, 530 U.S. 466, 490 (2000) (explaining that a jury must decide facts that would increase the sentencing range).

U.S. Const. amend. XIV § 1 (due process clause).

In re Winship, 397 U.S. 358, 364 (1970) (holding that the prosecution must prove every element of a crime beyond a reasonable doubt).

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## Increasing statutory sentencing range

**Assault**
- Attempted battery *or*
- Intentionally created reasonable apprehension of imminent bodily harm

+

**Sentencing factor**
- Possession of deadly weapon

**Statutory range**: 0 to 5 years
(*judicial* sentencing allowed)




**Increased range**: 5 to 10 years
(*jury* sentencing required)




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Police, who had probable cause to arrest a man for a series of armed robberies, obtained a warrant to arrest him. At 6:00 a.m. they surreptitiously entered the man's house and, with guns drawn, went to the man's bedroom, where they awakened him. Startled, the man asked, "What's going on?" and an officer replied, "We've got you now." Another officer immediately asked the man if he had committed a particular robbery, and the man said that he had. The police then informed him that he was under arrest and ordered him to get dressed.

Charged with robbery, the man has moved to suppress the use of his statement as evidence.

What is the man's best argument for granting his motion?

A. He was not informed that he was under arrest until after he made the statement.
B. The police did not give him the required Miranda warnings.
C. The police did not have a search warrant authorizing entry into the house.
D. The statement was not voluntary.

**Explanation:**

A motion to suppress an incriminating statement should be granted if police obtained that statement in violation of the defendant's constitutional rights—including the **Fifth Amendment privilege against self-incrimination**. To comply with this privilege, police must inform suspects of their **Miranda rights** before a custodial interrogation. A **custodial interrogation** occurs when a person is:

in custody – placed under formal arrest OR restrained in his/her freedom of movement to such a degree that a **reasonable person would not feel free to leave** *and*

subjected to interrogation – questions, words, or actions directed at a suspect that police know or should know are likely to elicit an incriminating response.

Here, the man was in custody when police surreptitiously entered his bedroom with guns drawn at 6:00 a.m. because a reasonable person would not feel free to leave. Police then interrogated the man by asking if he had committed a robbery *without* first Mirandizing him. Therefore, the best argument for suppressing his incriminating response is that the police did not give him the required Miranda warnings before the custodial interrogation.

**(Choice A)** Before interrogating a suspect in their custody, police need only inform the suspect of his/her Miranda rights—not that he/she is under arrest.

**(Choice C)** Police may lawfully enter a suspect's home if they have a valid arrest warrant *or* search warrant. Here, police had a valid arrest warrant that authorized them to enter the man's home, so they did not need a search warrant to do so.

**(Choice D)** A statement is involuntary if the totality of the circumstances—eg, level of police coercion, length of interrogation, suspect's characteristics, Miranda warnings—shows that it was the product of police coercion. Since challenging the voluntariness of a statement involves more factors than a Miranda challenge, this is not the man's best argument for suppression.

**Educational objective:**

Officers must administer the Miranda warnings before interrogating a suspect in custody. A suspect is in custody when he/she is placed under formal arrest OR police have restrained his/her freedom of movement to such a degree that a reasonable person would not feel free to terminate the encounter.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 444–45 (1966) (listing the warnings required prior to custodial interrogations).

Orozco v. Texas, 394 U.S. 324, 327 (1969) (recognizing that suspect can be in custody in his own bedroom).

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United States customs officials received an anonymous tip that heroin would be found inside a distinctively marked red package mailed from a foreign country to a particular address in the United States. Pursuant to this tip, United States customs officers intercepted and opened the red package and found heroin inside. They then resealed the package and left the heroin inside it. The FBI was notified and, as agents watched, the package was delivered to the address.

The FBI then secured a warrant to search the house for the package. About two hours after the package was delivered, agents executed the warrant at the house. The man who opened the door was arrested, and the agents found the package, unopened, in an upstairs bedroom closet. After seizing the package, the agents looked through the rest of the house. They found a machine gun in a small footlocker in the basement.

The man was charged with unlawful possession of the machine gun, among other crimes. He moved to suppress the use of the gun as evidence.

Should the court grant the motion to suppress the machine gun?

A. No, because, having found the package, the agents had probable cause to believe that more narcotics could be located in the house and the gun was found in a proper search for narcotics.

B. No, because narcotics dealers are often armed and the search was justified to protect the agents.

C. Yes, because the initial search by the customs officers was without probable cause.

D. Yes, because the search exceeded the authority granted by the warrant.

**Explanation:**

Generally, a **Fourth Amendment search or seizure** must be **authorized by a warrant** that particularly describes the place to be searched and the items to be seized. Officers may seize illegal items discovered during the authorized search but **cannot exceed the warrant's authority**. Therefore, once items specified in the warrant are **seized**, the search **must end** unless another warrant is obtained or an exception to the warrant requirement applies. But if the search **instead continues**, any items seized during that illegal search should be **suppressed**.

Here, federal agents obtained a warrant to search the man's house for a red package (item specified in the warrant). Once they seized that package, their search should have ended. Instead, the agents exceeded the warrant's authority by continuing to search the house. And since the machine gun was discovered during that unreasonable search, it should be suppressed at trial.

**(Choice A)** Seizure of items specified in the warrant may provide police with probable cause to believe that other illegal items are in the searched location, but it does not allow police to continue their search. Instead, they must obtain a warrant or establish an exception to the warrant requirement.

**(Choice B)** Police do not need a warrant to conduct a protective sweep of the premises if (1) they have reasonable suspicion that someone on the premises may pose a threat to their safety and (2) the sweep is limited to a cursory inspection of places where a person may be found (eg, a closet). Here, though narcotics dealers are often armed (reasonable suspicion of threat), the agents could not search the *small* footlocker since a person could not fit inside.

**(Choice C)** Under the special government purpose exception to the warrant requirement, customs officials may conduct border searches and search international packages without a warrant or probable cause. Therefore, this is not a basis to grant the man's motion.

**Educational objective:**

When police conduct a search pursuant to a warrant, they must end their search once the items specified in that warrant are seized. They can only continue their search if they obtain another warrant or establish an exception to the warrant requirement. But if they continue without doing so, any seized items should be suppressed.

**References**

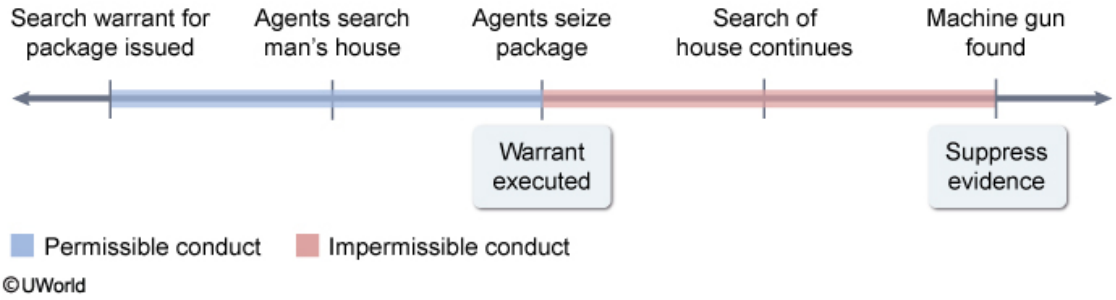
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Marron v. United States, 275 U.S. 192, 196 (1927) (limiting the scope of a search and seizure to what is described in the warrant).

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## Search exceeding scope of warrant timeline




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A man was a suspect in a series of murders. Detectives convinced the man's neighbor to sneak into the man's home and remove a cigarette butt so that the man's DNA could be compared to DNA found at the scene of one of the murders. The DNA was a match and the man was arrested.

Upon discovering that the prosecutor intended to present the DNA-comparison evidence to the grand jury, the man's lawyer filed a motion to suppress arguing that the evidence was illegally acquired.

How should the court rule on the man's motion?

A. Deny the motion, because the cigarette butt was seized by a private citizen instead of a police officer.
B. Deny the motion, because the exclusionary rule does not apply to grand jury proceedings.
C. Grant the motion, because the grand jury cannot consider evidence obtained without probable cause.
D. Grant the motion, because the neighbor was acting as a police agent when he seized the cigarette butt without a warrant.

**Explanation:**

**Rights & privileges that may be invoked at grand jury proceedings**

| | |
|---|---|
| **Constitutional rights** | Privilege against self-incrimination (Fifth Amendment) |
| | Equal protection (Fifth/Fourteenth Amendment) |
| | Congressmen's privilege not to be questioned about legislative activities (speech or debate clause) |
| **Privileges** | Attorney-client privilege |
| | Spousal privilege |
| | Marital communications privilege |
| | Psychotherapist-patient privilege |

The **exclusionary rule** requires the suppression of illegally acquired evidence **at trial**. But this rule does **not apply to grand jury proceedings** because a grand jury only has the investigatory power to charge a person with a crime—not the judicial power to convict. The man's motion to suppress the DNA-comparison evidence was therefore premature and should be denied. However, the man can file a motion to suppress again *at trial*.

**(Choices A & D)** The exclusionary rule applies to misconduct by any government agent—ie, government employees *and* non-employees working on the government's behalf. Here, the neighbor was acting as a government agent because police convinced him to seize the cigarette butt for their benefit. This seizure violated the Fourth Amendment because it was made without a warrant and no exception applies. But since the exclusionary rule is inapplicable to grand jury proceedings, the man's motion should be denied.

**(Choice C)** A grand jury can consider any evidence relevant to deciding whether to charge an individual with a crime—including evidence obtained without a warrant based on probable cause. Therefore, the grand jury can consider the DNA evidence even if it was collected without probable cause.

**Educational objective:**

The exclusionary rule does not apply during grand jury proceedings since the grand jury is an investigatory body—not a judicial body with the power to convict.

**References**

U.S. Const. amend. IV (unreasonable search and seizure).

United States v. Calandra, 414 U.S. 338, 351–52 (1974) (holding that the exclusionary rule does not apply to grand jury proceedings).

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The police had accumulated reliable information that a man operated a large cocaine-distribution network, that he and his accomplices often resorted to violence, and that they kept a small arsenal of weapons in his home.

One day, the police received reliable information that a large brown suitcase with leather straps containing a supply of cocaine had been delivered to the man's home and that it would be moved to a distribution point the next morning. The police obtained a valid search warrant to search for and seize the brown suitcase and the cocaine, and they went to the man's house.

The police knocked on the man's door and called out, "Police. Open up. We have a search warrant." After a few seconds with no response, the police forced the door open and entered. Hearing noises in the basement, the police ran down there and found the man with a large brown suitcase with leather straps. They seized the suitcase and put handcuffs on the man. A search of his person revealed a .45-caliber pistol. The man cursed the police and said, "You never would have caught me with the stuff if it hadn't been for that lousy snitch!"

The police then fanned out through the house, looking in every room and closet. They found no one else, but one officer found an Uzi automatic weapon in a box on a closet shelf in the man's bedroom.

In addition to charges relating to the cocaine in the suitcase, the man is charged with unlawful possession of weapons. The man moves pretrial to suppress the use as evidence of the weapons seized by the police and of the statement he made.

As to the Uzi automatic weapon, should the court grant the man's motion to suppress?

A. No, because the police were lawfully in the bedroom and the weapon was immediately identifiable as being subject to seizure.

B. No, because the police were lawfully in the house and had probable cause to believe that weapons were in the house.

C. Yes, because once the object of the warrant—the brown suitcase—had been found and seized, no further search of the house was permitted.

D. Yes, because the search exceeded the scope needed to find out if other persons were present.

**Explanation:**

A court should suppress evidence taken during a Fourth Amendment search or seizure conducted without a warrant or an exception to the warrant requirement. A **protective sweep**—ie, a **quick, warrantless search of the premises** made incident to an arrest—is reasonable if:

police have a **reasonable suspicion** (ie, a belief based on specific and articulable facts) that there is **someone who poses a threat** in the area being swept *and*

the sweep is limited to a **cursory inspection of places** in which a **person could hide** (eg, closet, laundry room).

Evidence or contraband found in plain view during a protective sweep may be seized without a warrant and admitted against the defendant at trial.

Here, the man was known to have violent accomplices, so the police had a reasonable suspicion that there was someone who posed a threat in the home. This authorized the protective sweep after the suitcase was seized and the man was arrested **(Choice C)**. But that sweep should have been limited to places where persons could hide—not a box on a closet shelf. Therefore, the Uzi found in that box should be suppressed.

**(Choice A)** The police were lawfully in the bedroom and the Uzi was immediately identifiable as contraband once the box in the closet was opened. But they wrongfully opened that box since a person could not hide there. Therefore, the Uzi found in the box should not be admitted as evidence at trial.

**(Choice B)** Although the police were lawfully in the house to execute the search warrant for the suitcase and cocaine, the warrant did not authorize the seizure of weapons. And although the police had probable cause to believe that there were weapons in the house, this did not permit their continued search of the home once the suitcase and cocaine were seized.

**Educational objective:**

Police may conduct a protective sweep—a quick, warrantless search of the premises made incident to an arrest—if (1) they have a reasonable suspicion that there is a dangerous person in the area to be swept and (2) the search is limited to a cursory inspection of places where a person could hide.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Maryland v. Buie, 494 U.S. 325, 334–36 (1990) (explaining that officers may conduct a protective sweep if they have reasonable suspicion that a dangerous person is in the area swept).

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**Protective sweep**
(limited to places person can hide)



✓ Sweep lawful ✗ Sweep prohibited

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The legislature of State X is debating reforms in the law governing insanity. Two reforms have been proposed. Proposal A would eliminate the insanity defense altogether. Proposal B would retain the defense but place on the defendant the burden of proving insanity by a preponderance of the evidence. Opponents of the reforms argue that the proposals would be unconstitutional under the due process clause of the United States Constitution.

Which of the proposed reforms would be unconstitutional?

A. Neither proposal.

B. Proposal A only.

C. Proposal B only.

D. Both proposals.

**Explanation:**

**Affirmative defenses**

**D**uress
**I**nsanity
**N**ecessity
**E**ntrapment
**D**efense of persons/property
Mnemonic: **DINED**

The Fourteenth Amendment **due process clause** (applicable to the states) requires the prosecution to prove every element of a **criminal offense beyond a reasonable doubt**. Since an affirmative defense does not challenge any elements of a crime—it instead provides a justification or excuse for criminal conduct—the due process clause does not apply. Therefore, state law can place any burden of proof on either party (prosecution or defense) to establish or negate an affirmative defense. Additionally, states can freely modify or eliminate such defenses.

Insanity is an affirmative defense because it does not challenge any element of a crime and instead provides an excuse for the defendant's criminal behavior. Since due process does not regulate affirmative defenses, Proposal B can require a defendant to prove this defense by a preponderance of the evidence **(Choices C & D)**. And Proposal A can completely eliminate insanity as an affirmative defense without violating due process **(Choices B & D)**. Therefore, both proposals are constitutional.

**Educational objective:**

Due process does not apply to affirmative defenses (eg, insanity), so state law can require the defendant to prove an affirmative defense by any standard. Additionally, a legislature can freely modify or eliminate these defenses.

**References**

U.S. Const. amend. XIV § 1 (due process clause).

Leland v. Oregon, 343 U.S. 790, 799 (1952) (recognizing that states can place any burden of proof on the defendant to establish an insanity defense).

Clark v. Arizona, 548 U.S. 735, 752–53 (2006) (holding that a state can narrow its insanity defense).

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A marijuana farmer had been missing for several months. The sheriff's department received an anonymous tip that a woman, the farmer's business rival, had buried the farmer in a hillside about 200 yards from the woman's farmhouse. Sheriff's deputies went to the woman's farm. They cut the barbed wire that surrounded the hillside and entered, looking for the grave. They also searched the adjacent fields on the woman's farm that were within the area enclosed by the barbed wire and discovered clothing that belonged to the farmer hanging on a scarecrow.

The woman observed their discovery and began shooting. The deputies returned the fire. The woman dashed to her pickup truck to escape. Unable to start the truck, she fled across a field toward the barn. A deputy tackled her just as she entered the barn. As the woman attempted to get up, the deputy pinned her arms behind her back. Another deputy threatened, "Tell us what you did with the farmer or we will shut you down and see your family on relief." The woman responded that she had killed the farmer in a fight but did not report the incident because she did not want authorities to enter her land and discover her marijuana crop. Instead, she buried the farmer behind the barn. The woman was thereafter charged with murder.

If the woman moves to suppress her admission about killing the farmer, how will the court likely rule on her motion?

A. Deny the motion, because the deputy was in hot pursuit when he questioned the woman.

B. Deny the motion, because the woman was questioned during an emergency police search.

C. Grant the motion, because the statement was the product of the warrantless entry and search of the woman's farm.

D. Grant the motion, because the woman did not voluntarily waive her right to silence.

**Explanation:**

A court should suppress any statement taken in violation of a defendant's **Fifth Amendment privilege against self-incrimination**. To safeguard this privilege, police must inform a suspect of his/her Miranda rights prior to a custodial interrogation (suspect in custody and subjected to interrogation). Once Mirandized, the suspect can waive those rights if the waiver is made:

**knowingly** – with a basic *awareness* of the rights

**intelligently** – with a basic *understanding* of the consequences of waiving them *and*

**voluntarily** – as the product of a free and deliberate choice, **not police coercion** (physical violence, threats, or deception used to force a suspect to waive his/her Miranda rights).

Here, a deputy tackled the woman and pinned her arms behind her back (custody). Another deputy demanded that she tell them what she did with the farmer (interrogation). Since the deputies did not inform the woman of her Miranda rights, she could not waive them. And since a deputy threatened her business and family unless she confessed (coercion), any waiver of her Miranda rights—including her right to silence—was involuntary. Therefore, the woman's confession was taken in violation of the Fifth Amendment and should be suppressed.

**(Choice A)** The hot pursuit doctrine lets police enter a private dwelling without a warrant to search for a fleeing suspect. But since this doctrine only applies to the Fourth Amendment prohibition against unreasonable searches and seizures, it does not apply to the Fifth Amendment privilege against self-incrimination at issue here.

**(Choice B)** Under the emergency search exception to the Fourth Amendment, police can conduct warrantless searches when a person is in imminent danger. Here, there was no emergency because the farmer had been missing for several months and the deputies thought he was dead. Therefore, this exception does not apply.

**(Choice C)** The fruit of the poisonous tree doctrine excludes evidence that stems from unconstitutional police actions like warrantless entries and searches of a person's home or curtilage—but not open fields. Since the deputies did not violate the woman's Fourth Amendment rights when they searched the adjacent fields on her farm, her statement was not the product of an unconstitutional search.

**Educational objective:**

Police must give a suspect Miranda warnings prior to a custodial interrogation. The suspect can then waive these rights if he/she does so knowingly, intelligently, and voluntarily—not due to police coercion.

**References**

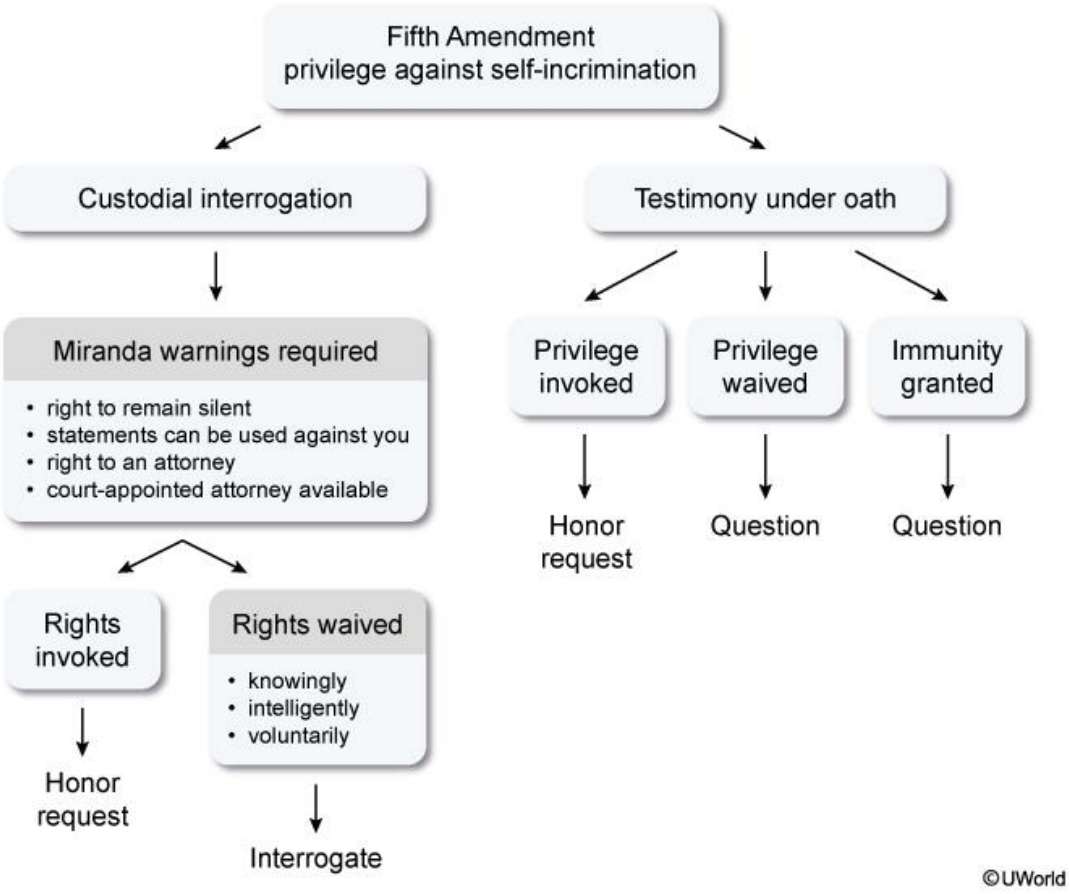
U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 444–45 (1966) (listing Miranda rights).

Colorado v. Spring, 479 U.S. 564, 574 (1987) (explaining that a waiver of Miranda rights must be made knowingly, intelligently, and voluntarily).

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A woman was subpoenaed to appear before a grand jury. When she arrived, she was taken into the grand jury room to be questioned. She answered preliminary questions about her name and address. She was then asked where she had been at a certain time on a specified night when a murder had occurred. Before answering the question, the woman said that she wanted to consult her attorney, who was waiting outside the grand jury room, and she was allowed to do so. When she returned to the grand jury room, she stated that she refused to answer the question because the answer might incriminate her.

The prosecutor believes that the woman's nephew committed the murder. The nephew has said that he was with the woman at the time of the murder, and the prosecutor believes that this alibi is false. The prosecutor does not believe that the woman is guilty of the murder, either as a principal or as an accomplice, although he does believe that the woman may be guilty of other crimes. The prosecutor wants to compel the woman to answer the question by whatever means will result in the least harm to the prosecution's case.

Which of the following steps should the prosecutor take to get the woman to answer the question?

A. Ask the woman's attorney to explain to the woman that the rules of evidence do not apply in grand jury proceedings, and to advise her that she cannot refuse to testify.

B. Prepare the documents necessary to grant the woman immunity from any future prosecution for any crime she might disclose in the course of her testimony.

C. Prepare the documents necessary to grant the woman immunity from any future use against her of her grand jury testimony or any evidence derived from it.

D. Request the grand jury to order the woman to answer the question.

**Explanation:**

**Immunity overrides privilege against self-incrimination**

| | |
|---|---|
| **Use & derivative use immunity*** | Prevents *use* of testimonial communications against witness in criminal proceeding |
| **Transactional immunity** | Prevents *prosecution* of witness for crimes related to testimonial communications |

*Minimum grant of immunity required under Fifth Amendment

The **Fifth Amendment privilege against self-incrimination** allows a witness to **refuse to testify** when:

the **government attempts to compel** the witness to testify (eg, by issuing a subpoena) *and*

the witness reasonably believes that **testimony may be self-incriminating** (ie, could be used, or lead to other evidence that might be used, against the witness in a criminal prosecution).

Despite this privilege, the witness can still be **compelled to testify** if the government grants the witness **use and derivative use immunity**—immunity that prevents the witness's testimony, and any evidence derived from it, from being used against him/her in a criminal proceeding (eg, before a grand jury).

Here, the grand jury attempted to compel the woman to testify when it issued a subpoena. If she reasonably believes that her answer may incriminate her in other crimes, she can invoke her privilege against self-incrimination and refuse to answer the prosecutor's question. However, the prosecutor can override this privilege by preparing the documents necessary to grant her use and derivative use immunity.

**(Choice A)** Although the rules of evidence do not apply in grand jury proceedings, a witness's privilege against self-incrimination does apply. Therefore, the woman can refuse to testify unless she is granted immunity.

**(Choice B)** A witness can also be compelled to testify if he/she receives transactional immunity, which protects the witness from *prosecution* for any crimes related to the witness's testimony. However, use and derivative use immunity is the prosecution's best option because it only prevents the *use* of the witness's testimony (and any evidence derived from it) against the witness in a criminal proceeding.

**(Choice D)** Since the woman possesses the privilege against self-incrimination, the grand jury cannot order her to answer the question unless she is granted use and derivative use immunity *or* transactional immunity.

**Educational Objective:**

A witness can be compelled to testify—even after invoking his/her privilege against self-incrimination—if he/she is granted use and derivative use immunity, which prevents the witness's testimony (or any evidence derived from it) from being used against the witness in a criminal prosecution.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Kastigar v. United States, 406 U.S. 441, 452–53 (1972) (explaining use and derivative use immunity).

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The police suspected that a 16-year-old high school student had committed a series of burglaries. One day, two officers went to the student's high school and asked the principal to call the student out of class and to search his backpack. While the officers waited, the principal took the student into the hall where she asked to look in his backpack. When the student refused, the principal grabbed it from him, injuring the student's shoulder in the process. In the backpack, the principal found jewelry that she turned over to the officers.

The officers believed that the jewelry had been taken in one of the burglaries. They arrested the student, took him to the station, and gave him Miranda warnings. The student then asked to see a lawyer. The police called the student's parents to the station. When the parents arrived, the police asked them to speak with the student. The officers put the student and his parents in a room and secretly recorded their conversation with a concealed electronic device. The student immediately broke down and confessed to his parents that he had committed the burglaries.

The student was charged with the burglaries.

If the student moves to suppress the use of the jewelry, how should the court rule on his motion?

A. Deny the motion on the ground that school searches are reasonable if conducted by school personnel on school grounds on the basis of reasonable suspicion.
B. Deny the motion on the ground that the search was incident to a lawful arrest.
C. Grant the motion on the ground that the search was conducted with excessive force.
D. Grant the motion on the ground that the search was conducted without probable cause or a warrant.

**Explanation:**

A **Fourth Amendment** search must generally be authorized by a warrant based on probable cause, but this requirement is often relaxed in school settings to maintain a safe learning environment. Therefore, **school officials** do not need a warrant or probable cause to **search a student on school grounds** if:

they have **reasonable suspicion** that the student violated (or is violating) the law or school rules

the scope of the search is **reasonably related** to the suspected offense *and*

the search is **not excessively intrusive** given the student's age, sex, and the nature of the suspected offense.

However, if a school official conducts a search at the **direction of the police**, it must be supported by a **warrant based on probable cause** or an exception to the warrant requirement. Police cannot rely on the relaxed standards governing school searches.

Here, two officers asked the principal to call the student out of class and to search his backpack. The principal did so without a warrant and found jewelry that she then turned over to the officers. Since the principal's search was conducted at the direction of the police, a warrant based on probable cause was required **(Choice A)**. Therefore, the court should suppress the use of the jewelry.

**(Choice B)** The search-incident-to-a-lawful-arrest exception allows officers to conduct a warrantless search of the person arrested and the areas in his/her immediate reach. This exception is inapplicable here because the student was not arrested.

**(Choice C)** A search conducted with excessive force may expose the police or persons acting at their direction to civil liability, but will not result in the suppression of evidence. So even if the principal used excessive force when she grabbed the student's backpack and injured him, the motion should not be granted on this basis.

**Educational objective:**

School officials may search a student without a warrant if (1) they have reasonable suspicion that the student violated a law or school rule, (2) the scope of the search is reasonably related to the suspected offense, and (3) the search is not excessively intrusive. However, a warrant is required if the search is conducted at the direction of the police.

**References**

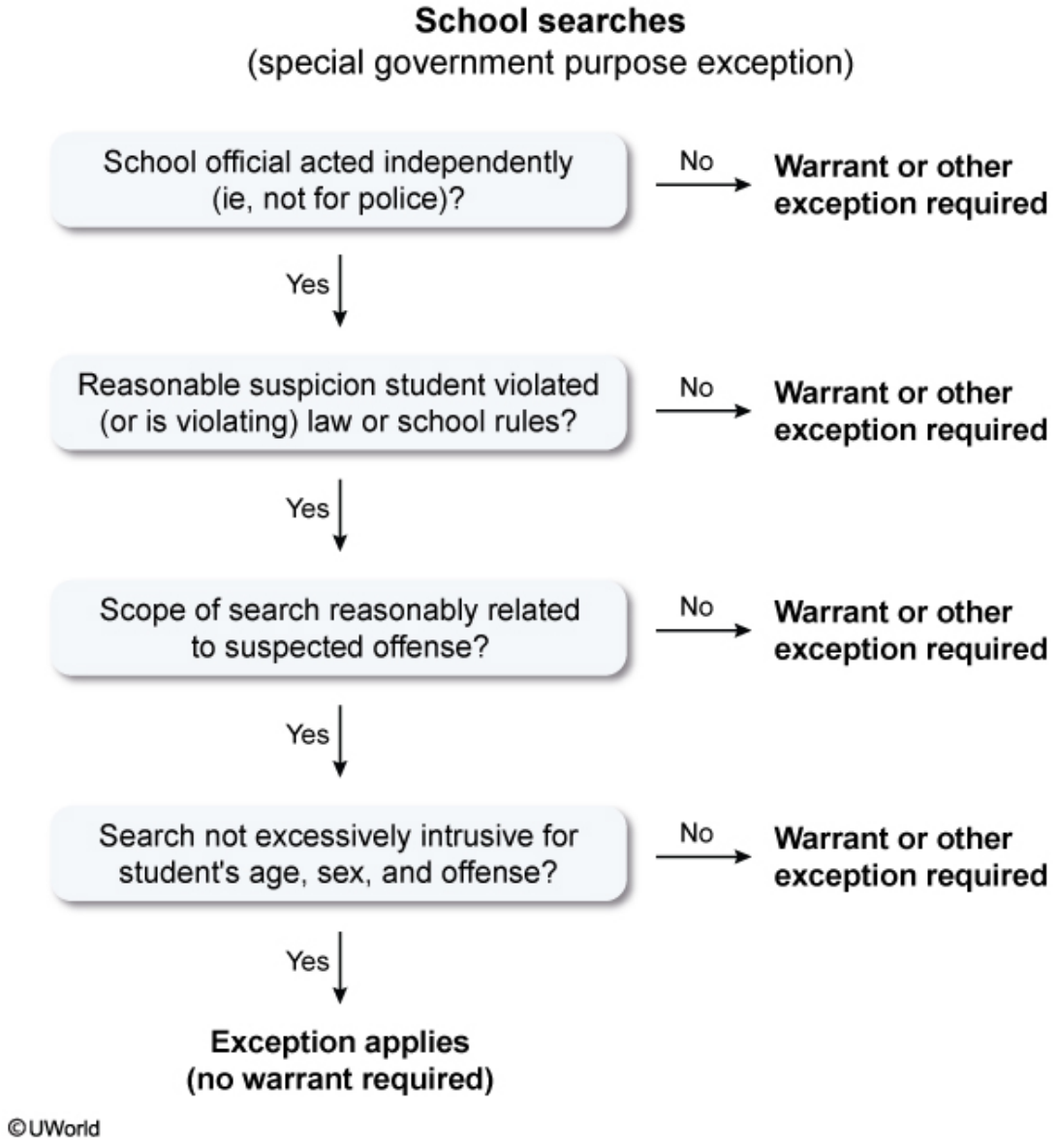
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

New Jersey v. T.L.O., 469 U.S. 325, 340–42 (1985) (holding that school officials need only reasonable suspicion that a student violated the law to search the student).

Coolidge v. New Hampshire, 403 U.S. 443, 487–88 (1971) (recognizing that searches carried out by individual acting at the direction of police are scrutinized as though they were carried out by police themselves).

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A grand jury was investigating the murder of a local businessman. The prosecutor suspected that the businessman's partner may have been involved, but had no concrete evidence implicating him as the murderer. The partner was subpoenaed to testify before the grand jury. The partner invoked his Fifth Amendment privilege against self-incrimination and refused to answer any questions, so the prosecutor granted the partner use and derivative use immunity for his testimony. The partner testified that he and his associate killed the businessman in order to assume full control of the company.

Both the partner and his associate were indicted for murder. The associate entered a plea to manslaughter on the condition that he testify against the partner. His testimony and the partner's grand jury testimony are the only evidence of who committed the murder.

The partner has objected to the admission of the associate's testimony at trial.

How should the court rule on the partner's objection?

A. Overrule the objection, because the associate's testimony was obtained by the prosecution in exchange for a plea bargain.
B. Overrule the objection, because the partner was a suspect before he was subpoenaed to testify before the grand jury.
C. Sustain the objection, because the associate's testimony is derivative of the partner's grand jury testimony.
D. Sustain the objection, because the constitutional rights of one codefendant cannot be bargained away in a deal with another.

**Explanation:**

A person subpoenaed to testify before a grand jury can invoke the **Fifth Amendment privilege against self-incrimination** and refuse to testify. However, that person can be **compelled to testify** during this (or any other) proceeding if he/she is granted either:

transactional immunity – protects a person from being prosecuted for any crimes associated with his/her testimony *or*

**use and derivative use immunity** – prevents a person's testimony, and any evidence derived from it, from being used against him/her in any way that could lead to a criminal prosecution.

If the government prosecutes a person who was granted use and derivative use immunity, it can only **use evidence obtained from an independent source**. It cannot use any evidence derived from the defendant's immunized testimony.

Here, the partner was granted use and derivative use immunity before testifying that he and the associate committed the murder. The grand jury then indicted them both. The prosecutor later sought to have the associate testify against the partner. But the associate's testimony was derived from the partner's immunized testimony—not an independent source. Therefore, the court should *sustain* the partner's objection and prohibit the associate's testimony.

**(Choice A)** The associate agreed to testify in exchange for a reduced charge of manslaughter. But since the associate's testimony derived from the partner's immunized testimony, it is inadmissible.

**(Choice B)** Although the prosecutor suspected that the partner was involved in the businessman's murder before the grand jury proceeding, he did not know of the associate's involvement until the partner testified. Therefore, the associate's testimony derives from the partner's immunized testimony and is inadmissible.

**(Choice D)** The constitutional rights of one codefendant cannot be bargained away in a deal with another—but this is not the dispositive issue. It is that the prosecution would improperly use the partner's immunized grand jury testimony if the associate's derivative testimony were presented against the partner at trial.

**Educational objective:**

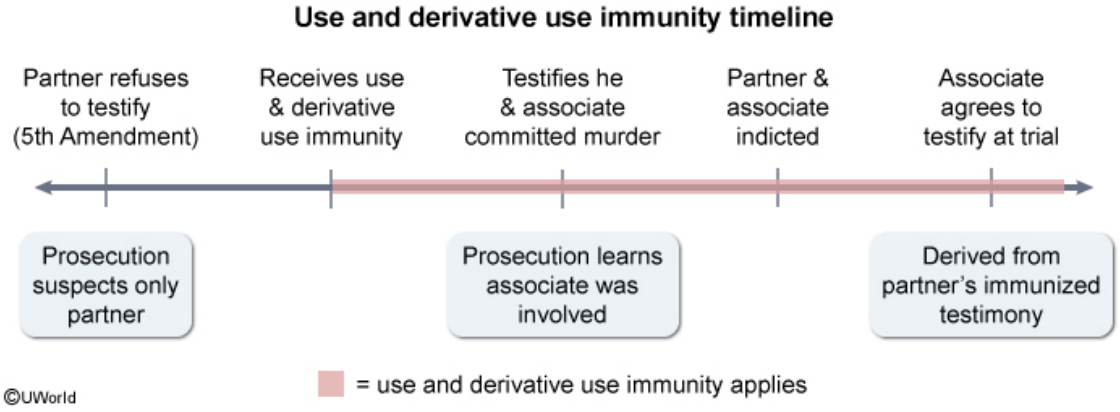
Use and derivative use immunity precludes the use of a person's testimony—and any evidence derived from it—against him/her in a criminal proceeding. However, evidence obtained from an independent source can be used.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Kastigar v. United States, 406 U.S. 441, 453 (1972) (explaining that use and derivative use immunity precludes the use of the suspect's testimony or any evidence derived from it against the suspect in a criminal prosecution).

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A defendant was indicted and arrested for bank robbery. The defendant had an initial appearance before a magistrate judge in which he was notified of the charges and told that counsel would be appointed for him the next day. The police then required the defendant to participate with other prisoners in a lineup in which each person had to wear a white T-shirt and say, "Put your hands in the air." At the lineup, witnesses to the bank robbery identified the defendant as the bank robber. The next day, counsel was provided and the defendant was arraigned on the charges.

The defendant argues that his Sixth Amendment right to counsel was violated when he was denied counsel at two critical stages of the proceeding: his initial appearance in court before the magistrate judge and the lineup identification.

Was the defendant's Sixth Amendment right to counsel violated?

A. No.

B. Yes, based only on the denial of counsel at the initial appearance.

C. Yes, based only on the denial of counsel at the lineup.

D. Yes, based on the denial of counsel at both stages of the proceeding.

**Explanation:**

**Sixth Amendment right to counsel**

(critical stages after prosecution has commenced)

Interrogations & lineups
Preliminary hearings & arraignments
Plea negotiations & hearings
Trial & sentencing
Appeals

The **Sixth Amendment right to counsel**:

automatically attaches once judicial proceedings commence (eg, indictment, filing of formal charges, preliminary hearing, arraignment) *and*

guarantees that criminal defendants will have the assistance of counsel during all **critical stages of prosecution**—any event where the absence of counsel may **prejudice** the defendant's **right to a fair trial**.

An indictment is a judicial proceeding that triggers a defendant's Sixth Amendment right to counsel. And a post-indictment lineup is a critical stage of prosecution because suggestive lineup procedures can lead to an unreliable and prejudicial identification. Since an attorney would have helped to ensure that the lineup was conducted fairly and protected the defendant's right to a fair trial, the denial of counsel violated his Sixth Amendment right.

In contrast, an initial appearance is not a critical stage if the judge merely conducts administrative tasks like notifying the defendant of the charges and explaining that an attorney will be appointed the next day. As a result, the defendant did not have a Sixth Amendment right to counsel during his initial appearance **(Choices A, B & D)**. But had the defendant been required to make decisions that might adversely affect the outcome of his trial (eg, deciding whether to enter an affirmative defense), then his initial appearance would have been a critical stage.

**Educational objective:**

The Sixth Amendment right to counsel automatically attaches once judicial proceedings begin and applies to all critical stages of prosecution. A critical stage is any event where the absence of counsel may prejudice the defendant's right to a fair trial.

**References**

U.S. Const. amend. VI (right to assistance of counsel).

Rothgery v. Gillespie County, 554 U.S. 191, 198 (2008) (explaining that right to counsel attaches at commencement of judicial proceedings).

United States v. Wade, 388 U.S. 218, 237 (1967) (recognizing that post-indictment lineup is a critical stage of prosecution).

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A police officer stopped a man for a traffic offense, searched the man's car, and found cocaine underneath the passenger's seat. The man was arrested and subsequently charged with possession of a controlled substance. The man filed a motion to suppress the cocaine, alleging that the police officer lacked reasonable suspicion to stop him and probable cause to search his car. The court held a hearing on the man's motion to suppress and, after hearing the evidence, found that the officer had both reasonable suspicion to stop the man and probable cause to search his car. The man's motion was accordingly denied. The man subsequently pleaded guilty but reserved the right to appeal the court's denial of his motion and timely did so.

Which standard(s) of review should the court of appeals apply to the trial court's findings of historical fact and conclusions of law?

A. Abuse of discretion as to findings of historical fact and clear error as to conclusions of law.

B. Abuse of discretion as to findings of historical fact and de novo as to conclusions of law.

C. Clear error as to findings of historical fact and de novo as to conclusions of law.

D. De novo as to both findings of historical fact and conclusions of law.

**Explanation:**

**Appellate standards of review**

| Standard | Level of review | Applicability |
|---|---|---|
| **De novo** | No deference to trial judge's legal determination<br>Reverse if reasonably believe trial judge misinterpreted law | Pure legal issues, eg:<br>conclusions of law<br>content of jury instructions |
| **Clear error** | Highly deferential to trial judge's factual findings<br>Reverse if no reasonable judge would have made this finding | Factual issues in *bench* trials, eg:<br>credibility of witnesses<br>factual determinations |
| **Substantial evidence** | Highly deferential to jury's factual findings<br>Reverse if no reasonable jury would have made this finding | Factual issues in *jury* trials, eg:<br>credibility of witnesses<br>jury's verdict |
| **Abuse of discretion** | Highly deferential to trial judge's discretionary decisions<br>Reverse only if decision was unreasonable/arbitrary | Discretionary rulings by judge, eg:<br>grant/denial of new trial<br>admissibility of evidence |

A trial court rules on a motion to suppress by:

determining which **historical facts** elicited by the parties to accept as true (eg, by judging the credibility of the parties' witnesses at a hearing) *and*

**applying** the **relevant statutory or constitutional standard** to those facts to reach a **legal conclusion** (eg, concluding that an officer had reasonable suspicion or probable cause).

An appellate court should **accept** the trial court's **findings of historical fact unless** they are **clearly erroneous**—ie, if no reasonable judge would have made the findings **(Choices A, B & D)**. That is because the trial court is in the best position to accurately make factual determinations.

However, the appellate court should review the trial court's **conclusions of law de novo** (ie, anew). This means that the trial court's legal conclusions are given no deference and are **independently reviewed** by the appellate court **(Choice A)**. This helps prevent unacceptably varied results by trial courts on cases featuring similar facts and allows appellate courts to maintain control of legal rules and unify precedent.

**Educational objective:**

When reviewing a trial court's ruling on a motion to suppress, an appellate court should accept the trial court's findings of historical fact unless they are clearly erroneous. However, the appellate court should review the trial court's conclusions of law de novo.

**References**

Ornelas v. United States, 517 U.S. 690, 696–98 (1996) (holding that trial court's conclusions of law are subject to de novo review on appeal).

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A state enacted a statute "to regulate administratively the conduct of motor vehicle junkyard businesses in order to deter motor vehicle theft and trafficking in stolen motor vehicles or parts thereof." The statute requires a junkyard owner or operator "to permit representatives of the Department of Motor Vehicles or of any law enforcement agency upon request during normal business hours to take physical inventory of motor vehicles and parts thereof on the premises." The statute also states that a failure to comply with any of its requirements constitutes a felony.

In a large city located in this state, two police officers assigned to the automobile crimes unit periodically visited all motor vehicle junkyards in the city to make the inspections permitted by the statute. A woman owned such a business. One summer day, the officers asked to inspect the vehicles on her lot. The woman asked, "Do I have a choice?" The officers told her she did not. The officers then conducted their inspection and discovered three stolen automobiles.

The woman is charged with receiving stolen property. She moves pretrial to suppress the evidence relating to the three automobiles on the ground that the inspection was unconstitutional.

How should the court rule on her motion to suppress this evidence?

A. Deny the motion, because administrative searches of commercial establishments do not require warrants.

B. Deny the motion, because the statute deals reasonably with a highly regulated industry.

C. Sustain the motion, because the stated regulatory purpose of the statute is a pretext to circumvent the warrant requirement in conducting criminal investigations.

D. Sustain the motion, because the statute grants unbridled discretion to law enforcement officers to make warrantless searches.

**Explanation:**

**Administrative or regulatory searches**

| | |
|---|---|
| **Ordinary industries** | Warrant based on less stringent probable cause standard—ie:<br>search meets reasonable & neutral administrative standard *or*<br>public interest justifies search |
| **Highly regulated industries** | No warrant required if:<br>statute/regulatory scheme involves substantial government interest<br>warrantless search necessary to further interest *and*<br>statute provides constitutionally adequate substitute for warrant |

A court should suppress evidence obtained from an unreasonable Fourth Amendment search. A search is generally unreasonable if it is conducted without a warrant based on probable cause. But an **administrative search of a highly regulated industry** is an **exception to the warrant requirement** since it furthers administrative objectives (eg, to protect the public welfare)—not traditional law enforcement objectives (eg, to gather evidence for criminal prosecution). Therefore, a statute can permit warrantless administrative searches of highly regulated industries if **three requirements** are met:

The statute's purpose involves a **substantial government interest**—eg, improving public health and safety.

Warrantless searches are **necessary to further the statute's purpose**—ie, unannounced searches are needed to properly inspect the industry.

The statute provides a **constitutionally adequate substitute** for a warrant—ie, it (1) notifies the property owner that searches are authorized and (2) limits the inspecting officers' discretion concerning the time, place, and scope of the search.

Here, the court should deny the woman's motion to suppress and admit the evidence from the officers' warrantless administrative search of her motor vehicle junkyard (highly regulated industry). The Fourth Amendment was not violated since the statute authorizing their search, according to *New York v. Burger*, met all three requirements:

The statute's purpose—to deter motor vehicle theft and trafficking in stolen vehicles and parts—involves a substantial government interest.

Warrantless inspections of motor vehicle junkyards are necessary to further the statute's purpose.

The statute is a constitutionally adequate substitute for a warrant because it (1) notifies junkyard owners that the inspections are authorized and (2) limits police discretion by only

permitting them to inventory vehicles and parts on the premises during normal business hours.

**(Choice A)** Administrative searches of most commercial establishments *do* require a warrant (eg, health inspection of a restaurant). However, no warrant is required for administrative searches of highly regulated industries (as seen here).

**(Choice C)** The statute's stated purpose is to deter motor vehicle theft and trafficking in stolen vehicles and parts. There is no evidence that the stated purpose was a pretext to circumvent the general warrant requirement (or that officers used it to conduct unlawful searches). Therefore, the statute validly authorized the officers' search.

**(Choice D)** The statute does not grant law enforcement officers unbridled discretion to make warrantless searches. It restricts officers to taking physical inventory of vehicles and parts in motor vehicle junkyards during normal business hours. Therefore, evidence obtained from the officers' search is admissible at trial.

**Educational objective:**

A statute permitting warrantless administrative searches of highly regulated industries is valid if: (1) its purpose concerns a substantial government interest, (2) warrantless searches are necessary to further that purpose, and (3) it is a constitutionally adequate substitute for a warrant (ie, gives notice of right to search and limits officer discretion).

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

New York v. Burger, 482 U.S. 691, 702–04 (1987) (listing the requirements for a reasonable administrative search of a highly regulated industry).

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Two police officers in uniform were on foot patrol in a neighborhood frequented by drug sellers. They noticed a woman walking toward them. As the officers passed the woman, one of them stopped and asked her if she had anything illegal on her. The woman ignored the officer and continued walking. The officer turned around and shouted, "Stop and don't take another step, lady!" The woman turned, looked at the police, and stopped. She put her arms up in the air. As the police approached, she threw a small object into nearby bushes. An officer retrieved the object, which turned out to be a small bag of cocaine, and then arrested the woman.

The woman is charged with possession of the cocaine. She moves pretrial to suppress its use as evidence on the ground that it was obtained as the result of an illegal search and seizure.

Should the court grant the woman's motion?

A. No, because the police had probable cause to seize the package.

B. No, because the woman voluntarily discarded the contraband.

C. Yes, because the police acquired the cocaine as the result of an unlawful seizure.

D. Yes, because the police did not know the item was cocaine until after they had seized it.

**Explanation:**

**Police-citizen encounters**

| Type | Characteristics |
|---|---|
| **Consensual encounter** | No suspicion required<br>Officer may approach citizen/engage in conversation<br>Citizen may:<br>respond to officer *or*<br>walk away |
| **Terry stop**<br>(stop & frisk) | Reasonable suspicion required<br>Officer may:<br>briefly question to confirm/dispel suspicion<br>frisk if reasonably believes person armed<br>Investigative in nature |
| **Arrest** | Probable cause required<br>Officer may:<br>search incident to arrest<br>interrogate after Mirandizing<br>Initiates criminal prosecution |

A **Fourth Amendment seizure** occurs when **police use their authority** or physical force to **restrict** a person's **freedom of movement** and the person submits to the restriction. To be reasonable, the seizure must be supported by at least **reasonable suspicion**—ie, specific and articulable facts that would lead an officer to suspect that the person is, or will be, involved in a crime. If police lack such suspicion, the seizure is unlawful and any evidence obtained as a result of that seizure should be suppressed.

Here, an officer asked the woman if she had anything illegal on her while she was walking in a neighborhood frequented by drug sellers. When the woman ignored the question and walked away, the officer ordered her to stop (use of authority to restrict movement). But the woman's mere presence in the high-crime neighborhood did not create reasonable suspicion to seize her (as recognized in *Brown v. Texas*), so the stop was unlawful. And since the cocaine was discarded and then retrieved as a result of that stop, the cocaine should be suppressed.

**(Choice A)** The exclusionary rule requires the suppression of any evidence obtained as a result of police misconduct. Therefore, though police may have had probable cause to seize the cocaine, it still must be suppressed since it stemmed from an unlawful seizure of the woman.

**(Choice B)** Police may freely seize property that has been voluntarily abandoned. But here, the cocaine was not voluntarily abandoned since it was discarded in response to police misconduct (unlawful seizure).

**(Choice D)** Had the seizure of the woman been supported by reasonable suspicion, the cocaine could have been lawfully seized—even if the police did not know it was cocaine at that time.

**Educational objective:**

To be reasonable, a seizure of a person must be supported by at least reasonable suspicion—ie, specific and articulable facts that would lead an officer to suspect that the person is, or will be, involved in a crime. And a person's mere presence in a high-crime area does not establish such suspicion.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Brown v. Texas, 443 U.S. 47, 52 (1979) (recognizing that a person's mere presence in a high-crime area does not establish a basis to detain the person).

United States v. Morin, 665 F.2d 765, 770 (5th Cir. 1982) (explaining that abandonment of property prompted by police misconduct is not voluntary).

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A defendant was charged with attempted murder. At the preliminary hearing, the presiding judge heard the testimony of four prosecution witnesses and found that the prosecution had failed to establish probable cause that the defendant had committed any offense. Accordingly, she dismissed the charge.

The prosecutor then called the same four witnesses before a grand jury. The grand jury indicted the same defendant for attempted murder.

The defendant has moved to quash the indictment on the ground of double jeopardy.

How should the court proceed?

A. Deny the motion, because the defendant has not yet been in jeopardy of conviction on the attempted murder charge.

B. Deny the motion, because the protection of the double jeopardy clause does not come into play until there has been a conviction or an acquittal.

C. Grant the motion, because the dismissal of the first charge on the merits, whether correct or incorrect, bars any further prosecution.

D. Grant the motion, unless the prosecution has evidence that was not presented in the first case.

**Explanation:**

An indictment should be quashed (ie, dismissed) if it violates the Fifth Amendment double jeopardy clause. **Double jeopardy** protects criminal defendants from undue harassment and expense by forbidding multiple punishments and a second prosecution for the same offense. This protection **attaches** once the defendant is in jeopardy of a conviction—ie:

when the **jury is impaneled and sworn** (jury trial) *or*

when the **judge begins to hear evidence** (bench trial).

But if a criminal charge is **dismissed before** the defendant is put on trial before a trier of fact (judge or jury), then jeopardy does **not attach** and the prosecution can later prosecute the offense.

Here, the defendant was charged with attempted murder. But the charge was dismissed at the preliminary hearing—a *pretrial* hearing where the judge determines if there is probable cause to believe that the defendant committed the charged offense and should stand trial—so double jeopardy protections did not attach. The prosecution was therefore free to pursue a grand jury indictment for the same offense, and the court should deny the motion to quash that indictment.

**(Choice B)** Double jeopardy protections are triggered as soon as the defendant is put on trial—*before* a conviction or acquittal. Therefore, an indictment can be quashed on double jeopardy grounds even though the defendant has not been convicted or acquitted of the offense.

**(Choice C)** The dismissal of the first charge on the merits for lack of probable cause, whether correct or incorrect, does *not* bar further prosecution for this offense since jeopardy has not yet attached.

**(Choice D)** Jeopardy does not attach at preliminary hearings, so the prosecution can pursue charges for the same offense and use the same evidence to do so (eg, the prosecutor can use the same witnesses at the preliminary hearing and the grand jury proceeding)—new evidence is not required. But once jeopardy attaches, the prosecutor cannot pursue a second prosecution even if he/she has evidence that was not presented in the first case.

**Educational objective:**

Fifth Amendment double jeopardy protections attach when a jury is impaneled and sworn (jury trial) OR a judge begins to hear evidence (bench trial). But if a criminal charge is dismissed before trial, jeopardy does not attach and the prosecution can later prosecute the offense.

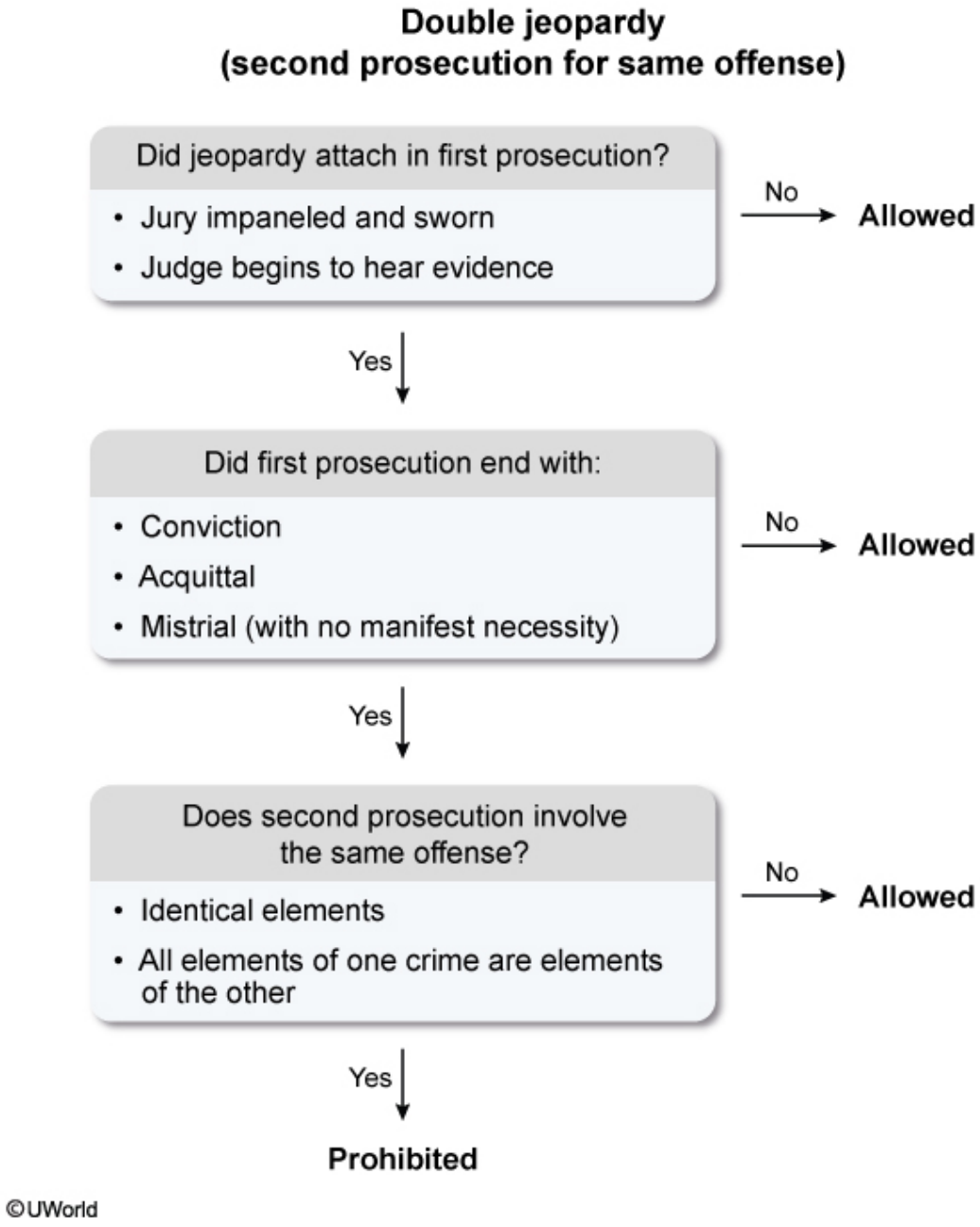
**References**

U.S. Const. amend. V (prohibition against double jeopardy).

Serfass v. United States, 420 U.S. 377, 388 (1975) (explaining when jeopardy attaches).

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A defendant was charged with the capital offense of first-degree murder, for which the only available penalties were death or life in prison without parole. During jury selection, the trial court, over the defendant's objection, granted the prosecution's for-cause challenge of five prospective jurors who indicated upon questioning by both parties that they personally were opposed to the death penalty and were unsure if they could ever vote to impose it. The jury convicted the defendant and, following a separate sentencing hearing, sentenced him to death.

On appeal, the defendant's only argument was that excusing the prospective jurors violated his federal constitutional right to be tried by a jury chosen from a fair cross section of the community.

How should the court of appeals rule on the conviction and the death sentence?

A. Affirm both.
B. Affirm the conviction, but reverse the death sentence and remand for a new sentencing hearing before a different jury.
C. Affirm the conviction, but reverse the death sentence and remand for resentencing to life in prison.
D. Reverse both.

**Explanation:**

An appellate court should **automatically reverse** a defendant's conviction and sentence if a structural error—eg, a violation of a defendant's **Sixth Amendment right to an impartial jury**—occurred before or during trial. Impartiality has two requirements:

the **jury pool** must be selected from a **fair cross-section of the community** *and*

the **impaneled jury** must be **unbiased** and able to decide the case based on the evidence presented at trial.

To ensure that the impaneled jury is impartial during the guilt and penalty phases of a **capital punishment** (ie, death penalty) case, the defense and prosecution can challenge potential jurors for cause. A for-cause challenge should be granted if a potential juror's **views would prevent or substantially impair** his/her ability to **impartially decide the case or impose the death penalty**.

Here, during jury selection, the judge granted the prosecution's for-cause challenge of five prospective jurors who were opposed to the death penalty and unsure if they could ever vote to impose it. Since those views would substantially impair the jurors' ability to impartially decide this first-degree murder (capital offense) case, they were properly excused. Therefore, the defendant's right to an impartial jury was not violated, and the appellate court should affirm his conviction and death sentence **(Choices B, C, & D)**.

**Educational objective:**

The Sixth Amendment guarantees a criminal defendant the right to be tried by an impartial jury—ie, a jury pool selected from a fair cross-section of the community and an unbiased impaneled jury. Therefore, a potential juror whose views would substantially impair his/her ability to impartially decide the case can be challenged for cause.

**References**

U.S. Const. amend. VI (right to jury trial in criminal case).

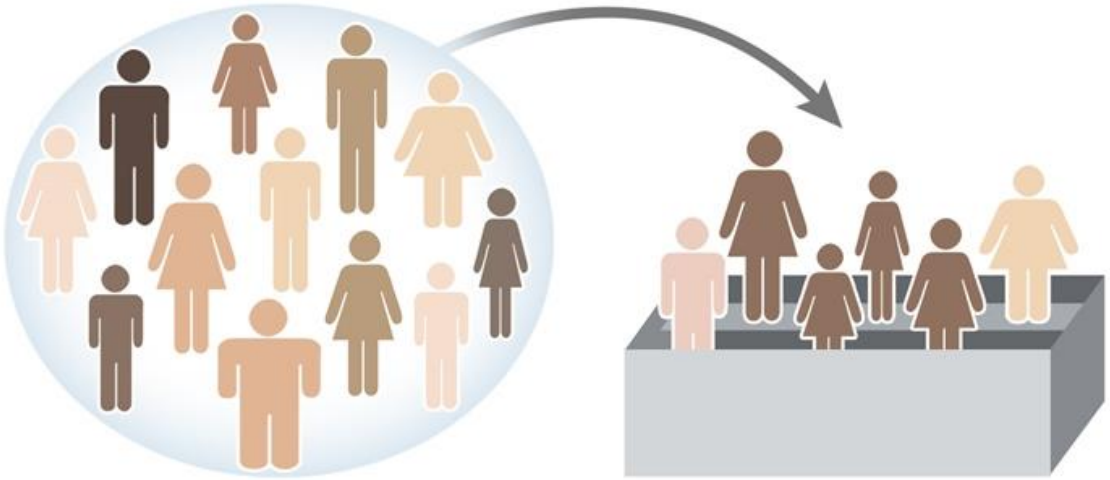
Wainwright v. Witt, 469 U.S. 412, 424 (1985) (establishing the impartial juror standard in capital punishment cases).

Gray v. Mississippi, 481 U.S. 648, 668 (1987) (holding that the improper dismissal of a juror in a death penalty case is structural error).

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## 6th Amendment right to impartial jury



Jury pool
(fair cross section of community)

Impaneled jury
(unbiased)

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A defendant was tried for armed robbery. The state introduced evidence that a man, identified by witnesses as the defendant, entered a convenience store at 11:00 p.m. on March 5, threatened the clerk with a gun, and took $75 from the cash register.

The defendant did not testify, but his sister did. She testified that on March 5, at the time of the robbery, the defendant was with her in a city 300 miles away. On cross-examination, the sister admitted having given a statement to the police in which she had said that the defendant was not with her on March 5, but she claimed that the earlier statement was mistaken.

The court instructed the jurors that in order to convict the defendant, they had to find all of the elements of the crime beyond a reasonable doubt.

As to the defendant's claim of alibi, which of the following additional instructions would be proper?

A. Alibi is a matter of defense and so must be established by the defendant; however, the burden of persuasion is by a preponderance of the evidence, not beyond a reasonable doubt.

B. Before you may consider the defendant's claim of alibi, you must decide whether he has produced sufficient evidence to raise the issue.

C. If the defendant's evidence has caused you to have a reasonable doubt as to whether he was the robber, you must find him not guilty.

D. If you have a reasonable doubt as to whether the defendant was present at the convenience store at about 11:00 p.m. on March 5, you must find him not guilty.

**Explanation:**

**Criminal defenses: burdens & standards of proof**

| | |
|---|---|
| **Negation defense** | Challenges element of crime (eg, alibi, lack of intent)<br>Fifth Amendment assigns burden to prosecution to prove element beyond a reasonable doubt |
| **Affirmative defense** | Justifies or excuses criminal conduct, but does not challenge element of crime (eg, entrapment, self-defense, duress)<br>Statute assigns burden (prosecution or defense) & standard of proof (eg, preponderance, clear & convincing, beyond a reasonable doubt) |

**Due process** requires that the prosecution prove every element of a **criminal offense beyond a reasonable doubt**. Therefore, when a defendant asserts a defense that **negates an element** of the crime (eg, an alibi defense), the prosecution bears the burden of proof—not the defendant. However, the prosecution is not required to disprove an **affirmative defense** (eg, self-defense, duress) since it justifies or excuses the defendant's criminal conduct but does not negate an element of the crime.

Here, the defendant was on trial for armed robbery, which requires proof that he was at the convenience store at about 11:00 p.m. on March 5. Since the defendant's sister testified that he was with her 300 miles away when the crime occurred, her alibi testimony challenges an element of the crime that the prosecution must prove beyond a reasonable doubt. Therefore, the trial court should instruct the jury that if it has a reasonable doubt as to whether the defendant was at the convenience store, it must find him not guilty.

**(Choice A)** The burden of proof can be placed on the defendant only for affirmative defenses—not for defenses that challenge an element of the criminal offense (eg, alibi, lack of intent). Additionally, any level of proof can be imposed—eg, preponderance of the evidence, clear and convincing evidence, beyond a reasonable doubt.

**(Choice B)** A defendant must produce sufficient evidence to raise an affirmative defense, but not to raise an alibi defense since it negates an element of the charged crime. Instead, the prosecution must produce sufficient evidence to establish all elements of the criminal offense beyond a reasonable doubt.

**(Choice C)** Although the jury must find the defendant not guilty if it has a reasonable doubt as to whether he was the robber, this jury instruction wrongfully places the burden of proof for an element of the crime on the defendant.

**Educational objective:**

The prosecution must prove every element of a criminal offense beyond a reasonable doubt. Therefore, the prosecution bears the burden of proof when a defendant raises a defense that challenges an element of the offense.

**References**

U.S. Const. amend. XIV § 1 (due process clause).

In re Winship, 397 U.S. 358, 364 (1970) (stating that the prosecution must prove every element of a criminal offense beyond a reasonable doubt).

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A man was charged with murder. Several witnesses testified that the crime was committed by a person of the man's general description who walked with a severe limp. The man in fact walks with a severe limp. He objected to a prosecution request that the court order him to walk across the courtroom in order to display his limp to the jury to assist it in determining whether the man was the person that the witnesses had seen.

How should the court respond to the man's objection?

A. Overrule the objection, because a criminal defendant has no legitimate expectation of privacy.

B. Overrule the objection, because the order sought by the prosecution is a legitimate part of a proper courtroom identification process.

C. Sustain the objection, because the order sought by the prosecution would constitute an illegal search and seizure.

D. Sustain the objection, because the order sought by the prosecution would violate the man's privilege against self-incrimination.

**Explanation:**

**FifthAmendmentprivilegeagainstself-incrimination**

| | |
|---|---|
| **Testimonial communications** (privileged) | Oral testimony<br>Act of producing documents |
| **Real or physical evidence** (not privileged) | Fingerprints<br>Handwriting samples<br>Voice tests<br>Photographs<br>Physical characteristics & clothing<br>Movements or gestures<br>Blood, DNA, urine samples |

The Fifth Amendment **privilege against self-incrimination** protects defendants from being compelled to provide incriminating evidence—evidence that could be used, or lead to other evidence that might be used, against a person in a criminal prosecution. However, this privilege only applies to **testimonial communications** (eg, oral testimony, act of producing documents)—**not real or physical evidence** (eg, movements, gestures, blood test).

Here, several witnesses testified that the murderer walked with a severe limp (same as the man), so the prosecution requested that the court order him to walk across the courtroom to show the jury his limp. Since the privilege against self-incrimination does not apply to physical evidence (eg, a limp), the order sought is a legitimate part of a proper courtroom identification process **(Choice D)**. Therefore, the man's objection should be overruled.

**(Choices A & C)** The Fourth Amendment protects a person's legitimate expectation of privacy by prohibiting unreasonable searches and seizures. However, a person has no legitimate expectation of privacy in his/her physical characteristics because they are exposed to the public. Therefore, an order compelling the man to display his limp would not constitute an illegal search and seizure or otherwise violate the Fourth Amendment.

**Educational objective:**

The Fifth Amendment privilege against self-incrimination prohibits the government from compelling a defendant to provide incriminating testimonial communications—not real or physical evidence.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Schmerber v. California, 384 U.S. 757, 764 (1966) (recognizing that self-incrimination does not apply to real or physical evidence).

Missouri v. Proctor, 535 S.W.2d 141, 144–45 (Mo. Ct. App. 1976) (holding that a compelled walk in the courtroom does not violate privilege against self-incrimination).

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A man kidnapped a victim in State A and transported the victim across the state border into State B. These actions violated the kidnapping laws of both states, which are identical. A jury convicted the man in a State A court, but the trial judge gave what prosecutors in State B deemed an unduly lenient sentence. The state prosecutor in State B then commenced a kidnapping case against the man for violating State B's kidnapping statute.

The man's lawyer has filed a motion in State B to dismiss the charge based on the double jeopardy protection against a second prosecution for the man's single act of kidnapping.

Should the court grant the motion to dismiss?

A. No, because the double jeopardy protection only prohibits a second prosecution following an acquittal for the same offense.

B. No, because the man's conduct violated the laws of two different states, and each has the right to enforce its laws.

C. Yes, because the double jeopardy protection prohibits a second prosecution following a conviction for the same offense.

D. Yes, because the government is collaterally estopped under the double jeopardy protection from prosecuting a defendant a second time for the same conduct that led to an earlier conviction.

**Explanation:**

The **Fifth Amendment double jeopardy clause** (applied to the states through the Fourteenth Amendment) protects a criminal defendant from undue harassment, embarrassment, and expense by **prohibiting** all of the following:

Multiple punishments for the same offense
Second prosecution for the same offense after a conviction (ie, judgment of guilt)
Second prosecution for the same offense after an acquittal (ie, judgment of not guilty)

Different sovereigns (ie, governments) may have **identical criminal statutes**. But under the **dual sovereignty doctrine**, those statutes are considered **distinct offenses** because each sovereign derives its power from a different source (eg, its own state constitution). Therefore, different sovereigns can prosecute a defendant for the **same criminal act** without violating the double jeopardy clause.

Here, State A convicted the man for violating its kidnapping law. State B then sought to prosecute him for the same kidnapping act under State B's kidnapping law. Although the kidnapping laws of both states are identical, each law constitutes a distinct offense because State A and State B are separate sovereigns. Therefore, State B can prosecute the man for kidnapping without violating the double jeopardy clause, and the court should deny his motion to dismiss the charge **(Choice C)**.

**(Choice A)** Double jeopardy prohibits a second prosecution following an acquittal *or* a conviction for the *same* offense. And though the man was convicted (not acquitted) of kidnapping in State A, he can still be prosecuted for that same criminal act under State B's kidnapping statute (a *distinct* offense under the dual sovereignty doctrine).

**(Choice D)** Double jeopardy embodies the doctrine of collateral estoppel (ie, issue preclusion), which prevents the relitigation of any issue of ultimate fact that has already been determined by a prior final judgment. However, this doctrine does not apply to successive prosecutions for the same criminal act by different sovereigns (as seen here).

**Educational objective:**

The dual sovereignty doctrine allows different sovereigns to prosecute a defendant for the same criminal act without violating the Fifth Amendment double jeopardy clause.

**References**

U.S. Const. amend. V (prohibition against double jeopardy).

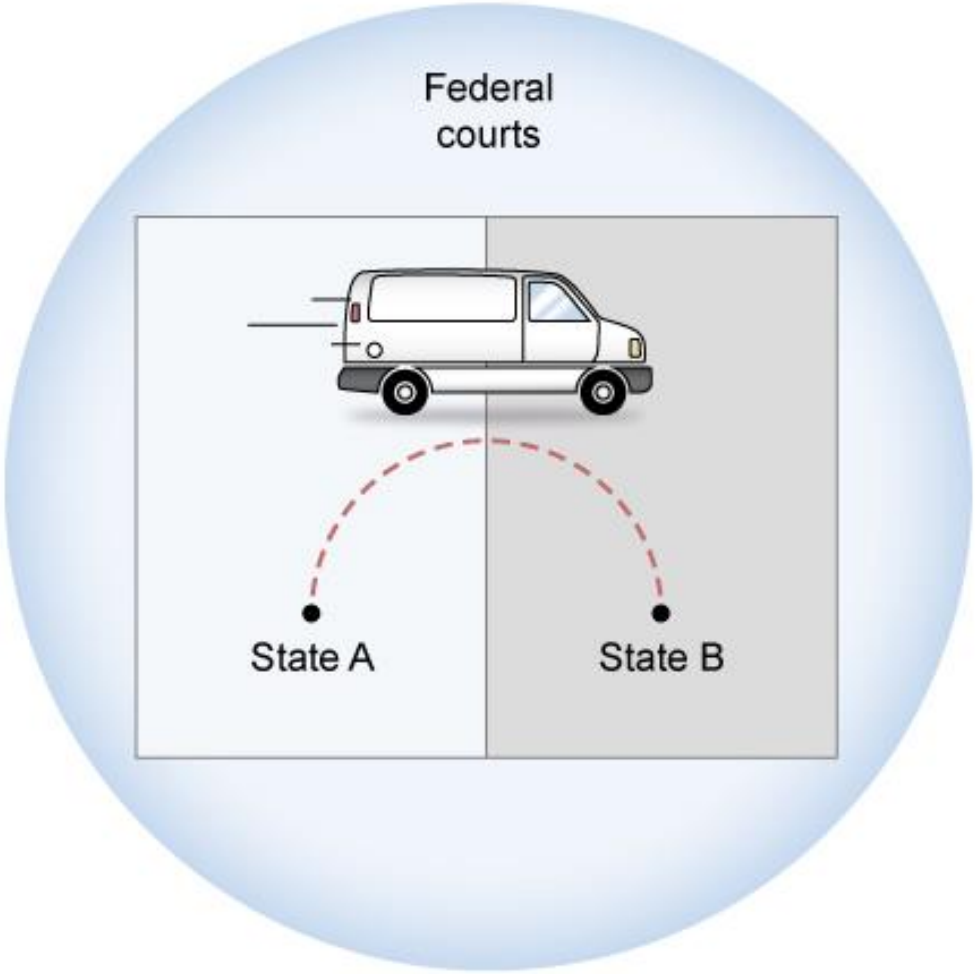
Heath v. Alabama, 474 U.S. 82, 88 (1985) ("[S]uccessive prosecutions by two States for the same conduct are not barred by the Double Jeopardy Clause.").

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## Dual sovereignty doctrine

(prosecution under identical statutes permitted in State A, State B & federal courts)




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A suspect was taken into custody for questioning. After receiving Miranda warnings, which the suspect stated he understood, he was questioned by two detectives for three hours. The detectives told the suspect that the interrogation was about an illegal sale of automatic weapons. During this time, the suspect neither expressly waived nor expressly invoked his Miranda rights. Instead, he participated only sporadically in the conversation and responded to incriminating questions with silence.

Toward the end of the three-hour session, one of the detectives began to question the suspect about the recent murder of an arms dealer. The suspect was nonresponsive, so the detectives decided to pause the interrogation. As they were walking out of the interrogation room, one of the detectives asked the suspect, "Have you prayed for forgiveness for killing that man?" The suspect, tired from the hours of questioning, responded that he had. He then immediately told the detectives that he wanted to speak with an attorney. The detectives immediately terminated the interrogation and left the room.

If the suspect moves to suppress his admission about killing the arms dealer, how will the court likely rule on his motion?

A. Deny the motion, because the interrogation immediately ceased after the suspect asserted his right to counsel.

B. Deny the motion, because the suspect knowingly and voluntarily waived his right to remain silent by making the statement.

C. Grant the motion, because the detectives failed to advise the suspect of the full subject matter of the interrogation.

D. Grant the motion, but allow the prosecution to use the suspect's incriminating statement at trial for impeachment purposes only.

**Explanation:**

**Incriminating statements** obtained from a custodial interrogation **may not be used** against a suspect at a subsequent trial ***unless*** police provided **procedural safeguards** to secure the suspect's Fifth Amendment privilege against self-incrimination. Police safeguard this privilege by informing the suspect of his/her Miranda rights prior to a custodial interrogation (as seen here).

A suspect may then choose to specifically and unambiguously **invoke a Miranda right**—eg, by clearly and unambiguously asserting his/her desire to remain silent. Therefore, a suspect's silence in response to police questioning does not invoke Miranda rights, even if questioning was extensive. A suspect may also choose to expressly (eg, by signing a waiver form) or **impliedly waive Miranda rights**.

Waiver is implied when a suspect (1) has not asserted his/her Miranda rights, (2) understands those rights, and (3) engages in a **course of conduct** that indicates a **knowing and voluntary waiver**—eg, by making an **uncoerced incriminating statement** (as the suspect did here). Therefore, the court will likely deny the suspect's motion to suppress his admission about killing the arms dealer.

**(Choice A)** The suspect made the inculpatory statement *before* invoking his Fifth Amendment right to counsel and *after* initially waiving his right to remain silent. It is this—not the fact that the detectives immediately ceased their interrogation upon the suspect's request—that renders the statement admissible.

**(Choice C)** Police need not provide a suspect with the subject matter of the interrogation before administering Miranda warnings. Therefore, the detectives' failure to inform the suspect of the interrogation's full subject matter did not invalidate the suspect's waiver.

**(Choice D)** A voluntary and trustworthy statement taken in violation of Miranda is admissible to impeach a criminal defendant who gives contradictory testimony at trial. But an incriminating statement that does *not* violate Miranda is also admissible as substantive evidence.

**Educational objective:**

Miranda rights may be expressly or impliedly waived. A waiver is implied when a suspect (1) has not asserted his/her Miranda rights, (2) understands those rights, and (3) engages in a course of conduct indicating waiver.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

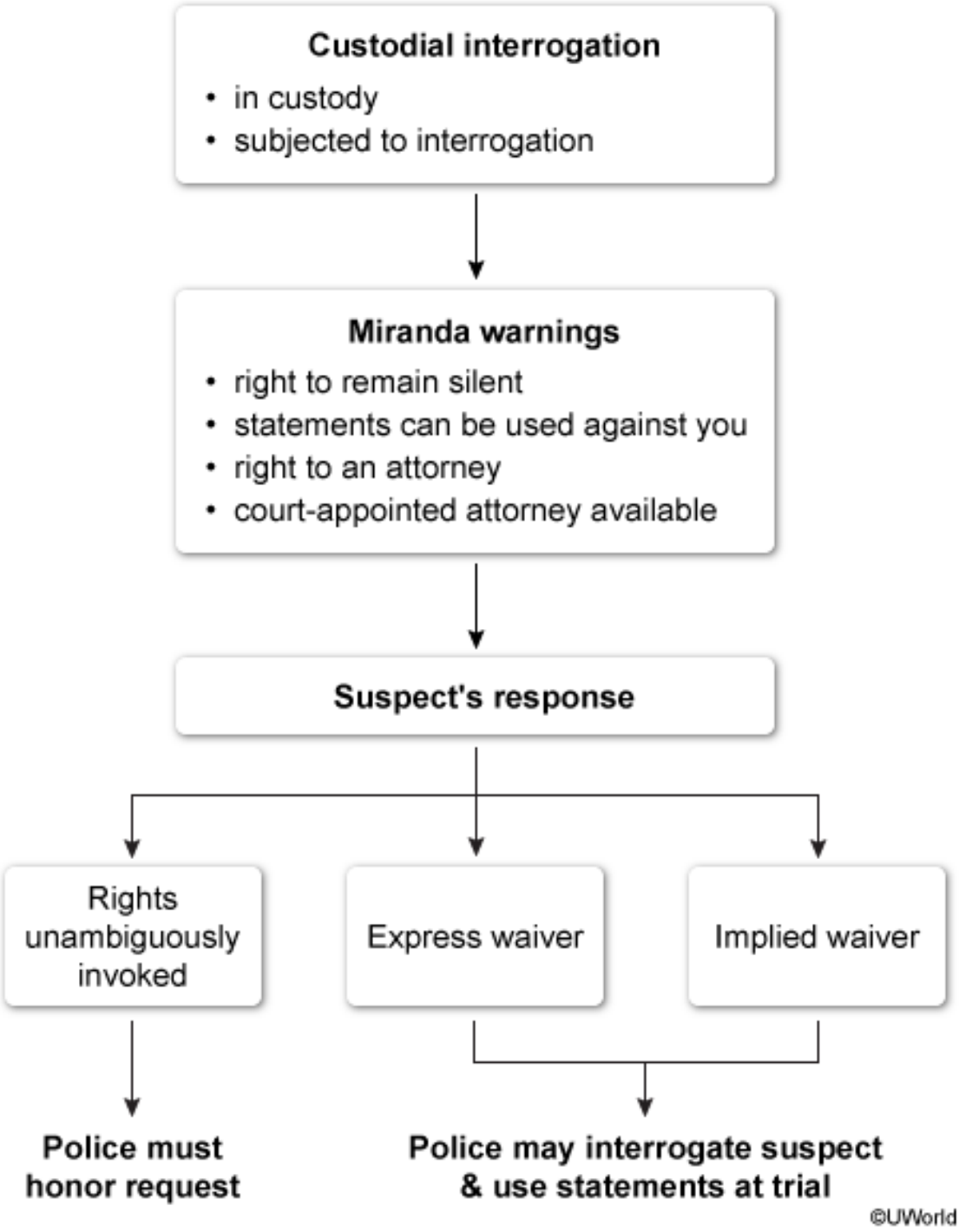
Miranda v. Arizona, 384 U.S. 436, 468–70 (1966) (listing Miranda warnings).

Berghuis v. Thompkins, 560 U.S. 370, 384–85 (2010) (holding that voluntary incriminating statement by suspect who has not invoked but understands rights constitutes waiver).

Colorado v. Spring, 479 U.S. 564, 577 (1987) (holding that a suspect's lack of awareness of an interrogation's possible subject matter does not invalidate the suspect's waiver of Fifth Amendment rights).

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# Waiver of Miranda rights



On an interstate highway, a police officer encountered a car being driven well below the posted minimum speed limit. The officer stopped the car. After approaching the driver's window, the officer noticed that the driver's eyes were bloodshot and that the driver appeared nervous. The officer asked if the driver had any weapons or drugs in his possession, and the driver informed the officer that he had a handgun in his backseat but that he was licensed to lawfully carry it. The officer immediately asked the driver to exit the car. The driver complied.

The officer asked the driver if he would consent to a search of his car and the driver replied, "Sure." While searching the car, the officer found two pounds of marijuana, a scale, and several plastic baggies underneath the passenger seat. The officer asked, "Does this marijuana and paraphernalia belong to you?" The driver confessed that it did. The officer then handcuffed and arrested the driver for possession of marijuana with intent to distribute.

If the driver moves to suppress his admission about the marijuana and paraphernalia belonging to him, how will the court likely rule on his motion?

A. Deny the motion, because the driver consented to the officer's search of his car during the traffic stop.

B. Deny the motion, because the driver was not in custody at the time that he made the incriminating statement to the officer.

C. Grant the motion, because the driver was effectively placed in custody when he was ordered out of his car by the officer.

D. Grant the motion, because the officer's question was intended to elicit an incriminating response from the driver.

**Explanation:**

A motion to suppress an incriminating statement should be granted if law enforcement failed to provide Miranda warnings prior to a **custodial interrogation**. A custodial interrogation occurs when a person is:

**in custody** – placed under formal arrest or so restrained in his/her freedom of movement that a reasonable person would not feel free to terminate the encounter *and*

**subjected to interrogation** – express questions, words, or actions directed at the person that an officer knows or should know are likely to elicit an incriminating response.

Although **traffic stops** restrain freedom of movement, drivers are generally **not in custody** for Miranda purposes because such encounters are typically brief and temporary.

Here, the driver made an incriminating statement when asked whether the marijuana and paraphernalia belonged to him. But since the driver was not in custody during this traffic stop, the officer did not need to administer Miranda warnings. Therefore, the court will likely deny the driver's motion to suppress.

**(Choice A)** The driver's consent to a search of his car pertained to his Fourth Amendment protection against unreasonable searches and seizures—not the admissibility of his statement. The determining factor for the statement's admissibility is whether the driver was subjected to a custodial interrogation.

**(Choice C)** Merely asking a person to step out of the vehicle during a traffic stop does not render the person "in custody" for Miranda purposes.

**(Choice D)** The officer's question to the driver *was* intended to elicit an incriminating response. However, the driver was not entitled to Miranda warnings because he was not in custody.

**Educational objective:**

Miranda warnings must be provided to suspects before they are subjected to custodial interrogations. Since drivers are generally not in custody during traffic stops, Miranda warnings are not needed.

**References**

U.S. Const. amend. V (privilege against self-incrimination).

Miranda v. Arizona, 384 U.S. 436, 468–70 (1966) (listing Miranda warnings).

Berkemer v. McCarty, 468 U.S. 420, 440 (1984) (recognizing that a person is not in custody during an investigatory detention).

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## Miranda custody requirement




Formal arrest | Restricted movement | Traffic stop | Stop and frisk (Terry stop)

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Without a warrant, police officers searched the garbage cans in the alley behind a man's house and discovered chemicals used to make methamphetamine, as well as cooking utensils and containers with the man's fingerprints on them. The alley was a public thoroughfare maintained by the city, and the garbage was picked up once a week by a private sanitation company. The items were found inside the garbage cans in plastic bags that had been tied closed and further secured with tape. The man was charged in federal court with the manufacture of methamphetamine.

Did the search of the garbage cans violate the Fourth Amendment?

A. No, because the man had no reasonable expectation of privacy in garbage left in the alley.
B. No, because the probative value of the evidence outweighs the man's modest privacy claims in his garbage.
C. Yes, because the alley was within the curtilage of the man's home and entry without a warrant was unconstitutional.
D. Yes, because there is a reasonable expectation of privacy in one's secured garbage containers.

**Explanation:**

The **Fourth Amendment** is violated when the government conducts an unreasonable search or seizure—ie, when police act without a warrant and no exception applies. A Fourth Amendment **search** occurs if one of the following tests is met:

**Physical trespass test** – the government physically intruded upon a **constitutionally protected area** to obtain information (eg, an intrusion upon the curtilage—the area immediately surrounding and commonly associated with a person's dwelling).

**Reasonable expectation of privacy test** – the government invaded a person's **subjective** expectation of privacy that society would find **objectively reasonable**.

In *California v. Greenwood*, the Supreme Court held that (1) public areas are not constitutionally protected and (2) persons have no reasonable expectation of privacy in items that are accessible or visible to anyone (including police). Therefore, police may freely inspect **items left in a public area or exposed to the public**.

Here, the officers did not conduct a search under the *physical trespass test* since the garbage cans were in a *public* thoroughfare located behind the man's house—not a constitutionally protected area **(Choice C)**. Additionally, there was no search under the *reasonable expectation of privacy test* since the man had no objectively reasonable expectation of privacy in garbage cans that were readily accessible in a *public* alley **(Choice D)**. Therefore, the officers did not violate the Fourth Amendment when they rummaged through the garbage cans.

**(Choice B)** The probative value of the evidence sought (ie, its tendency to make a fact more or less probable) cannot justify a violation of the defendant's Fourth Amendment right to privacy—no matter how modest. Instead, probative value is used to determine whether the evidence is relevant and admissible at trial.

**Educational objective:**

The government does not need a warrant to inspect items left in a public area or exposed to the public since (1) public areas are not constitutionally protected and (2) persons have no reasonable expectation of privacy in such items.

**References**

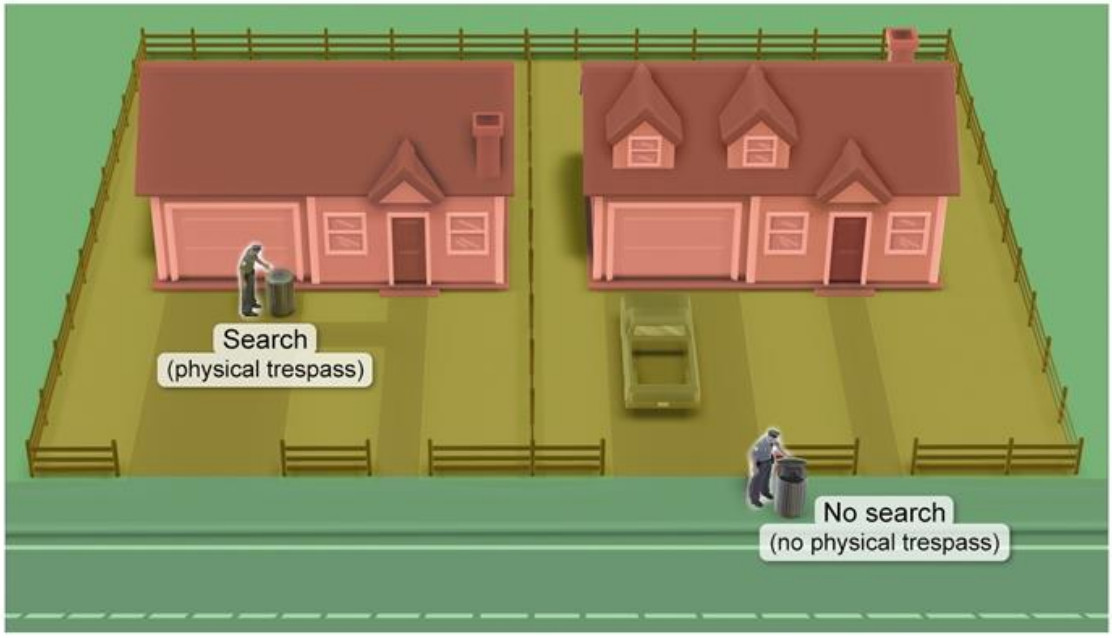
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

California v. Greenwood, 486 U.S. 35, 40–41 (1988) (recognizing that individuals do not have a reasonable expectation of privacy in garbage placed on a public street).

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**Physical trespass of constitutionally protected area**




= dwelling = curtilage = public area

protected unprotected

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A federal grand jury that was investigating drug trafficking in the jurisdiction subpoenaed a witness to testify. The prosecutor advised the witness that he had a Fifth Amendment privilege not to testify if he so chose. The witness asked that his attorney be allowed to advise him inside the grand jury room, but the prosecutor refused to allow the attorney inside. After speaking with his attorney outside the grand jury room, the witness decided to testify. During his testimony, he made self-incriminating statements.

The witness was subsequently indicted for drug crimes. The indictment was based on the witness's grand jury testimony and on evidence seized in an unconstitutional search of the witness's home.

The witness has moved to dismiss the indictment.

Should the court dismiss the indictment?

A. No, because the witness had no right to counsel inside the grand jury room and the illegally seized evidence did not affect the validity of the indictment.

B. No, because the witness waived his constitutional rights by testifying.

C. Yes, because the indictment was based upon illegally seized evidence.

D. Yes, because the witness was denied his constitutional right to advice of counsel.

**Explanation:**

**Rights & privileges that may be invoked at grand jury proceedings**

| | |
|---|---|
| **Constitutional rights** | Privilege against self-incrimination (Fifth Amendment) |
| | Equal protection (Fifth/Fourteenth Amendment) |
| | Congressmen's privilege not to be questioned about legislative activities (speech or debate clause) |
| **Privileges** | Attorney-client privilege |
| | Spousal privilege |
| | Marital communications privilege |
| | Psychotherapist-patient privilege |

An indictment is a written statement by a grand jury that formally charges a person with a crime after a finding of probable cause. But since a grand jury only has the investigatory power to indict (not the judicial power to convict), a witness may only invoke certain constitutional rights during grand jury proceedings.

A witness may **consult with an attorney outside** the grand jury room (as seen here). But since a witness has **no Sixth Amendment right to have counsel inside** the **grand jury room**, the prosecutor had the right to refuse the witness's request to have his attorney inside. Therefore, the witness's self-incriminating testimony before the grand jury did not violate the Sixth Amendment, and the subsequent indictment should not be dismissed on this basis **(Choice D)**.

The indictment was also based on evidence seized during an unconstitutional Fourth Amendment search of the witness's home. Pursuant to the exclusionary rule, illegally seized evidence should be suppressed at trial to discourage unconstitutional police conduct. However, the **exclusionary rule does not apply to grand jury proceedings** since the grand jury is an investigatory body—not a judicial one. Therefore, the illegally seized evidence does not affect the validity of the indictment, and it should not be dismissed **(Choice C)**.

**(Choice B)** Though the witness waived his Fifth Amendment privilege against self-incrimination by testifying, he did not waive his Fourth or Sixth Amendment rights because they do not apply during grand jury proceedings. And since witnesses can only waive rights they possess, this is not a basis to deny the motion.

**Educational objective:**

Since grand jury proceedings are investigatory in nature, only certain constitutional protections apply. A grand jury witness can consult with an attorney outside the grand jury room but has no Sixth Amendment right to counsel inside that room. And the exclusionary rule does not apply to grand jury proceedings.

**References**

U.S. Const. amend. VI (right to counsel).

United States v. Mandujano, 425 U.S. 564, 581 (1976) (finding that a witness has no right to counsel inside the grand jury room).

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Calandra, 414 U.S. 338, 351–52 (1974) (holding that the exclusionary rule does not apply to grand jury proceedings).

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A federal officer had probable cause to believe that a woman had participated in a bank robbery. Two days after the robbery, the woman checked into a local hotel. When the woman left her room for the evening, the hotel manager opened the hotel room door so that the officer could enter the room and look inside. The officer did not find any of the stolen money but did see, lying open on the bed, the woman's diary. The diary contained an entry describing the woman's involvement in robbing the bank.

The woman was charged in federal court with bank robbery. She has moved to suppress the diary.

Should the court suppress the diary?

A. No, because the hotel manager had actual authority to allow the officer into the hotel room.

B. No, because the officer reasonably relied on the hotel manager's apparent authority to allow the officer into the hotel room.

C. Yes, because admitting the diary would violate the woman's privilege against self-incrimination.

D. Yes, because the officer had no warrant.

**Explanation:**

A court should suppress evidence obtained during an unreasonable Fourth Amendment search. A search is unreasonable if it is conducted without a warrant based on probable cause and no exception to the warrant requirement applies. **Consent** is an exception that **allows police to conduct a warrantless search** when (1) consent is given voluntarily (ie, the product of free will, not police coercion), (2) the search is limited to the scope of the consent, and (3) the person giving consent has the actual or apparent authority to do so.

**Actual authority** exists when the person giving consent has the **right to use or occupy** the property—eg, a registered hotel guest.

**Apparent authority** exists when police **reasonably (but erroneously) believe** that the person giving consent has **actual authority** to do so—eg, the person answering the hotel room door falsely states that he/she is staying in the room.

Hotel managers do not have *actual* authority to consent to a warrantless search of a guest's room because they have no right to use or occupy the room during the guest's stay **(Choice A)**. And in *Stoner v. California*, the Supreme Court held that hotel managers lack *apparent* authority because police cannot reasonably believe that managers have actual authority to consent **(Choice B)**. Therefore, the hotel manager could not consent to the officer's warrantless entry of the woman's hotel room, and the diary found during that search should be suppressed.

**(Choice C)** The Fifth Amendment privilege against self-incrimination protects individuals from being compelled to create or produce self-incriminating evidence. Here, the woman's diary entry described her involvement in the bank robbery (self-incriminating evidence). But since she voluntarily wrote that entry (no compelled creation) and the diary was discovered during a search of her hotel room (no compelled production), it will not be suppressed on Fifth Amendment grounds.

**Educational objective:**

Consent to a search must be given by a person with (1) actual authority—the right to use or occupy the property—*or* (2) apparent authority—police reasonably, but erroneously, believe that the person has actual authority to consent. Therefore, hotel managers have no authority to consent to a warrantless search of a guest's hotel room.

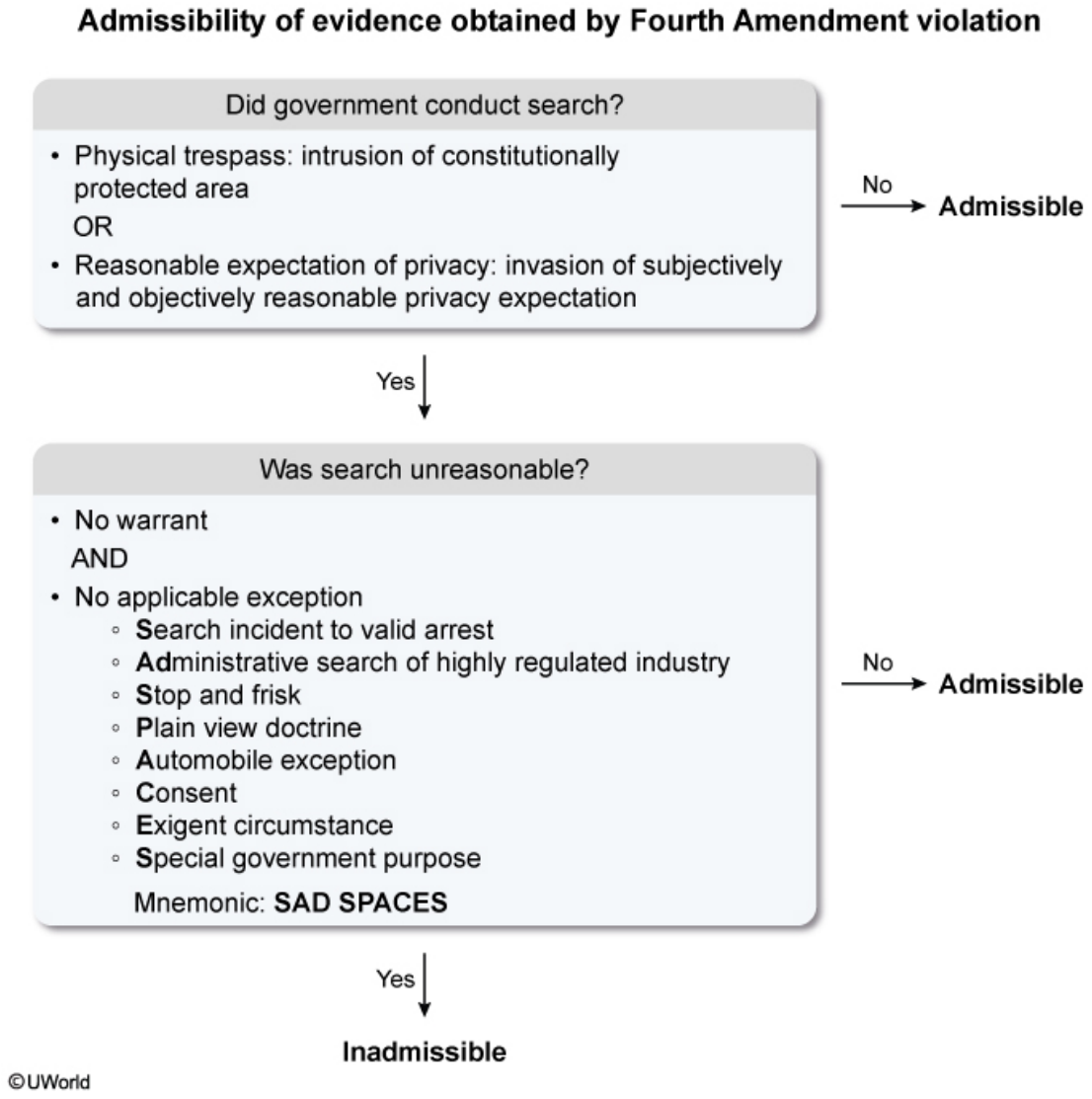
**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Stoner v. California, 376 U.S. 483, 489–90 (1964) (explaining that a hotel guest has a reasonable expectation of privacy in his/her room and a hotel manager cannot consent to a search of the room).

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A defendant was charged with manslaughter. At the preliminary hearing, the magistrate dismissed the charge on the ground that the evidence was insufficient. The prosecutor then brought the case before a grand jury. After hearing the evidence presented by the prosecutor, the grand jury refused to return an indictment.

The prosecutor waited a few months until a new grand jury had been impaneled and brought the case before that grand jury, which returned an indictment charging the defendant with manslaughter. The defendant has moved to dismiss the indictment on double jeopardy grounds.

Should the motion be granted?

A. No, because jeopardy had not attached before either grand jury was impaneled.

B. No, because there has been no conviction or acquittal.

C. Yes, because any proceeding after the preliminary hearing would violate double jeopardy.

D. Yes, because bringing the case before the second grand jury violated the double jeopardy clause.

**Explanation:**

A court should dismiss an indictment—a written statement by a grand jury that formally charges a person with a criminal offense—that violates the Fifth Amendment double jeopardy clause. **Double jeopardy** prohibits (1) multiple punishments for the same offense and (2) a second prosecution for the same offense following a conviction or an acquittal. This prohibition only applies after **jeopardy attaches**—ie:

in a jury trial when the **jury is impaneled and sworn** *or*
in a bench trial when the **judge begins to hear evidence** (eg, when the first witness is sworn).

Jeopardy does not attach at preliminary hearings or grand jury proceedings because a defendant is not yet on trial before a trier of fact (judge or jury). Therefore, the magistrate's dismissal of the defendant's manslaughter charge at a preliminary hearing and the grand jury's refusal to return an indictment did not trigger double jeopardy protections. As a result, the prosecution did not violate double jeopardy when it presented the same manslaughter case to a new grand jury that returned an indictment. The court should therefore deny the defendant's motion to dismiss the indictment **(Choices C & D)**.

**(Choice B)** Double jeopardy protections attach as soon as a jury has been sworn or a judge has heard evidence—not when the defendant has been convicted or acquitted. Therefore, had jeopardy attached in this case, the indictment could have been dismissed on double jeopardy grounds even though the defendant had not been convicted or acquitted of manslaughter.

**Educational objective:**

The Fifth Amendment double jeopardy protections attach when a jury has been impaneled and sworn OR a judge has begun to hear evidence—not at preliminary hearings or grand jury proceedings.

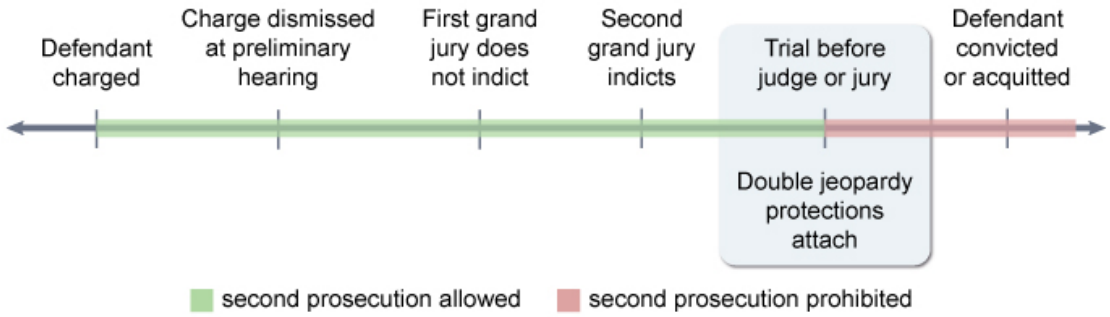
**References**

U.S. Const. amend. V (prohibition against double jeopardy).

Serfass v. United States, 420 U.S. 377, 388 (1975) (explaining when jeopardy attaches).

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Defendant charged
Charge dismissed at preliminary hearing
First grand jury does not indict
Second grand jury indicts
Trial before judge or jury
Defendant convicted or acquitted
Double jeopardy protections attach
second prosecution allowed
second prosecution prohibited

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A prosecutor presented to a federal grand jury the testimony of a witness in order to secure a defendant's indictment for theft of government property. The prosecutor did not disclose to the grand jury that the witness had been convicted four years earlier of perjury. The grand jury returned an indictment, and the defendant pleaded not guilty.

Shortly thereafter, the prosecutor took the case to trial, calling the witness to testify before the jury. The prosecutor did not disclose the witness's prior perjury conviction until the defense was preparing to rest. Defense counsel immediately moved for a mistrial, which the court denied. Instead, the court allowed the defense to recall the witness for the purpose of impeaching him with this conviction, but the witness could not be located. The court then allowed the defense to introduce documentary evidence of the witness's criminal record to the jury before resting its case. The jury convicted the defendant.

The defendant has moved for a new trial, arguing that the prosecutor's failure to disclose the witness's prior conviction in a timely manner violated the defendant's right to due process of law.

If the court grants the defendant's motion, what will be the most likely reason?

A. The court found it reasonably probable that the defendant would have been acquitted had the defense had timely access to the information about the witness's conviction.

B. The court found that the prosecutor had deliberately delayed disclosing the witness's conviction to obtain a strategic advantage.

C. The defendant was unable to cross-examine the witness about the conviction.

D. The prosecutor failed to inform the grand jury of the witness's conviction.

**Explanation:**

In *Brady v. Maryland*, the Supreme Court held that a defendant's **due process** rights are violated when the prosecution **prejudices** the defendant by **failing to timely disclose evidence** that is both:

**favorable** to the defendant – evidence used to negate a defendant's guilt or mitigate punishment (exculpatory evidence) or to discredit the prosecution's witness (impeachment evidence) *and*

**material** to guilt or punishment – there is a reasonable probability that, had the evidence been disclosed, the result of the proceeding would have been different.

Here, the prosecutor failed to timely disclose its witness's prior perjury conviction (favorable evidence) since that information was not shared until the defense was preparing to rest and the witness could not be located. Therefore, the court would most likely grant the defendant's motion for new trial if it found it reasonably probable that the defendant would have been acquitted had the defense timely received that information (material evidence).

**(Choice B)** The prosecution violates a defendant's due process rights when it fails to timely disclose favorable and material evidence for *any* reason—purposely or unintentionally. Therefore, a finding that the prosecutor purposely delayed disclosing the witness's conviction for a strategic advantage is no basis for granting the motion.

**(Choice C)** The prosecution's untimely disclosure did not prevent the defendant from cross-examining the witness about the conviction (no violation of Sixth Amendment right to confront adverse witnesses). However, the untimely disclosure did violate the defendant's due process rights since it is probable that the outcome would have been different had the witness's conviction been disclosed earlier.

**(Choice D)** In *United States v. Williams*, the Supreme Court explained that a prosecutor is not required to present *Brady* evidence to the grand jury. Therefore, the prosecutor's failure to inform the grand jury of the witness's conviction did not violate due process and is not a basis for granting the defendant's motion.

**Educational objective:**

A defendant's due process rights are violated when the prosecution prejudices the defendant by failing to timely disclose *Brady* evidence—ie, evidence that is *favorable* to the defendant (exculpatory or impeachment evidence) and *material* to guilt or punishment.

**References**

U.S. Const. amend. V (federal due process clause).

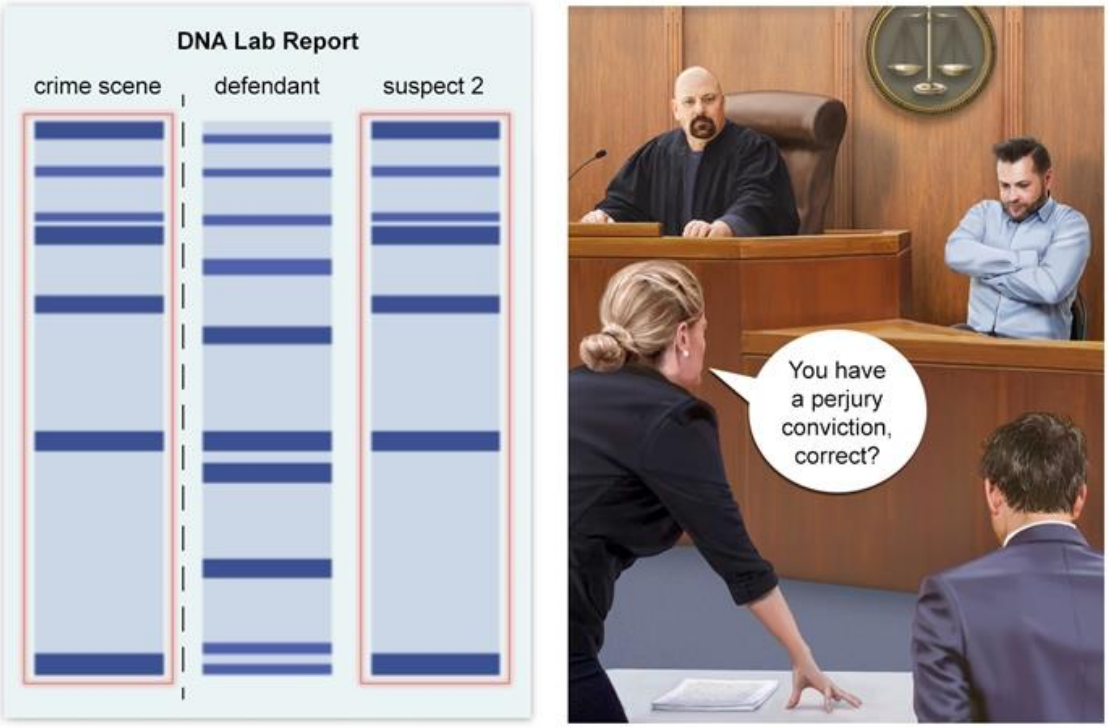
Brady v. Maryland, 373 U.S. 83, 87 (1963) (recognizing that prosecution's withholding of favorable and material evidence violated due process).

United States v. Bagley, 473 U.S. 667, 682 (1985) (discussing when a failure to disclose evidence favorable to the defendant is material).

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Exculpatory v. Impeachment



A valid warrant was issued for a woman's arrest. The police learned that a person with the woman's name and physical description lived at a particular address. When police officers went to that address, the house appeared to be unoccupied: the windows and doors were boarded up with plywood, and the lawn had not been mowed for a long time. A neighbor confirmed that the house belonged to the woman but said that the woman had not been there for several months.

The officers knocked repeatedly on the front door and shouted, "Police! Open up!" Receiving no response, they tore the plywood off the door, smashed through the door with a sledgehammer, and entered the house. They found no one inside, but they did find an illegal sawed-off shotgun. Upon her return to the house a few weeks later, the woman was charged with unlawful possession of the shotgun.

The woman has moved to suppress the use of the shotgun as evidence at her trial.

Should the court grant the motion?

A. No, because the officers acted in good faith under the authority of a valid warrant.
B. No, because the officers did not violate any legitimate expectation of privacy in the house since the woman had abandoned it.
C. Yes, because the officers entered the house by means of excessive force.
D. Yes, because the officers had no reason to believe that the woman was in the house.

**Explanation:**

An **arrest warrant** authorizes officers to take a suspect into custody for criminal prosecution and is generally required to arrest a suspect in his/her home. However, an arrest warrant does not give officers unrestricted authority to intrude upon a suspect's privacy interests in his/her home. Therefore, officers may only **forcibly enter a suspect's residence** to execute an arrest warrant if they:

**knock and announce** their presence

allow a **reasonable opportunity** for someone to answer *and*

have reason to **believe that the suspect is inside**.

Here, the officers went to the woman's home after they obtained a valid warrant for her arrest. They repeatedly knocked and announced their presence before smashing through the door (forcible entry). But since the home appeared vacant and a neighbor confirmed that the woman had not been there for several months, the officers had no reason to believe that she was inside. Therefore, their forcible entry was unlawful, and the shotgun discovered during that entry should be suppressed.

**(Choice A)** The good-faith exception to the exclusionary rule allows illegally seized evidence to be admitted if officers reasonably believed that they were acting lawfully. But this exception does not apply here since the valid warrant did not give the officers reason to believe that they could lawfully use force to enter the woman's apparently vacant home.

**(Choice B)** Since a person has no legitimate expectation of privacy in abandoned property, police may freely enter and search it. But police cannot reasonably assume that a poorly kept home is abandoned. Therefore, the boarded doors and windows and unmaintained lawn did not support an assumption that the woman's house was abandoned.

**(Choice C)** Although the officers entered the house by means of excessive force (since they had no reason to believe that the woman was inside), this does not support the suppression of evidence. Instead, the officers' excessive force may expose them to civil liability for damage caused to the house or other property.

**Educational objective:**

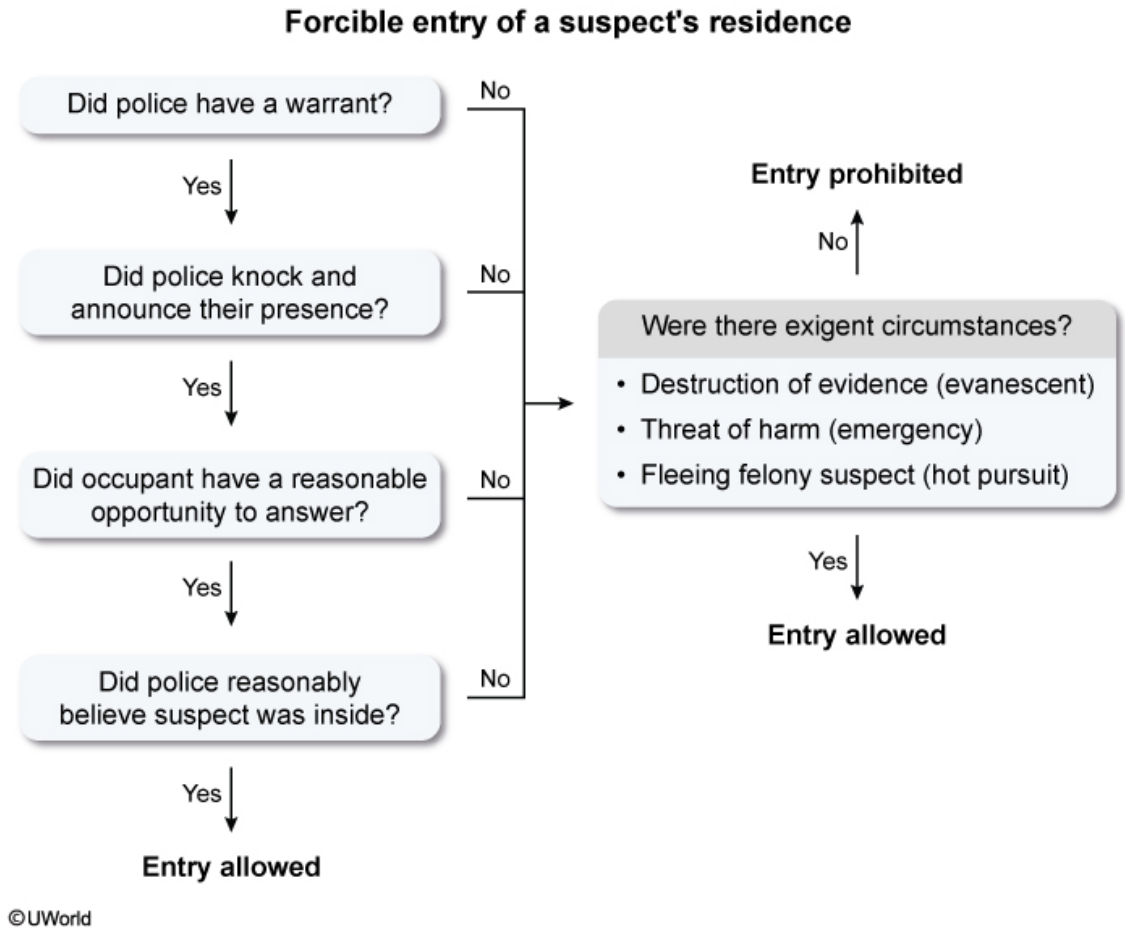
An arrest warrant allows officers to arrest a suspect in his/her home. But officers can only forcibly enter that home to make the arrest if they (1) knock and announce their presence, (2) allow a reasonable opportunity for someone to answer, and (3) have reason to believe that the suspect is inside.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Payton v. New York, 445 U.S. 573, 603 (1980) (explaining that an arrest warrant gives officers the authority to enter a suspect's dwelling when there is reason to believe the suspect is inside).

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A defendant was validly arrested for the murder of a store clerk and was taken to a police station where he was given Miranda warnings. When an interrogator asked the defendant, "Do you understand your Miranda rights, and are you willing to give up those rights and talk to us?" the defendant replied, "Yes." When asked, "Did you kill the clerk?" the defendant replied, "No." When asked, "Where were you on the day the clerk was killed?" the defendant replied, "Maybe I should talk to a lawyer." The interrogator asked, "Are you sure?" and the defendant replied, "I'm not sure." The interrogator then asked, "Why would you want to talk with a lawyer?" and the defendant replied, "Because I killed the clerk. It was an accident, and I think I need a lawyer to defend me." At that point all interrogation ceased. Later, the defendant was formally charged with murdering the clerk.

The defendant has moved to suppress evidence of his statement "I killed the clerk" on the ground that this statement was elicited in violation of his Miranda rights. Should the defendant's motion be granted?

A. No, because although the defendant effectively asserted the right to counsel, the question "Why would you want to talk with a lawyer?" did not constitute custodial interrogation.

B. No, because the defendant did not effectively assert the right to counsel, and his conduct prior to making the statement constituted a valid waiver of his Miranda rights.

C. Yes, because although the defendant did not effectively assert the right to counsel, his conduct prior to making the statement did not constitute a valid waiver of his Miranda rights.

D. Yes, because the defendant effectively asserted the right to counsel, and the question "Why would you want to talk with a lawyer?" constituted custodial interrogation.

**Explanation:**

**Right to counsel**

| | **Applicability** | **Request** | **Waiver** |
|---|---|---|---|
| **Fifth Amendment** | Suspect has right to counsel when:<br><br>in custody *and*<br>subjected to interrogation | Unambiguous request required | Valid if made:<br><br>knowingly<br>intelligently<br>voluntarily |
| **Sixth Amendment** | Defendant has right to counsel when:<br><br>judicial proceedings commence *and*<br>critical stage of prosecution | No request required<br><br>(attaches automatically) | |

Police must inform suspects of their Fifth Amendment **Miranda** **right to counsel** before a custodial interrogation. Police are **free to question** a suspect if he/she **waives** this right, but must **stop questioning** once the suspect makes an **unambiguous request for counsel** (eg, "I want a lawyer"). If police fail to honor that request and continue to question the suspect without the presence of counsel, the court should suppress the suspect's responses.

Here, the defendant validly waived his Miranda right to counsel before the custodial interrogation. And though the defendant later told the police interrogator "*Maybe* I should talk to a lawyer" and reiterated that he was "*not sure*," his statements were too ambiguous to effectively request counsel. Therefore, the interrogator was free to continue questioning the defendant without counsel present and the court should deny the defendant's motion to suppress his statement that he killed the clerk.

**(Choices A & D)** Since the defendant was validly arrested (custody) and the police interrogator's questioning was reasonably likely to elicit an incriminating response (interrogation), the question "Why would you want to talk to a lawyer?" does constitute custodial interrogation. But since the defendant validly waived his Miranda rights and did not effectively assert his right to counsel, his answer is admissible at trial.

**(Choice C)** After being Mirandized, the defendant clearly stated that he understood his rights and that he was willing to give up those rights and talk to the interrogator. Therefore, the defendant unequivocally and validly waived his Miranda rights.

**Educational objective:**

Police are free to question a suspect who waives his/her Fifth Amendment (Miranda) right to counsel. However, if the suspect later makes an unambiguous request for counsel, police

must stop questioning until the suspect's lawyer is present. If the police continue questioning, the suspect's responses should be suppressed.

**References**

U.S. Const. amend. V.

Davis v. United States, 512 U.S. 452 (1994) (ineffective assertion of right to counsel).

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A defendant, a 14-year-old male, was tried as an adult for an armed robbery and was convicted. No one had been physically harmed during the robbery. In light of the defendant's lengthy juvenile criminal history, which included violent offenses, and the fact that armed robbery is a crime of violence, he was sentenced to life in prison without the possibility of parole.

Did the life-without-parole sentence violate the Eighth Amendment ban on cruel and unusual punishment?

A. No, because a juvenile may be sentenced to life without parole if release would pose a danger to the community.

B. No, because the Eighth Amendment does not apply outside the context of capital punishment.

C. Yes, because a life-without-parole sentence is not permissible for a juvenile defendant convicted of a nonhomicide offense.

D. Yes, because a life-without-parole sentence is not permissible for an adult or juvenile defendant convicted of a nonviolent offense.

**Explanation:**

**Eighth Amendment cruel & unusual punishment**

No death penalty for:
juveniles
intellectually deficient persons
adults convicted of nonhomicide offenses
No life-without-parole for juveniles convicted of nonhomicide offenses
No mandatory life-without-parole for juveniles convicted of homicide
The Eighth Amendment prohibits **cruel and unusual punishments**—punishments that are inherently barbaric (eg, torture) and those that are disproportionate to the crime. A **punishment is disproportionate** if:

the sentence imposed **grossly exceeds** the nature of the crime (eg, defendant sentenced to life in prison for shoplifting) *or*

the punishment violates a categorical rule based on the **defendant's characteristics** (eg, a juvenile) and/or the **nature of the crime** (eg, a nonhomicide offense).

Therefore, if the defendant was a **juvenile** (under the age of 18) when the crime was committed, the Eighth Amendment prohibits the imposition of: (1) the death penalty, (2) mandatory life without parole for any offense, *and* (3) **life without parole for nonhomicide offenses**.

Here, the 14-year-old defendant (juvenile) was convicted of armed robbery (nonhomicide offense) and sentenced to life in prison without the possibility of parole. Therefore, this sentence violated the Eighth Amendment's ban on cruel and unusual punishment.

**(Choice A)** Due to their age, juveniles convicted of nonhomicide offenses cannot be sentenced to life without parole for any reason. Therefore, the defendant's sentence violated the Eighth Amendment even if his release from prison would pose a danger to the community.

**(Choice B)** The Eighth Amendment applies to *capital* punishment (death penalty)—eg, juveniles cannot be sentenced to death. However, it also applies to *noncapital* punishment (non-death penalty)—eg, juveniles cannot be sentenced to life without parole for nonhomicide offenses.

**(Choice D)** Although a juvenile cannot be sentenced to life without parole for a nonviolent offense, an adult *can* (though most courts would likely consider it excessive).

**Educational objective:**

The Eighth Amendment's prohibition against cruel and unusual punishment forbids imposing a sentence of life in prison without the possibility of parole on a juvenile defendant convicted of a nonhomicide offense.

**References**

U.S. Const. amend. VIII (prohibition against cruel and unusual punishment).

Graham v. Florida, 560 U.S. 48, 74 (2010) (recognizing that juveniles cannot be sentenced to life without parole for nonhomicide offenses).

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After a defendant was indicted on federal bank fraud charges and released on bail, his attorney filed notice of the defendant's intent to offer an insanity defense. The prosecutor then enlisted the help of a forensic psychologist who was willing to participate in an "undercover" mental examination of the defendant. The psychologist contacted the defendant and pretended to represent an executive personnel agency. She told the defendant about an attractive employment opportunity and invited him to a "preliminary screening interview" to determine his qualifications for the job. As part of the purported screening process, the psychologist gave the defendant psychological tests that enabled her to form a reliable opinion about his mental state at the time of the alleged offense.

What is the strongest basis for a defense objection to the psychologist's testimony regarding the defendant's mental state?

A. The federal common law privilege for confidential communications between psychotherapist and patient.
B. The Fourth Amendment prohibition against unreasonable searches and seizures.
C. The Fifth Amendment privilege against compelled self-incrimination.
D. The Sixth Amendment right to the assistance of counsel.

**Explanation:**

A court should sustain a defendant's objection to testimony based on evidence obtained in violation of his/her constitutional rights, including the **Sixth Amendment right to counsel**. This right:

automatically attaches once judicial proceedings commence (eg, filing of formal charges, indictment) *and*

guarantees a criminal defendant assistance of counsel at all **critical stages of prosecution**—any event where the absence of counsel may prejudice the defendant's right to a fair trial.

An **interrogation** is a critical stage of prosecution because the government (eg, prosecutor, undercover government informant) engages in conduct that is reasonably likely to **elicit an incriminating response** that can be used against the defendant at trial. Therefore, a defendant's Sixth Amendment right to counsel is violated when the government interrogates him/her post-indictment without counsel present.

Here, the defendant's right to counsel automatically attached once he was indicted (judicial proceedings commenced). The prosecutor then enlisted the forensic psychologist to interrogate the defendant by conducting an "undercover" examination of his mental state at the time of the alleged offense (critical stage). And since the defendant did not have access to counsel during that interrogation, the strongest basis for an objection is that the psychologist's testimony is based on evidence obtained in violation of his Sixth Amendment right to counsel.

**(Choice A)** Under the federal psychotherapist-patient privilege, a patient can prevent the disclosure of confidential communications with his/her psychotherapist that were made for the purpose of diagnosis or treatment. But this privilege does not apply here since the defendant spoke with the undercover psychologist for a preliminary employment screening—not for diagnosis or treatment.

**(Choice B)** The Fourth Amendment is inapplicable since no Fourth Amendment *search* occurred: (1) the defendant had no reasonable expectation of privacy in the information he freely disclosed to the psychologist and (2) the psychologist did not invade a constitutionally protected area. And no Fourth Amendment *seizure* occurred since the psychologist did not confiscate the defendant's property or restrict his freedom of movement.

**(Choice C)** The Fifth Amendment privilege against self-incrimination applies when a suspect is compelled to make a self-incriminating statement while he/she is in custody or testifying in court. This privilege does not apply here since the psychologist questioned the defendant while he was released on bail (not in custody) and outside the courtroom (not testifying in court).

**Educational objective:**

The Sixth Amendment right to counsel automatically attaches once judicial proceedings commence and requires the presence of counsel during all critical stages of prosecution—including interrogations conducted by undercover government agents.

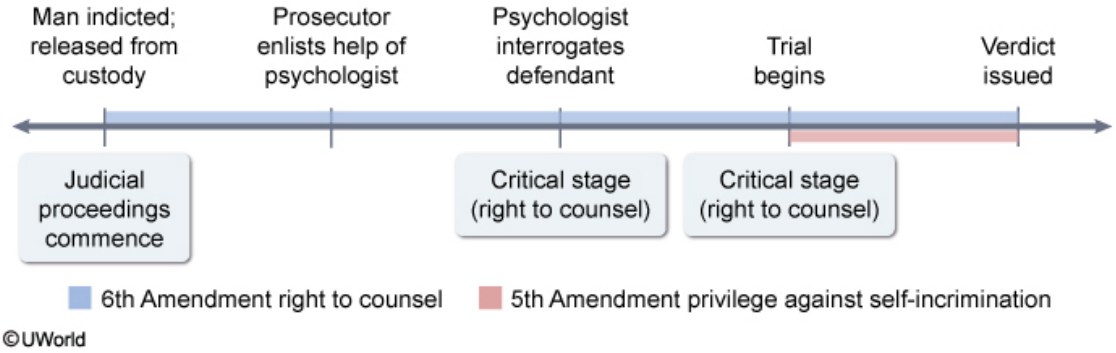
**References**

U.S. Const. amend. VI (right to counsel).

Massiah v. United States, 377 U.S. 201, 206 (1964) (holding that deliberately eliciting statements from defendant in the absence of counsel violates defendant's Sixth Amendment right to counsel).

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Four hours into a defendant's assault trial, the lawyers gathered in the judge's chambers to discuss an evidentiary issue. While there, the judge received a phone call from his wife telling him that her mother had suddenly died. Without asking the lawyers what they wanted to do, the judge brought the lawyers back into the courtroom, declared a mistrial, excused the jury, and rushed home to his wife.

A new jury was impaneled the next day before a second judge.

The defendant has objected to the second trial on double jeopardy grounds.

Would the second trial violate the prohibition against double jeopardy?

A. No, because the first judge acted in good faith in declaring a mistrial.
B. No, because the first trial did not produce a verdict.
C. Yes, because the second judge's evidentiary rulings might be inconsistent with those of the first judge.
D. Yes, because there was no manifest necessity for a mistrial.

**Explanation:**

**No double jeopardy protections**

(retrial permitted for same offense)

| | |
|---|---|
| **No attachment** | Jury was not impaneled & sworn *or*<br>Judge did not begin to hear evidence |
| **Mistrial** | Requested by defendant *or*<br>Based on manifest necessity |
| **Appeal** | Appellate court discovered trial error & remanded case |
| **New facts** | Facts necessary for greater offense did not exist at first trial |
| **Guilty plea to lesser offense** | Greater offense was charged at time of plea to lesser offense |

The Fifth Amendment **double jeopardy** clause bars multiple punishments and a second prosecution for the same offense following a conviction or an acquittal (ie, a final judgment). Since a mistrial terminates a trial prior to a final judgment, double jeopardy permits a **retrial** when (1) the defendant requested the mistrial or (2) the **mistrial** was **based on a manifest necessity**—ie:

an unforeseeable event made it **highly necessary to terminate** the proceedings (eg, the death of a juror) *and*

the judge exercised **sound and rational discretion** before declaring the mistrial (eg, allowing both sides the opportunity to speak, considering the available alternatives).

Here, the judge learned that his mother-in-law had suddenly died (unforeseeable event) and declared a mistrial. But the judge did so without considering other alternatives like postponing the trial or substituting another judge (no exercise of sound and rational discretion). As a result, there was no manifest necessity for the mistrial, and a second trial *would* violate the double jeopardy clause.

**(Choice A)** The judge acted in good faith since he declared the mistrial to tend to personal issues—not to prejudice the defendant. But since there was no manifest necessity for the mistrial, the defendant cannot be retried.

**(Choice B)** Although the first trial did not produce a verdict (since the judge declared a mistrial), double jeopardy prohibits a second prosecution because the mistrial was not based on a manifest necessity. If it had been, the second trial would have been permissible.

**(Choice C)** While the second judge's evidentiary rulings might be inconsistent with those of the first judge, the double jeopardy clause is violated due to the lack of a manifest necessity for the mistrial. Had the mistrial been based on a manifest necessity, a second trial before a

different judge would not have violated the double jeopardy clause despite the risk of inconsistent evidentiary rulings.

**Educational objective:**

Double jeopardy does not bar a second prosecution following a mistrial if the defendant requested the mistrial or it was based on a manifest necessity—(1) when an unforeseeable event made it highly necessary to end the proceedings and (2) the judge exercised sound and rational discretion before doing so.

**References**

U.S. Const. amend. V (prohibition against double jeopardy).

United States v. Perez, 22 U.S. 579, 580 (1824) (holding that a retrial is permitted when it is based on a manifest necessity).

United States v. Jorn, 400 U.S. 470, 486–87 (1971); Arizona v. Washington, 434 U.S. 497, 514–17 (1978) (explaining that a judge must exercise sound and rational discretion when determining whether manifest necessity exists).

Love v. Morton, 944 F.Supp. 379, 390–91 (D.N.J. 1996) (finding that there was no manifest necessity for a mistrial when the judge's mother-in-law died because he failed to exercise sound and rational discretion).

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Two defendants were being tried together in federal court for bank robbery. The prosecutor sought to introduce testimony from the first defendant's prison cellmate. The cellmate would testify that the first defendant had admitted to the cellmate that he and the second defendant had robbed the bank. The prosecutor asked the court to instruct the jury that the cellmate's testimony could be considered only against the first defendant.

Can the cellmate's testimony be admitted in a joint trial over the second defendant's objection?

A. No, because the first defendant made the statement without Miranda warnings.

B. No, because the limiting instruction cannot ensure that the jury will not consider the testimony in its deliberations regarding the second defendant.

C. Yes, because the first defendant's statement was a declaration against penal interest.

D. Yes, because the limiting instruction sufficiently protects the second defendant.

**Explanation:**

A court should exclude testimony that would violate a criminal defendant's constitutional rights, including the Sixth Amendment **right to confront** (ie, cross-examine) adverse witnesses at trial. In a **joint jury trial**—ie, when two or more defendants are tried before the same jury on charges related to the same facts—a defendant's right to confrontation is violated when:

the court admits a **co-defendant's out-of-court statement** that implicates the other defendant in the crime *and*

the co-defendant **does not testify** at trial and cannot be compelled to testify due to his/her Fifth Amendment privilege against self-incrimination.

Here, at the defendants' joint jury trial for bank robbery, the prosecution wanted the first defendant's cellmate to testify that the first defendant confessed. But the admission of that testimony would violate the second defendant's right to confrontation because (1) the confession was an out-of-court statement that implicated him in the crime and (2) there is no indication that the first defendant will testify at trial (nor can he be compelled to do so).

And a **limiting instruction** directing the jury to only consider the first defendant's statement against him cannot eliminate the substantial risk that the jury will consider that statement in its deliberations concerning *both* defendants. Therefore, a limiting instruction **cannot cure** this Sixth Amendment violation **(Choice D)**.

**(Choice A)** Miranda warnings are only required when a person is subjected to custodial interrogation by a known law enforcement officer—not undercover agents or jailhouse informants (like the cellmate). And even if Miranda warnings had been required, the second defendant can only object to the violation of his own constitutional rights—not the rights of another.

**(Choice C)** A statement against interest—ie, a statement that goes against an unavailable declarant's penal, pecuniary, or proprietary interests—is a hearsay exception that allows an out-of-court statement to be admitted at trial. This exception does not apply here since statements made by party-opponents (eg, the first defendant's confession) are not hearsay. But even if it did, the Sixth Amendment violation renders this testimony inadmissible.

**Educational objective:**

In a joint jury trial, a criminal defendant's Sixth Amendment right to confront adverse witnesses is violated when (1) the court admits a co-defendant's out-of-court statement that implicates the other defendant in the crime and (2) the co-defendant does not testify. A limiting instruction cannot cure this violation.

**References**

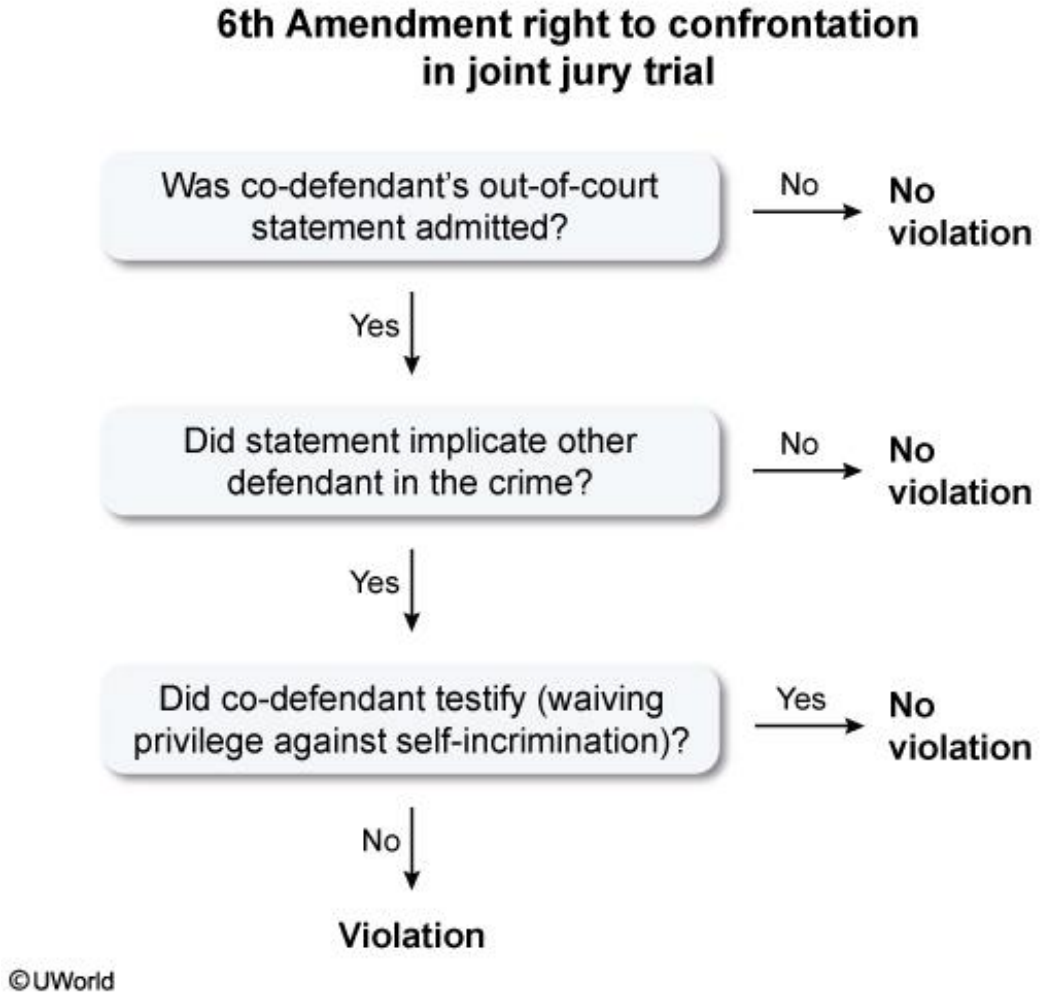
U.S. Const. amend. VI (confrontation clause).

Bruton v. United States, 391 U.S. 123, 136 (1968) (analyzing the right to confront a co-defendant).

Cruz v. New York, 481 U.S. 186, 193 (1987) (finding that a limiting instruction is insufficient to protect a defendant's confrontation right).

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A state statute provides: "A person commits the crime of rape if he has sexual intercourse with a female, not his wife, without her consent." Mistake as to consent is an affirmative defense in this jurisdiction.

A man was charged with the rape of a woman. At trial, the woman testified to facts sufficient for a jury to find that the man had sexual intercourse with her, that she did not consent, and that the two were not married. The man testified in his own defense that he believed that the woman had consented to sexual intercourse and that she was his common-law wife.

At the conclusion of the case, the court instructed the jury that in order to find the man guilty of rape, it must find beyond a reasonable doubt that he had sexual intercourse with the woman without her consent.

The court also instructed the jury that it should find the man not guilty if it found either that the woman was the man's wife or that the man reasonably believed that she had consented to the sexual intercourse. The court placed the burden of persuasion as to these issues on the man.

The jury found the man guilty, and he appealed, contending that the court's instructions on the issues of whether the woman was his wife and whether he reasonably believed she had consented to sexual intercourse violated his constitutional rights.

Were the man's constitutional rights violated by the trial court's jury instructions?

A. No, his rights were not violated by either part of the instructions.

B. Yes, his rights were violated by the instruction as to whether the woman was his wife, but not by the instruction on belief as to consent.

C. Yes, his rights were violated by the instruction on belief as to consent, but not by the instruction as to whether the woman was his wife.

D. Yes, his rights were violated by the instructions as to both issues.

**Explanation:**

**Criminal defenses: burdens & standards of proof**

| | |
|---|---|
| **Negation defense** | Challenges element of crime (eg, alibi, lack of intent)<br>Fifth Amendment assigns burden to prosecution to prove element beyond a reasonable doubt |
| **Affirmative defense** | Justifies or excuses criminal conduct, but does not challenge element of crime (eg, entrapment, self-defense, duress)<br>Statute assigns burden (prosecution or defense) & standard of proof (eg, preponderance, clear & convincing, beyond a reasonable doubt) |

The due process clause of the Fourteenth Amendment (applicable to the states) requires that the **prosecution prove every element** of a criminal offense **beyond a reasonable doubt**. In this jurisdiction, rape requires proof of three elements: (1) a man and a woman had sex, (2) the woman did not consent, and (3) they were not married.

At the conclusion of the man's trial, the court instructed the jury that it could convict the man of rape if it found beyond a reasonable doubt that (1) the man and the woman had sex and (2) she did not consent. However, the court's jury instruction placed the burden of proof for the third element (marriage) on the man—not the prosecution. Therefore, the instruction as to whether the woman was the man's wife violated due process **(Choices A & C)**.

In contrast, due process does not apply to **affirmative defenses** because these defenses do not challenge the elements of the criminal offense—they merely justify or excuse a defendant's criminal conduct. Therefore, the defendant can bear the burden to prove an affirmative defense under any evidentiary standard.

Here, the court instructed the jury that it could find the man not guilty if he proved that he reasonably believed that the woman had consented to sex (ie, mistaken consent). Mistaken consent is an affirmative defense since it does not negate an element of rape, but rather excuses the man's conduct. Therefore, the instruction on the man's belief as to consent properly placed the burden of proof on the man and did not violate due process **(Choices C & D)**.

**Educational objective:**

While due process requires that the prosecution prove every element of a crime beyond a reasonable doubt, a defendant can bear the burden to prove an affirmative defense by any evidentiary standard.

**References**

U.S. Const. amend. XIV § 1 (due process clause).

In re Winship, 397 U.S. 358, 364 (1970) (holding that the prosecution must prove every element of crime beyond a reasonable doubt).

Patterson v. New York, 432 U.S. 197, 210 (1977) (explaining that the state may place the burden of proof on the defendant to establish an affirmative defense).

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On October 22, a police officer submitted an application for a warrant to search a man's residence for cocaine. In the application, the officer stated under oath that he believed there was cocaine at that location because of information supplied to him on the morning of October 22 by an informant. He described the informant as a cocaine user who had previously supplied accurate information concerning the use of cocaine in the community and summarized what the informant had told him as follows: the previous night, October 21, the informant was in the man's house. The man gave her cocaine. She also saw three cellophane bags containing cocaine in the man's bedroom.

The warrant was issued and a search of the man's residence was conducted on October 22. The search turned up a quantity of heroin but no cocaine. The man was arrested and charged with possession of heroin. The man moved to suppress the use of the heroin as evidence, contending that the informant was not in his residence on October 21 or at any other time.

If, after hearing evidence, the judge concludes that the statement in the application attributed to the informant is incorrect and grants the motion to suppress, what will be the most likely reason?

A. The application contained a material statement that was false.

B. The court also found that the informant's statement was a deliberate lie.

C. The court also found that the officer knew the statement was false.

D. The informant's statement was false and no cocaine was found in the house.

**Explanation:**

A **search warrant** is **presumptively valid** if it (1) is issued by a neutral and detached magistrate (ie, judge) based on probable cause, (2) is supported by a sworn oath or affidavit, and (3) particularly describes the place to be searched and items to be seized. However, a defendant may challenge that presumption and **invalidate the warrant** if he/she can prove by a preponderance of the evidence that:

the application contains a **false statement necessary** to the **finding of probable cause** *and*
the officer submitting the application **knew the statement was false** or recklessly disregarded its falsity.

Any evidence seized pursuant to an invalid search warrant should be suppressed at trial.

Here, the officer's application for a search warrant stated that he believed there was cocaine at the man's residence based on information supplied by an informant. The trial judge concluded that the statement in the application attributed to the informant was incorrect (false statement). And that statement was the only basis for the officer's application (necessary to finding of probable cause). Therefore, the motion to suppress will likely be granted if the court *also* finds that the officer knew the statement was false (or recklessly disregarded its falsity) **(Choice A)**.

**(Choices B & D)** The fact that the informant's statement was a deliberate lie and that no cocaine was found in the house helps show that the application contains a false statement. But the search warrant would only be invalid if the officer knew, or recklessly failed to determine, that the statement was false. Without such evidence, the court would not grant the motion to suppress.

**Educational objective:**

A search warrant is invalid if the preponderance of the evidence shows that (1) the application contains a false statement necessary to the finding of probable cause and (2) the officer who submitted the application knew that the statement was false or recklessly disregarded its falsity.

**References**

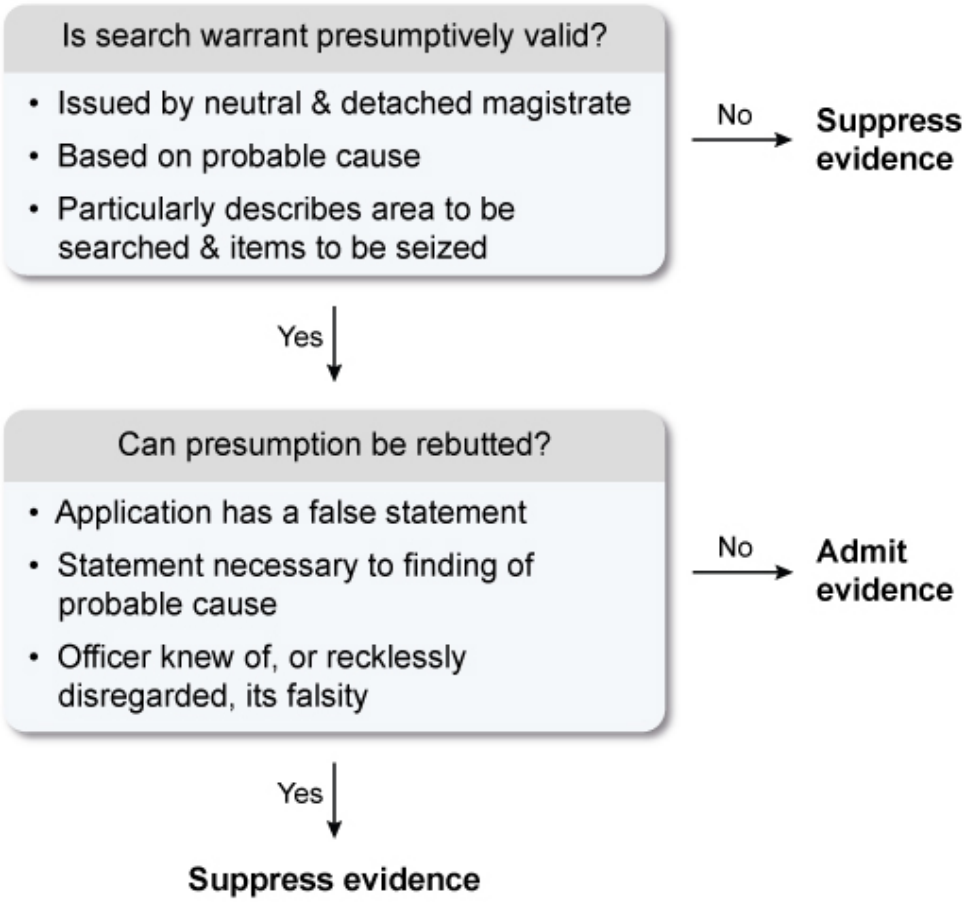
U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

Franks v. Delaware, 438 U.S. 154, 156 (1978) (holding that an officer's knowing or reckless inclusion of a material false statement in an application for a search warrant invalidates the warrant).

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**Invalid search warrant**
(requires suppression of seized evidence)




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A man and a woman were charged with murder. Each gave a confession to the police that implicated both of them. The woman later retracted her confession, claiming that it was coerced. The man and the woman were tried together. The prosecutor offered both confessions into evidence. The man and woman objected.

After a hearing, the trial judge found that both confessions were voluntary and admitted both into evidence. The woman testified at trial. She denied any involvement in the crime and claimed that her confession was false and the result of coercion. Both defendants were convicted.

On appeal, the woman contends her conviction should be reversed because of the admission into evidence of the man's confession.

Will the woman likely prevail on her appeal?

A. No, because the woman testified at trial on her own behalf.

B. No, because the woman's own confession was properly admitted into evidence.

C. Yes, unless the man testified at trial.

D. Yes, whether or not the man testified at trial.

**Explanation:**

**Bruton rule**

Codefendant's out-of-court statement admissible if:

codefendant testifies
out-of-court statement redacts (removes) reference to defendant *or*
statement used to rebut claim of coerced confession & jury is instructed as such

Most errors made by the trial court will be reviewed on appeal for harmless error. Under the **harmless error test**, the government must prove beyond a reasonable doubt that the error did not contribute to the defendant's conviction or the conviction will be reversed. Error occurs when the trial court violates a defendant's constitutional rights.

In a **joint jury trial**, two or more defendants are tried before the same jury for charges related to the same facts. Each defendant has the Fifth Amendment privilege against self-incrimination and can refuse to testify at trial. But each defendant also has the Sixth Amendment **right to confront** (ie, cross-examine) adverse witnesses. So, if the trial court admits an **out-of-court statement** made by a **non-testifying co-defendant** that is adverse to the other defendant (eg, implicates that defendant in the crime), it violates that defendant's right to confrontation.

Here, the man and the woman each gave a confession to the police that implicated them both for murder. During their joint jury trial, the prosecution offered their prior confessions into evidence. Since the man's confession implicated the woman in the crime, the trial court's decision to admit his prior confession into evidence violated her right to confrontation if he did not testify at trial. Therefore, the woman will likely prevail on her appeal *unless the man testified* and was thereby subject to cross-examination **(Choice D)**.

**(Choice A)** Although the woman testified at trial on her own behalf, she could not confront the man through cross-examination if he did not testify. And since her testimony did not render the erroneous admission of the man's confession harmless beyond a reasonable doubt, her conviction should be reversed on appeal.

**(Choice B)** The woman's confession was properly admitted into evidence because she testified at trial. Although her confession may have aided in her conviction, this fails to prove beyond a reasonable doubt that the man's confession did not contribute to her conviction.

**Educational objective:**

In a joint jury trial, the Sixth Amendment confrontation clause is violated when a non-testifying co-defendant's prior statement implicating the other defendant in the crime is admitted at trial.

**References**

U.S. Const. amend. VI (confrontation clause).

Bruton v. United States, 391 U.S. 123, 136 (1968) (analyzing the right to confront co-defendant).

Schneble v. Florida, 405 U.S. 427, 430 (1972) (recognizing that the standard of appellate review for a confrontation issue is harmless error).

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A man was arrested in his girlfriend's apartment after her neighbors had reported sounds of a struggle and the police had arrived to find the man bent over his girlfriend's prostrate body. The girlfriend was rushed to the hospital where she lapsed into a coma. Despite the explanation that he was trying to revive his girlfriend after she suddenly collapsed, the man was charged with attempted rape and assault after a neighbor informed the police that she had heard the girlfriend sobbing, "No, please no, let me alone."

At trial, the forensic evidence was inconclusive. The jury acquitted the man of attempted rape but convicted him of assault. While he was serving his sentence for assault, the girlfriend, who had never recovered from the coma, died. The man was then indicted and tried on a charge of felony murder. In this common law jurisdiction, there is no statute that prevents a prosecutor from proceeding in this manner, but the man argued that a second trial for felony murder after his original trial for attempted rape and assault would violate the double jeopardy clause.

Is the man's claim correct?

A. No, because he was convicted of the assault charge.

B. No, because his girlfriend had not died at the time of the first trial and he was not placed in jeopardy for murder.

C. Yes, because he was acquitted of the attempted rape charge.

D. Yes, because he was convicted of the assault charge.

**Explanation:**

The **Fifth Amendment double jeopardy clause** protects criminal defendants from undue government harassment by prohibiting (1) multiple punishments for the same offense and (2) a **second prosecution** for the **same offense** after a conviction or acquittal. Two crimes constitute the same offense when:

both crimes have identical elements *or*

**every element** of one crime is **also an element** of the other crime (as seen here).

Here, the man was convicted of assault and acquitted of attempted rape at the first criminal trial. The girlfriend then died, and the man was indicted for **felony murder**—a crime requiring proof that the defendant:

unintentionally killed another

during the commission, or attempted commission, of an inherently dangerous felony.

Since felony murder requires proof of the underlying felony, they are considered the same offense. And because the man was acquitted of attempted rape (underlying felony) at the first trial, a second trial for felony murder (same offense) would violate the double jeopardy clause.

**(Choices A & D)** Common law assault—an attempted battery or intentionally placing another in apprehension of imminent harmful contact—is not considered an inherently dangerous felony. Therefore, the man's assault conviction is unrelated to his subsequent felony murder charge.

**(Choice B)** A second prosecution is permitted when the facts necessary to establish the greater offense did not exist at the time of the initial prosecution. Here, the man was acquitted of attempted rape (underlying felony) at the first trial, and no new facts regarding this felony were discovered before the second trial. Therefore, the girlfriend's subsequent death does not permit a second prosecution of felony murder (since attempted rape still cannot be proven). But her death would have permitted a second prosecution had the man been *convicted* of attempted rape.

**Educational objective:**

Double jeopardy prohibits multiple punishments or a second prosecution for the same offense. Two crimes are considered the same offense when they have identical elements or when every element of one crime (eg, an underlying felony) is also an element of the other crime (eg, felony murder).

**References**

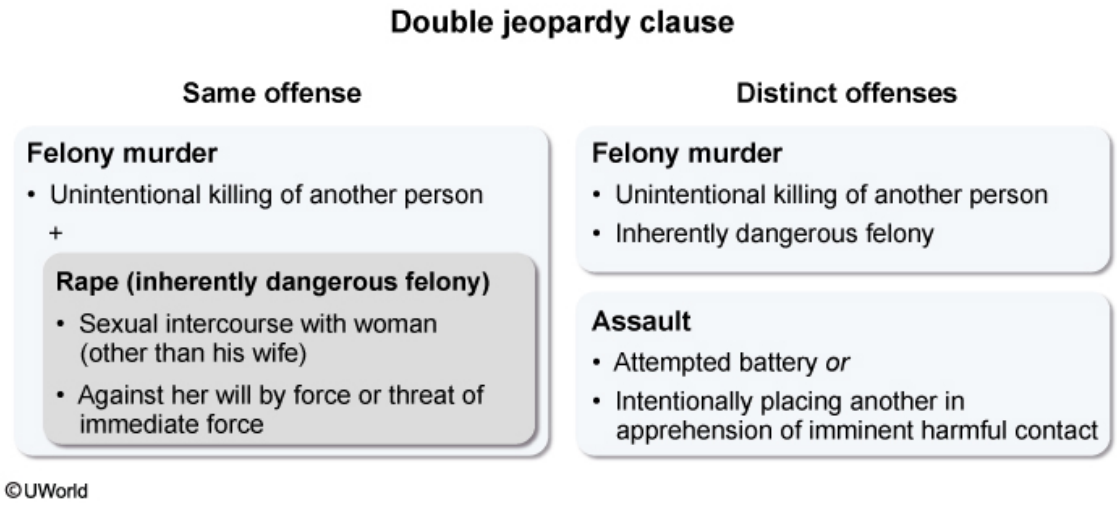
U.S. Const. amend. V (prohibition against double jeopardy).

Brown v. Ohio, 432 U.S. 161, 169 (1977) ("Whatever the sequence may be, the Fifth Amendment forbids successive prosecution and cumulative punishment for a greater and lesser included offense").

Harris v. Oklahoma, 433 U.S. 682, 682–83 (1977); Whalen v. United States, 445 U.S. 684, 694 (1980) (holding that felony murder and the underlying felony are the same offense for double jeopardy purposes).

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State troopers lawfully stopped a car driver on a turnpike for exceeding the speed limit by four miles per hour. One trooper approached the car to warn the driver to drive within the speed limit. The other trooper remained in the patrol car and ran a computer check of the car's license number. The computer check indicated that there was an outstanding warrant for the driver's arrest for unpaid traffic tickets. The troopers then arrested the driver based on the warrant, and they proceeded to search the driver. During the search, they discovered a package of heroin in one of the driver's pockets. Later, it was learned that the driver had paid the outstanding traffic tickets 10 days earlier and that the warrant had been quashed, but the clerk of the court had failed to update the computer, which continued to list the warrant as outstanding.

The driver was charged with unlawful possession of heroin. Her attorney has filed a motion to suppress the use of the heroin as evidence.

Should the motion be granted?

A. No, because the troopers could reasonably rely on the computer report and the search was incident to arrest.

B. No, because troopers may lawfully search a driver incident to a valid traffic stop.

C. Yes, because there was no arrest for the traffic violation and no lawful arrest could be made on the basis of the warrant.

D. Yes, because there was no probable cause or reasonable suspicion to believe that the driver possessed drugs.

**Explanation:**

**Exceptions to exclusionary rule**

| Exception | Definition | Examples |
|---|---|---|
| **Good faith** | Reasonable belief that actions leading to discovery of evidence were lawful | Executing later-invalidated warrant<br>Following law subsequently deemed unconstitutional |
| **Independent source** | Evidence later obtained independent of initial illegality | Police return to site of illegal search with valid warrant based on other information |
| **Inevitable discovery** | Evidence would have been discovered through other untainted means | Incriminating evidence would have been discovered during search despite Miranda violation |
| **Attenuation** | Break in causal connection between illegal police conduct & discovery of evidence | Suspect released after invalid arrest later confesses<br>Substantial passage of time between illegal conduct & discovery of evidence |

The **exclusionary rule** seeks to deter police misconduct by prohibiting the government from using evidence obtained in violation of a defendant's constitutional rights at trial. But under the **good faith exception**, illegally obtained **evidence is admissible** if the prosecution proves by a preponderance of the evidence that:

police **relied in good faith** on (1) a **facially valid warrant later deemed invalid** *or* (2) an existing law later declared unconstitutional *and*

their **reliance was objectively reasonable**.

Here, state troopers stopped the driver for speeding and arrested her after a computer check indicated that she had an outstanding arrest warrant. Although the computer report was wrong, the troopers did not know that the facially valid warrant had been quashed. Therefore, they reasonably relied on that report in arresting the driver and searching her car incident to that arrest. As a result, the heroin found in her pocket was obtained in good faith, and the motion to suppress should be denied.

**(Choice B)** Under the search-incident-to-arrest exception, a warrantless search is lawful when a person (and the area within his/her immediate reach) is searched incident to a valid *arrest*—not a valid *traffic stop*.

**(Choice C)** Although there was no arrest for the traffic violation and no lawful arrest could be made based on the warrant, the troopers could reasonably rely on the computer check showing the outstanding warrant. Therefore, the heroin found during the subsequent search is admissible under the good faith exception.

**(Choice D)** The troopers did not have probable cause or reasonable suspicion to believe that the driver possessed drugs. But since the troopers arrested and then searched the driver in good faith, the heroin discovered during that search is admissible.

**Educational objective:**

The good faith exception to the exclusionary rule allows unlawfully obtained evidence to be admitted when (1) police relied in good faith on a facially valid warrant later deemed invalid OR an existing law later declared unconstitutional and (2) their reliance was objectively reasonable.

**References**

U.S. Const. amend. IV (prohibition against unreasonable searches and seizures).

United States v. Leon, 468 U.S. 897, 919 (1984) (establishing the good faith exception to the exclusionary rule).

Herring v. United States, 555 U.S. 135, 137 (2009) (applying the good faith exception to an arrest based upon an invalid warrant).

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An executive director of an equal housing opportunity organization was the leader of a sit-in at the offices of a real estate management company. The protest was designed to call attention to the company's racially discriminatory rental practices. When police demanded that the director desist from trespassing on the company's property, she refused and was arrested.

In the director's trial for trespass, the prosecution peremptorily excused all nonwhites from the jury, arguing to the court that even though the director was white, minority groups would automatically support her because of her fight against racism in housing accommodations.

The director is convicted of trespass by an all-white jury and appeals, claiming a violation of her constitutional rights.

How will the court likely rule on appeal?

A. Affirm the conviction, because peremptory challenge of the nonwhites did not deny the director the right to an impartial jury.
B. Affirm the conviction, because the director was not a member of the class discriminated against.
C. Reverse the conviction, because racially based peremptory challenges violate equal protection of the law.
D. Reverse the conviction, because the director was denied the right to have her case heard by a fair cross section of the community.

**Explanation:**

**Jury panel challenges**

| | |
|---|---|
| **Peremptory** | Disqualify potential juror for *any* reason except discrimination based on race, ethnicity, or sex |
| **For cause** | Disqualify potential juror for a *stated* reason for believing juror cannot be fair or impartial (eg, bias, prejudice, past experience) |

A **peremptory challenge** is an objection to a potential juror that can be raised without any reason or explanation during the jury-selection process. However, the prosecution's use of peremptory challenges must comply with the Fourteenth Amendment **equal protection clause**, which prohibits striking potential jurors based solely on their **race**, **ethnicity**, **or sex**. To successfully contest a peremptory challenge on equal protections grounds (*Batson* challenge) and receive a new trial on appeal:

the defendant must establish a prima facie case of **discrimination** (eg, the prosecution used peremptory challenges to strike only female jurors)

the prosecution may then provide a sufficiently **neutral reason** for the peremptory challenges (eg, the strikes were based on age, not gender) *and*

if it does so, the defendant must then prove **intentional discrimination**—that the prosecution's reasoning is insufficient or implausible (eg, the prosecution purportedly struck a 21-year-old woman due to her age but did not strike a 21-year-old man).

Here, the prosecution used its peremptory challenges to strike all nonwhites from the jury (prima facie racial discrimination). The prosecution explained that it did so because it believed minority groups would automatically support the director due to her civil rights background (non-neutral reason). Therefore, the prosecution's strikes violated the equal protection clause and the appellate court will likely reverse the director's conviction.

**(Choice A)** Under the Sixth Amendment, a criminal defendant must be tried by an impartial jury that can decide the case on the evidence presented—not personal biases. Here, there is no evidence that the all-white jury was biased when it convicted the director, so the prosecution's peremptory challenges of all nonwhites did not violate her right to an impartial jury. However, her conviction can still be reversed on equal protection grounds.

**(Choice B)** A defendant can make a *Batson* challenge even if he/she is not a member of the class of stricken jurors. Therefore, the fact that the director is white and the stricken jurors are nonwhite does not prevent the appellate court from holding that the peremptory challenges violated the director's right to equal protection.

**(Choice D)** The Sixth Amendment requirement that a jury be drawn from a fair cross section of the community applies to the composition of the *jury venire* (the panel of citizens

from which a jury is selected)—not the *empaneled jury* (citizens selected from the jury venire to hear the case).

**Educational objective:**

Peremptory challenges can be used to strike potential jurors without any reason or explanation, unless they are used to exclude potential jurors based solely on their race, ethnicity, or sex.

**References**

U.S. Const. amend. IV § 1 (equal protection clause).

Batson v. Kentucky, 476 U.S. 79, 89 (1986) (holding that peremptory challenges cannot be used to strike jurors based on their race).

Powers v. Ohio, 499 U.S. 400, 409 (1991) (explaining that peremptory challenges cannot be used to strike jurors based on race even if defendant and stricken jurors are different races).

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